

Clauses 5.1–5.10

Meters — testing, defective and burnt meters, unmetered supply

Every case in the Supply Code Jurisprudence JSON summaries that refers to any clause from 5.1 to 5.10 of the U.P. Electricity Supply Code, 2005 (including sub-clauses such as 5.6(c)(iii), 5.6(d), 5.6(e) and 5.9(c)). CGRF Regulations 2007 clauses 5.1–5.4, IBC/sale-agreement clauses 5.1–5.4, and Supply Code clauses 5.11 onwards are excluded. Digests below are the existing per-case PDF summaries, latest judgment first. Hits by parent clause: 5.5 (2), 5.6 (38), 5.7 (3), 5.8 (1), 5.9 (5). No case in the corpus refers to 5.1, 5.2, 5.3, 5.4, 5.10.

46	2007–2026	5	latest first
CASES	SPAN	CLAUSES HIT	ORDER

Cases — latest to oldest		46 cases
01	SCJ-310 Retrospective OMF charges — unreasoned order quashed 17 August 2026 · Allahabad High Court 5.6 An Executive Engineer’s order reiterating retrospective electricity charges, made without dealing with the consumer’s objection under clause 5.6 of the U.P. Electricity Supply Code, 2005 and the recorded CT ratio/OMF, suffers from lack of reasons and is quashed.	2026
02	SCJ-546 Pramod Kumar v. State of U.P. and 3 Others 16 July 2026 · Allahabad High Court 5.8 · 5.9(c) Where a consumer seeks quashing of an FIR under Section 135 of the Electricity Act, 2003 on the footing that the licensee's officials had bypassed a burnt meter (Clause 5.8 of the U.P. Electricity Supply Code, 2005) and that Clause 5.9(c) therefore barred booking a case of direct theft, and the licensee later...	2026
03	SCJ-870 Jai Prakash Dixit v. DVVNL 19 February 2026 · Allahabad High Court 5.6(e) Writ against recovery of Rs. 7,68,511 after a July 2010 check-meter inspection, alleging that notice within three days breached Clause 5.6(e) of the U.P. Electricity Supply Code, 2005 (proceedings only after 7–15 days of check-meter installation).	2026
04	SCJ-315 M/s Kamakhya Steels Pvt. Ltd. & Another v. PVVNL & Another 13 February 2026 · Allahabad High Court 5.6 Where a checking report of an industrial consumer records that no direct theft was detected and infers only a 'possibility of theft' from tampered CT/PT-chamber seals and mixed-feeder line losses of 9.17% to 19.75%, and the assessing authority then, after installing a check meter, treats the original meter as...	2026
05	SCJ-430 Akriti Food Industry LLP v. State of U.P. 15 October 2025 · Allahabad High Court 5.6(e) Where a consumer disputes bill correctness, Clause 5.6(e) of the U.P. Electricity Supply Code, 2005 requires a check meter parallel to the main meter and the bill to be made from check-meter consumption, with readings recorded 7–15 days after installation.	2025
06	SCJ-552 Prakash Chandra Gupta v. State of U.P. 23 September 2024 · Allahabad High Court 5.6(e) A CGRF order upholding slow-meter arrears founded on a parallel check meter cannot stand if the Forum neither considers Clause 5.6(e) of the U.P. Electricity Supply Code, 2005 nor affords a proper hearing.	2024
07	SCJ-064 M/S Santosh Preservation Pvt. Ltd. & Anr. v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Anr. 24 July 2023 · Allahabad High Court 5.6 · 5.6(c)(iii) The consumer's right under Clause 5.6(c)(iii) of the U.P. Electricity Supply Code, 2005 to have a meter tested at an independent laboratory of choice applies only where the conclusion of tampering or a fast/slow-running meter is arrived at ON THE BASIS OF a test report — i.e.	2023
08	SCJ-2209 Surya Trauma Centre and Hospital v. State of U.P. & Others 15 February 2023 (interim order; petition pending, last listed 4 November 2025) · Allahabad High Court 5.6 · 5.6(c)(ii) An interim order in a pending challenge to an electricity demand.	2023
09	SCJ-1287 Dakshinanchal Vidyut Vitran Nigam Ltd. v. State of U.P. 25 November 2021 · Allahabad High Court 5.5 The Allahabad High Court dismissed as unpressed a DISCOM writ against an Additional Commissioner's s.127 order that had quashed a s.135 theft and excess-load assessment.	2021

Cases — latest to oldest (continued)		46 cases
10	SCJ-2199 Om Prakash Sahani v. State of U.P. 10 November 2021 (last order; matter pending) · Allahabad High Court 5.6 The petitioner challenged a demand raised by the electricity department for a period of 80 months on the basis of a slow meter, contending that the provision for testing a defective meter under the U.P. Electricity Supply Code, 2005 had not been followed and the demand was therefore not legally sustainable.	2021
11	SCJ-2204 Pashchimanchal Vidyut Vitran Nigam Ltd. & Another v. J.P. International Sports Ltd. & Another 26 July 2021 (interim order; order-sheet 26.7.2021 to 24.4.2023, writ petition pending) · Allahabad High Court 5.7 Order-sheet record of a pending writ petition brought by the licensee, Pashchimanchal Vidyut Vitran Nigam Ltd., against an order of the Consumer Grievance Redressal Forum dated 22 March 2021 concerning the bill for a period (27 October 2011 to 20 March 2012) during which no meter was installed at the consumer's...	2021
12	SCJ-861 Chaudhary Nursing Home Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd. 7 December 2020 · Allahabad High Court 5.6 Challenge to an 18-month slow-metering supplementary bill as contrary to clause 5.6 of the U.P. Electricity Supply Code, 2005.	2020
13	SCJ-2356 Shiv Kumar Yadav v. State of U.P. 6 October 2020 · Allahabad High Court 5.6 After the Executive Engineer decided the consumer's representation against a demand notice and recovery citation, the High Court dismissed the writ and left any further billing grievance to the competent authority under clause 7.10 of the Electricity Supply Code, 2005.	2020
14	SCJ-2112 Executive Engineer (Distribution), KESCO v. Presiding Officer, Electricity Consumer Grievance Redressal Forum 19 October 2019 · Allahabad High Court 5.7(g) A licensee cannot sustain a twenty-six-month cumulative assessment for a missing current transformer merely because MRI reports later showed the CT absent throughout that period.	2019
15	SCJ-2075 Madhyanchal Vidyut Vitran Nigam Limited v. Permanent Lok Adalat 14 October 2019 · Allahabad High Court 5.9(c) A distribution licensee's writ against a Permanent Lok Adalat award directing computation of an electricity bill was dismissed.	2019
16	SCJ-1957 M/s New Fab Engineering Works v. Paschimanchal Vidyut Vitran Nigam 15 April 2019 · Allahabad High Court 5.6(c)(iii) Writ challenging on-spot meter testing after the licensee broke open the meter.	2019
17	SCJ-2322 Mukhtar Ahmad v. State of Uttar Pradesh 1 March 2019 · Allahabad High Court 5.9 · 5.9(c) A representation under Clause 5.9 of the U.P. Electricity Supply Code, 2005 cannot be refused until compounding fee is deposited.	2019
18	SCJ-2017 M/s Anees Rayin And Company v. Dakshinanchal Vidyut Vitran Nigam Ltd. 7 February 2019 · Allahabad High Court 5.6 · 5.6(c)(iii) Where a meter-testing challenge under Clause 5.6 of the Electricity Supply Code, 2005 is still at the provisional-assessment stage, the High Court will not decide the Code grievance on writ.	2019
19	SCJ-682 Shamsul Qamar v. PVVNL and Others 14 December 2018 · Allahabad High Court 5.6 A provisional theft assessment cannot stand where the licensee has removed the meter for laboratory testing under clause 8.1(vii) of the U.P. Electricity Supply Code, 2005 (testing to follow clause 5.6) but has not supplied the laboratory report.	2018
20	SCJ-161 Rituraj v. State of U.P. & Others 14 December 2017 · Allahabad High Court 5.6(b)(iii) · 5.6(c)(iii) · 5.6(d) · 5.6(d)(i) A demand raised on the strength of meter testing is illegal where the consumer was given no intimation/notice of the testing as required by Clause 5.6(d) of the U.P. Electricity Supply Code, 2005, and where the consumer was never apprised of the right under Clause 5.6(c)(iii) to have the sealed meter tested at an...	2017
21	SCJ-2194 Gee Cee Cycle Balls Pvt. Ltd. v. State of U.P. and 2 Others 24.5.2017 · Allahabad High Court 5.6 · 5.7 In a company consumer's challenge to an assessment bill said to have been raised on the difference between the consumer meter and the double-pole meter, the Division Bench did not decide the billing dispute but granted conditional interim protection.	2017

Cases — latest to oldest (continued)			46 cases
22	SCJ-114 Saurabh Agrawal & Another v. State of U.P. & Others 19 May 2017 · Allahabad High Court 5.6(c)(ii) · 5.6(d) Where the consumer inspection report underlying an FIR under Section 135 of the Electricity Act, 2003 does not itself record theft (the 'theft' column being struck through), and instead the licensee's own subsequent action treats the matter as one of slow metering under Clause 5.6(c)(ii) of the U.P. Electricity...		2017
23	SCJ-1611 Mukhtar Ahmad v. State of U.P. 18 May 2017 · Allahabad High Court 5.9 · 5.9(c) A writ complaining that the electricity meter at the consumer's premises is defective, and that the licensee has taken no steps after being told, is disposed of without a merits inquiry.		2017
24	SCJ-1722 M/s Vikas Cool Industries v. Madhyanchal Vidyut Vitran Nigam Ltd. 2 March 2017 · Allahabad High Court 5.6 A consumer alleging a defective meter and inflated bills, who had stopped paying and then faced disconnection and a recovery citation, was not granted a merits ruling on the meter or the demand.		2017
25	SCJ-203 M/s Madhuvan Properties (P) Ltd. v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Another 22 December 2016 · Allahabad High Court 5.6 · 5.6(c)(ii) Interim order.		2016
26	SCJ-202 Shri Gautam Motors Pvt. Ltd. v. U.P. Power Corporation Ltd. & Others 14 December 2016 · Allahabad High Court 5.6 There is no provision under the U.P. Electricity Supply Code, 2005 or the Electricity Act, 2003 by which an electricity bill can be raised on the basis of a check meter.		2016
27	SCJ-1521 Jay Narayan v. State of U.P. 2 November 2016 · Allahabad High Court 5.5 A writ against a recovery citation on a disputed electricity bill of Rs 6,32,754 was disposed of by directing the Executive Engineer to treat the pending representation as an application for correction of the bill under Clause 5.5 of the Electricity Supply Code, 2005 and decide it by a reasoned speaking order within...		2016
28	SCJ-1557 Dr. Umesh Singh v. State of U.P. 19 February 2016 · Allahabad High Court 5.6(c)(iii) A consumer invoking Clause 5.6(c)(iii) of the U.P. Electricity Supply Code, 2005 for independent laboratory testing of a defective meter, after a representation to the Executive Engineer had remained undecided, obtained only a direction that the representation be decided in accordance with law.		2016
29	SCJ-1362 Jaydev Singh v. State of U.P. 3 September 2015 · Allahabad High Court 5.6 A consumer dissatisfied with a consumption bill raised by the distribution corporation must pursue the remedy under clause 5.6 of the U.P. Electricity Supply Code, 2005.		2015
30	SCJ-1361 Smt. Shakuntla Devi v. State of U.P. — bill dispute relegated to Clause 5.6 3 September 2015 · Allahabad High Court 5.6 A Division Bench of the Allahabad High Court dismissed a writ petition challenging an electricity consumption bill, holding that a consumer dissatisfied with such a bill has a remedy under Clause 5.6 of the U.P. Electricity Supply Code, 2005, and granting liberty to pursue that remedy.		2015
31	SCJ-1980 Chandrawati Singh v. State of U.P. & Others 11 August 2015 · Allahabad High Court 5.6 A consumer challenged, by writ, a testing meter report dated 10 January 2013 and an assessment/provisional bill dated 15 April 2013, contending that in preparing the testing meter report the mandatory provisions of the U.P. Electricity Supply Code, 2005 had not been followed, so that the report could not be relied...		2015
32	SCJ-1347 Smt. Babita v. State of U.P. 10 July 2015 · Allahabad High Court 5.6(d) On a challenge to a defective-meter demand and threatened disconnection, where the consumer alleged that Clause 5.6(d) of the U.P. Electricity Supply Code, 2005 was not followed and that objections before the Assessing Authority remained undecided, the Allahabad High Court did not examine the demand on merits.		2015

Cases — latest to oldest (continued)		46 cases
33	SCJ-189 Shri Krishna Kumar Bhargava v. State of U.P. 30 June 2014 · Allahabad High Court 5.6 Interim order.	2014
34	SCJ-153 Mohd. Sagir v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Ors. 30 May 2014 · Allahabad High Court 5.6 · 5.6(a) · 5.6(c)(iii) · 5.9(b)(ii) A tampered meter is a 'defective meter' within Clause 5.6 of the U.P. Electricity Supply Code, 2005: the marginal heading 'Defective Meters' cannot cut down the substantive right in Clause 5.6(a) to test 'any meter', and Clause 5.6 read with Clause 5.9 (which speaks of a meter 'rendered defective due to tampering')...	2014
35	SCJ-058 M/S Krown Bakers India Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam & Anr. 12 February 2014 · Allahabad High Court 5.6 Under Clause 5.6 of the U.P. Electricity Supply Code, 2005, the obligation to install a check meter (or otherwise test a meter under the prescribed procedure) arises only on a consumer's request; where the sealing certificate on inspection recorded that the main meter was running slow (with the difference from a...	2014
36	SCJ-983 Abdul Hameed Alias Abdul Haneef v. U.P. Power Corporation Ltd. 11 April 2013 · Allahabad High Court 5.6 On a domestic consumer's plea that the licensee had neither installed a check meter nor revised a disputed high-consumption bill, the Court directed installation of a check meter under clause 5.6 of the Uttar Pradesh Electricity Supply Code, 2005 within one month, and correction of bills according to the inspection...	2013
37	SCJ-918 Deepak Mishra v. M.D. Kanpur Electricity Supply Co. Ltd. 29 May 2012 · Allahabad High Court 5.6(e) A KESCO consumer challenged the Ombudsman's confirmation of a CGRF direction to bill him at 180 units per month for 1991–2010, relying on a check meter that found the existing meter 7.6% fast and on para 5.6(e) of the Electricity Supply Code, 2005.	2012
38	SCJ-071 M/S Venus Stone Crushing Co. & Anr. v. U.P. Power Corporation Ltd. & Ors. 15 May 2012 · Allahabad High Court 5.6 Under paras 5.17, 5.18 and 5.20 of the U.P. Electricity Supply Code, 2002 (materially identical to Clause 5.6 of the 2005 Code), a licensee testing a meter in its laboratory must inform the consumer of the proposed testing date at least seven days in advance so the consumer may be present; this procedure is mandatory...	2012
39	SCJ-126 Smt. Vimla Tiwari v. State of U.P. And Others 20 April 2012 · Allahabad High Court 5.6 Where a theft-of-electricity 'missing meter' checking report and the resultant s.126 assessment order are shown, on the Assessing and Appellate Authorities' own personal affidavits filed under the Court's directions, to be internally contradictory, inconsistent as to dates, and effectively fabricated or backdated,...	2012
40	SCJ-059 M/S Modern Rice Mill v. MVVNL & Anr. 19 October 2011 · Allahabad High Court 5.6 · 5.6(a) · 5.6(b)(iii) · 5.6(d) Clause 5.6 of the U.P. Electricity Supply Code, 2005 gives the licensee the right to test 'any meter' on reasonable doubt of accuracy — its marginal heading 'Defective Meters' does not restrict its scope only to meters already known to be defective, since a marginal note/heading is not a legitimate aid to statutory...	2011
41	SCJ-1060 M/s Rukmani Ferro Pvt. Ltd. v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Ors. 20 July 2011 · Allahabad High Court 5.6 On a consumer's writ petition challenging a provisional assessment notice dated 22 September 2009 issued under Section 126(2) of the Electricity Act, 2003 (assessing Rs. 2,87,74,109 for alleged unauthorised use, following an eleven-member inspection and a meter examination), the Allahabad High Court declined to...	2011
42	SCJ-825 Rajendra Kumar Gupta v. DVVNL 30 March 2011 · Allahabad High Court 5.6(c)(iii) A writ against a Section 126(3) assessment involving disputed facts—including want of hearing, unauthorised use versus a defective-meter case under Supply Code clause 5.6(c)(iii), and independent meter testing—is disposed of by relegating the consumer to a Section 127 appeal.	2011
43	SCJ-003 Abhinav Seva Sansthan Mahavidyalaya v. U.P. Power Corporation Nigam Ltd. & Ors. 24 March 2011 · Allahabad High Court 5.6(d) Where a consumer has paid compounding charges for meter tampering / theft of electricity under Section 152 of the Electricity Act, 2003, the tampering stands compounded and the licensee need not follow the meter sealing/testing procedure of para 5.6(d) of the U.P. Electricity Supply Code, 2005 before the assessment...	2011

Cases — latest to oldest (continued)			46 cases
44	SCJ-162 Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd. & Anr. 15 January 2009 · Allahabad High Court 5.6(c)(iii) The leading Division Bench statement on Clause 5.6(c)(iii) of the U.P. Electricity Supply Code, 2005: where a defective/allegedly-tampered meter is sealed and sent for testing, it must be tested 'at licensee's lab/independent lab/electrical inspector, as agreed by the consumer', and the consumer's agreement is...		2009
45	SCJ-086 Mother India Refrigeration Industries (& Anr.) v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Ors. 18 July 2007 · Allahabad High Court 5.6 Near-verbatim companion order to SCJ-083 (Mohamdabad Cold Storage Private Ltd.		2007
46	SCJ-083 Mohamdabad Cold Storage Private Ltd. (& Anr.) v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Ors. 18 July 2007 · Allahabad High Court 5.6 A supplementary bill raised on account of an allegedly defective transformer is a 'disputed bill' within Clause 6.5(b) of the U.P. Electricity Supply Code, 2005 despite the clause's heading referring only to 'Disputed Bills and Arrears'; a marginal/clause heading does not confine its substantive scope.		2007

Retrospective OMF charges — unreasoned order quashed

High Court of Judicature at Allahabad · Division Bench · 17 August 2026 · Writ - C No. 27416 of 2026 · **Impugned order quashed for lack of reasons; Executive Engineer to pass a fresh order on the retrospective claim after the petitioner pays current-bill arrears.**

HEADNOTE

An Executive Engineer's order reiterating retrospective electricity charges, made without dealing with the consumer's objection under clause 5.6 of the U.P. Electricity Supply Code, 2005 and the recorded CT ratio/OMF, suffers from lack of reasons and is quashed. A fresh order on the retrospective claim is to follow payment of outstanding current bills.

FACTUAL SUMMARY

The petitioner challenged an order dated 6 November 2025 reiterating retrospective electricity charges on bills already paid. A coordinate Bench on 13 August 2025 had directed MRI supply, a hearing, a reasoned order, and no coercive recovery. The petitioner's 16 September 2025 objection alleged a fresh sealing certificate showing OMF=200 without clause 5.6 compliance, and that the 9 May 2023 certificate recorded CT ratio 10/5 and OMF=2, not 1000/5. The company said the MRI was supplied and the petitioner heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6

retrospective assessment / meter multiplier (OMF)

HOLDING

An order reiterating retrospective charges without dealing with the consumer's objection—including alleged non-compliance with clause 5.6 (no check meter; MRI not properly supplied) and the sealing-certificate CT ratio/OMF of 10/5 and 2 versus the claimed 1000/5 and 200—suffers from lack of reasons and is set aside. The Executive Engineer must pass a fresh order on the retrospective claim after the consumer pays outstanding arrears on current bills. ¶ 3, 4

PRINCIPLE TAGS

meter-dispute-must-exhaust-clause-5.6-before-writ An Executive Engineer's order reiterating retrospective electricity charges, made without dealing with the consumer's objection under clause 5.6 of the U.P. Electricity Supply Code, 2005 and the recorded CT ratio/OMF, suffers from lack of reasons and is quashed.. ¶ 3, 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CLAUSE 5.6 PROCEDURE

Whether clause 5.6 was complied with (check meter; MRI analysis) before the OMF=200 assessment.

NOT DECIDED — CT RATIO / OMF

Whether the CT ratio is 1000/5 (OMF 200) or 10/5 (OMF 2) as recorded in the 9 May 2023 sealing certificate.

NOT DECIDED — RETROSPECTIVE CHARGES

Merits of the retrospective consumption charges.

Pramod Kumar v. State of U.P. and 3 Others

Allahabad High Court · Division Bench · 16 July 2026 · Criminal Misc. Writ Petition No. 2340 of 2024 · **Writ petition dismissed for non-prosecution; interim order vacated**

HEADNOTE

Where a consumer seeks quashing of an FIR under Section 135 of the Electricity Act, 2003 on the footing that the licensee's officials had bypassed a burnt meter (Clause 5.8 of the U.P. Electricity Supply Code, 2005) and that Clause 5.9(c) therefore barred booking a case of direct theft, and the licensee later concedes that the offence is compoundable under Section 152 and that it is inclined to withdraw the FIR, the High Court does not decide those points if the petitioner thereafter fails to appear. The criminal miscellaneous writ petition was dismissed for non-prosecution and the interim order staying coercive measures was vacated. The Court did not construe Clauses 5.8 or 5.9(c), did not quash the FIR, and did not record a compounding or withdrawal.

FACTUAL SUMMARY

Pramod Kumar sought quashing of FIR dated 10.12.2022 in Case Crime No. 4681 of 2022 under Section 135 of the Electricity Act, Police Station Anti Power Theft, District Jalaun. He said a three-phase meter at his flour-mill premises had burnt; after intimation on 10.11.2022 and an application of 05.12.2022, Dakshinanchal Vidyut Vitran Nigam Ltd. certified that a new meter was installed on 08.12.2022. Counsel said the FIR, lodged the next day by the Executive Engineer, Madhogarh, alleged theft by unmetered direct supply even though that supply had been given by the licensee's officials pending replacement, and that Clauses 5.8 and 5.9(c) of the U.P. Electricity Supply Code, 2005 barred booking a direct-theft case.

On 21.02.2024 the Court called for the Executive Engineer's affidavit and issued a show-cause for costs of Rs. 1 lakh. On 21.03.2024 the department conceded that the FIR was compoundable under Section 152 and said it was inclined to withdraw it. Coercive measures were stayed on 22.03.2024. On 16.07.2026 none appeared for the petitioner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.9(c)

Burnt-meter bypass and Clause 5.9(c) bar on booking direct theft — raised; not decided

HOLDING

No construction. Counsel submitted that Clause 5.8 required the licensee to restore supply immediately by bypassing a burnt meter (providing a 'direct light'), and that Clause 5.9(c) provided that if the meter is found burnt and there is reason to believe an official of the licensee gave a direct connection pending replacement, a case of direct theft shall not be booked. The Court recorded those submissions on 21.02.2024, called for an affidavit from the Executive Engineer who lodged the FIR, and later stayed coercive measures. It never applied or interpreted either clause. On 16.07.2026 the writ was dismissed for non-prosecution. ¶ 8

FLAG Clauses 5.8 and 5.9(c) are not catalog keys; 5.9(c) is keyed as the theft-booking bar counsel invoked, with 5.8 recorded in the clause field. The 21.02.2024 order cites 'Electricity Act, 2023' (read 2003) and 'floor will' (read flour mill). Counsel dated the FIR as 09.12.2022; the petition describes it as 10.12.2022. Source PDF also contains orders of 21.02.2024 (Arvind Singh Sangwan and Shiv Shanker Prasad JJ.) and 21.03.2024 and 22.03.2024 (Mahesh Chandra Tripathi and Gajendra Kumar JJ.); the operative disposal is 16.07.2026 (Ajay Bhanot and Divesh Chandra Samant JJ.). Paragraph 8 is of the 21.02.2024 order.

HOLDING-UNIT · EA2003::135

FIR under s.135 — quashing not decided; petition dismissed for non-prosecution

HOLDING

The writ sought quashing of the FIR in Case Crime No. 4681 of 2022 under Section 135 of the Electricity Act, Police Station Anti Power Theft, Jalaun. The Court did not quash the FIR. After interim directions (an affidavit from the Executive Engineer, a show-cause for costs of Rs. 1 lakh, and a stay of coercive measures), none appeared for the petitioner on the revised call of 16.07.2026. The petition was dismissed for non-prosecution and the interim order, if any, was vacated. ¶ 1

FLAG The 16.07.2026 order is unnumbered; treated as a single paragraph. Dismissal for non-prosecution is not a finding that theft was committed.

HOLDING-UNIT · EA2003::152

Department conceded s.135 FIR is compoundable under s.152 and inclined to withdraw — not given effect

HOLDING

On 21.03.2024 senior counsel for the electricity department fairly conceded that the FIR under Section 135 is compoundable under Section 152 and that the Department was inclined to withdraw it, and sought time to file an affidavit. The Court passed the matter over. No compounding order was recorded and the FIR was not withdrawn on the writ. The petition was later dismissed for non-prosecution. ¶ 3

FLAG Paragraph 3 of the 21.03.2024 order. Compounding was conceded, not applied.

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy Where a consumer seeks quashing of an FIR under Section 135 of the Electricity Act, 2003 on the footing that the licensee's officials had bypassed a burnt meter (Clause 5.8 of the U.P.. ¶ 8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSES 5.8 AND 5.9(C) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 BARRED BOOKING THE PETITIONER FOR DIRECT THEFT
Raised on 21.02.2024 from the burnt-meter bypass and official direct connection; never construed. ¶ 8

NOT DECIDED — WHETHER THE FIR SHOULD BE QUASHED AS REGISTERED WITHOUT VERIFYING THE RECORD OR WITH A MALA FIDE MOTIVE
The petition's prayer. An affidavit and show-cause were called for; the FIR was not quashed. ¶ 2-3, 10

NOT DECIDED — COMPOUNDING UNDER SECTION 152 OF THE ELECTRICITY ACT, 2003, AND WITHDRAWAL OF THE FIR
Conceded by the department on 21.03.2024; no compounding or withdrawal was recorded. ¶ 3

NOT DECIDED — WHETHER COSTS OF RS. 1 LAKH SHOULD BE IMPOSED ON THE EXECUTIVE ENGINEER WHO LODGED THE FIR
Show-cause issued on 21.02.2024; not decided. ¶ 11

Jai Prakash Dixit v. DVVNL

High Court of Judicature at Allahabad · Division Bench · 19 February 2026 · WRIT - C No. 52187 of 2011 · **Writ dismissed for want of prosecution; interim order vacated.**

HEADNOTE

Writ against recovery of Rs. 7,68,511 after a July 2010 check-meter inspection, alleging that notice within three days breached Clause 5.6(e) of the U.P. Electricity Supply Code, 2005 (proceedings only after 7–15 days of check-meter installation). A Division Bench in 2011 granted interim stay of recovery and restoration of supply on a prima facie case. In 2026 a later Division Bench dismissed the petition for want of prosecution and vacated the interim order. The Clause 5.6(e) challenge was not decided on merits.

FACTUAL SUMMARY

Inspection of the petitioner's premises on 11 July 2010, said to be under the Electricity Supply Code, 2005, was followed by installation of a check meter. Within three days, on 14 July 2010, the licensee issued a notice proposing recovery of Rs. 7,68,511. The petitioner replied on 22 July 2010. The old meter was replaced on 17 September 2010. Without further notice, the Executive Engineer by order dated 9 June 2011 directed recovery of that amount. The writ challenged that order under Clause 5.6(e).

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

dismissal for want of prosecution

HOLDING

None appearing to press the writ against the 9 June 2011 recovery, the petition was dismissed for want of prosecution and any interim order, including the 2011 stay of recovery and direction to restore supply, stood vacated. The Clause 5.6(e) challenge was not decided. ¶ 3-4

PRINCIPLE TAGS

writ-petition-dismissed-for-want-of-prosecution-on-non-appearance Writ against recovery of Rs. 7,68,511 after a July 2010 check-meter inspection, alleging that notice within three days breached Clause 5.6(e) of the U.P. Electricity Supply Code, 2005 (proceedings only after 7–15 days of check-meter installation).. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER NOTICE OF PROPOSED RECOVERY WITHIN THREE DAYS OF CHECK-METER INSTALLATION, AND THE SUBSEQUENT RECOVERY ORDER WITHOUT CONSIDERING THE CONSUMER'S REPLY, VIOLATED CLAUSE 5.6(E) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Raised in 2011; only a prima facie stay was granted; the petition was later dismissed for want of prosecution

M/s Kamakhya Steels Pvt. Ltd. & Another v. PVVNL & Another

Allahabad High Court · Division Bench · 13 February 2026 · Writ - C No. 3581 of 2008 · **Writ petition allowed; Executive Engineer's final assessment dated 23.10.2007 and consequential orders quashed; remitted for a fresh order under the Supply Code within two months after considering objections, recording how a mere possibility of theft can be treated as actual theft so as to charge the check-meter unit difference; amounts already deposited to abide that order**

HEADNOTE

Where a checking report of an industrial consumer records that no direct theft was detected and infers only a 'possibility of theft' from tampered CT/PT-chamber seals and mixed-feeder line losses of 9.17% to 19.75%, and the assessing authority then, after installing a check meter, treats the original meter as slow-running and levies 2,97,779 additional units for the difference, that difference is not theft. Absent a finding of actual theft, mere slow working of a meter with a lesser reading does not amount to theft. The authority ought to have sent the meter for technical assessment to determine whether there was tampering or a manufacturing defect; a hypothetical conclusion of liability for the check-meter difference, without that testing and without considering the consumer's objections, cannot stand. The Executive Engineer's final assessment dated 23.10.2007 and consequential orders are quashed and the matter remitted for a fresh order under the U.P. Electricity Supply Code, 2005 within two months, recording how, if at all, a mere possibility of theft can be treated as actual theft so as to make the consumer liable for the unit difference. Amounts already deposited remain to abide that order. Companion to SCJ-273 (Writ-C No. 20210 of 2012), same Bench and date; the Court did not decide whether theft in fact occurred.

FACTUAL SUMMARY

M/s Kamakhya Steels Pvt. Ltd., an industrial consumer of Paschimanchal Vidyut Vitran Nigam Ltd., challenged the Executive Engineer's final assessment dated 23 October 2007 and the appellate order under the U.P. Electricity Supply Code, 2005 and the Electricity Act, 2003. Provisional assessment spanned 6 May 2007 to 16 August 2007 and 16 August 2007 to 23 October 2007. Inspection recorded tampered seals of the CT/PT chamber of the main meter and a 9.17%–19.75% difference between energy sent from the 132 kV Bijnor sub-station and the combined receipt of three consumers on the 33 kV feeder (the petitioner, M/s Jain Steel, and 33/11 kV S/S Avas Vikas). The report stated that no direct theft had been detected and inferred only a 'possibility of theft.' After a check meter was installed, the assessing authority treated the original meter as slow-running and assessed 2,97,779 additional units. The petition was connected with Writ-C No. 20210 of 2012 (SCJ-273), decided the same day by the same Bench.

REUSABLE CONSTRUCTIONS

1. A checking-report inference of a mere 'possibility of theft', where no direct theft was detected, cannot without a finding of actual theft support an assessment of additional units as theft. ¶ 4-8
2. Mere slow working of a meter with a lesser reading does not amount to theft; the meter must be sent for technical assessment to distinguish tampering from a manufacturing defect before the check-meter difference is charged as theft units. ¶ 6-7
3. A final assessment that does not consider the consumer's objections is quashed and remitted for a fresh order under the Supply Code. ¶ 5, 8

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

A checking-report 'possibility of theft' plus a check-meter finding that the original meter was slow-running cannot, without a finding of actual theft, support an assessment of additional units as theft

QUESTION

Can a licensee treat (i) a checking report that itself records that no direct theft was detected and infers only a 'possibility of theft' from tampered CT/PT-chamber seals and mixed-feeder losses, and (ii) a later check-meter difference showing the original meter was slow-running, as a concluded case of theft so as to charge the consumer for the unit difference?

HOLDING

No. The checking report concluded only a 'possibility of theft' although no direct theft had been detected. The Court held that unless a finding of electricity theft was returned — the matter not having been found to be a case of tampering with a broken seal in that sense — mere slow working of a meter with a lesser reading would not amount to theft. Liability for 2,97,779 additional units, hypothetically derived from the difference between the check meter and the original meter, could not rest on that footing. On remand the assessing authority must record how and under what circumstances a case of possibility of theft can be taken as actual theft so as to make the consumer liable for that difference. ¶ 4-8

FLAG The Court did not cite s.135 by number. Companion to SCJ-273 (Writ-C No. 20210 of 2012), same Bench and date, connected; that order remitted for findings of actual theft under s.135. Keyed accordingly. OCR reads 'tempered' for tampered.

HOLDING-UNIT · UP-2005::5.6

Before treating a slow-running meter as theft, the licensee must send it for technical assessment to distinguish tampering from a manufacturing defect

QUESTION

May the assessing authority, after installing a check meter and finding the original meter slow, charge the unit difference as theft without sending the meter for technical assessment?

HOLDING

No. The authority ought to have sent the meter for technical assessment to find out whether any tampering was done or whether it was a manufacturing defect. That not having been done, the conclusion that the petitioners were liable for additional units equal to the difference between the check meter and the original meter was hypothetical and unsustainable. ¶ 6-7

FLAG The Court did not cite Clause 5.6. It directed a 'technical assessment' of the meter to distinguish tampering from a manufacturing defect. Keyed to Clause 5.6 (meter testing) for indexing.

HOLDING-UNIT · UP-2005::8.1

A final assessment that does not consider the consumer's objections is quashed and remitted for a fresh order under the Code

QUESTION

Is a final assessment sustainable where the consumer's objections were not properly considered, and the assessing authority converted a 'possibility of theft' and a check-meter slow-running finding into a theft demand?

HOLDING

No. As in the connected Writ-C No. 20210 of 2012, the objections were not accorded due consideration. The petition is allowed. The order of the final assessing authority (Executive Engineer) dated 23.10.2007 and consequential orders are quashed. The matter is remitted to the assessing authority to pass a fresh order after considering the objections and to record how a case of possibility of theft can be taken as actual theft so as to charge the check-meter unit difference. An appropriate order is to be passed under the U.P. Electricity Supply Code, 2005 within two months of production of a certified copy. Amounts already deposited remain with the respondents to abide that order. ¶ 2, 5, 8-9

FLAG The Court did not cite a clause number. Remand is for a fresh order 'under the U.P. Electricity Supply Code, 2005'. Keyed to Clause 8.1 (theft-assessment procedure) as in SCJ-273; the demand was styled as theft/possibility of theft. The petition also challenged the appellate order; the operative paragraph quashes the 23.10.2007 assessment and 'consequential orders'.

PRINCIPLE TAGS

theft-cannot-rest-on-mere-possibility Companion to SCJ-273 (connected, same Bench and date): the checking report itself records that no direct theft was detected and infers only a possibility of theft from CT/PT-chamber seals and mixed-feeder losses. That possibility cannot, without a finding of actual theft, support an assessment of additional units. This record adds that a check-meter finding of slow running, with a lesser reading, is not theft. ¶ 4-8

defective-meter-not-per-se-theft-distinct-assessment-regime Mere slow working of a meter with a lesser reading does not amount to theft. The assessing authority ought to have sent the meter for technical assessment to determine whether there was tampering or a manufacturing defect, instead of hypothetically charging the check-meter difference as theft units. ¶ 6-7

assessment-must-engage-objections-with-reasons As in the connected SCJ-273, the assessing authority did not consider the consumer's objections. The 23.10.2007 assessment and consequential orders were quashed and remitted for a fresh order under

the Code after considering the objections. ¶ 5, 8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THEFT OF ELECTRICITY WAS IN FACT COMMITTED, AND THE CORRECTNESS OF THE 2,97,779 ADDITIONAL UNITS

Expressly remitted. The assessing authority must record how, if at all, a possibility of theft becomes actual theft so as to charge the check-meter difference. Amounts already deposited remain pending that order. ¶ 8-9

NOT DECIDED — WHETHER THE SLOW RUNNING WAS TAMPERING OR A MANUFACTURING DEFECT

The Court held that the meter ought to have been sent for technical assessment on that distinction; it did not itself decide the cause of the slow running. ¶ 7

NOT DECIDED — WHETHER THE DEMAND WAS A THEFT ASSESSMENT (CLAUSE 8.1) OR UNAUTHORISED-USE ASSESSMENT (CLAUSE 6.8)

The order speaks of theft / possibility of theft and a fresh order under the Code, without a numbered clause. Keyed to 8.1 for indexing, as in SCJ-273. ¶ 2, 7-8

SCJ-315 · M/s Kamakhya Steels Pvt. Ltd. & Another v. PVVNL & Another · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.

Akriti Food Industry LLP v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 15 October 2025 · WRIT - C No. 33604 of 2025 · **Impugned order set aside; fresh order after Clause 5.6(e).**

HEADNOTE

Where a consumer disputes bill correctness, Clause 5.6(e) of the U.P. Electricity Supply Code, 2005 requires a check meter parallel to the main meter and the bill to be made from check-meter consumption, with readings recorded 7–15 days after installation. An order deciding the dispute before that period expires cannot stand.

FACTUAL SUMMARY

Akriti Food Industry LLP challenged the Executive Engineer's order dated 12.08.2025 deciding its representation on an alleged incorrect bill of Rs.22,28,225/- for June 2023 to July 2025. A prior writ (Writ-C No. 24727 of 2025) had remitted the grievance to the authority. The petitioner contended that Clause 5.6(e) of the U.P. Electricity Supply Code, 2005 had not been followed. A check meter was installed on 08.08.2025; the impugned order followed on 12.08.2025. The licensee said the check meter showed no defect in the main meter.

REUSABLE CONSTRUCTIONS

1. Where a consumer disputes bill correctness, Clause 5.6(e) requires a check meter parallel to the main meter and the bill to be made from check-meter consumption, with readings recorded 7–15 days after installation; that clock is mandatory. ¶ 7-9
2. An order deciding a disputed-bill representation before the Clause 5.6(e) 7–15 day check-meter period expires cannot stand. ¶ 7-9

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6(e)

disputed bill; check meter

HOLDING

Clause 5.6(e) of the U.P. Electricity Supply Code, 2005 requires that, where the consumer disputes the correctness of a bill, a check meter be installed parallel to the main meter and the bill be made as per energy consumption reflected in the check meter, with check-meter readings recorded 7–15 days after installation. The check meter here was installed on 08.08.2025 and the impugned order was passed on 12.08.2025, before that period expired. The order dated 12.08.2025 was set aside, with liberty to the Executive Engineer to pass a fresh order after following Clause 5.6(e) within one month. ¶ 7-9

PRINCIPLE TAGS

meter-dispute-must-exhaust-clause-5.6-before-writ

Where a consumer disputes bill correctness, Clause 5.6(e) of the U.P. Electricity Supply Code, 2005 requires a check meter parallel to the main meter and the bill to be made from check-meter consumption, with readings recorded 7–15 days after installation.. ¶ 7-9

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE MAIN METER WAS DEFECTIVE OR THE ARREARS OF RS.22,28,225/- WERE CORRECTLY COMPUTED

The licensee contended the check meter showed no defect; the Court did not decide meter condition or quantum, and directed a fresh order after Clause 5.6(e). ¶ 6,9

Prakash Chandra Gupta v. State of U.P. & 2 Others

Allahabad High Court · Single Judge · 23 September 2024 · 2024:AHC:154585 · Writ - C No. 10822 of 2021 · **Writ allowed; CGRF order 26.9.2016, Ombudsman order 8.2.2021, and recovery citations dated 27.1.2016 and 31.5.2021 set aside; complaint remitted to CGRF for a fresh decision after hearing, preferably within six weeks; part-relief already granted cannot be withdrawn; no costs**

HEADNOTE

A CGRF order upholding slow-meter arrears founded on a parallel check meter cannot stand if the Forum neither considers Clause 5.6(e) of the U.P. Electricity Supply Code, 2005 nor affords a proper hearing. Clause 5.6(e) (quoted in full) provides that after a 7–15 day check-meter test, if the existing meter is fast or slow beyond permissible limits and the consumer does not dispute the results, the check meter replaces it and bills of the previous three months are adjusted; if the results are disputed, Clause 5.6(c) applies. The High Court did not itself apply the three-month cap or decide whether the results were disputed. Separately, the Electricity Ombudsman exceeds jurisdiction if, on the consumer's own representation and without any appeal by the licensee, he takes away part of the relief CGRF had granted. Following Authorised Officer (Land Reforms) v. M.M. Krishnamurthy Chetty, an unchallenged order is final between the parties. The CGRF and Ombudsman orders and the recovery citations are set aside; the complaint is remitted to CGRF, which cannot withdraw the unappealed part-relief.

FACTUAL SUMMARY

Prakash Chandra Gupta, a manufacturer of glass lamp shades and lighting fixtures at Jain Nagar, Agra Gate, Firozabad, held HV-2 connection no. 5969 (contracted load 42.88 kVA). The urban distribution division, Firozabad (respondent no. 4) installed main meter UPP09227 (9.11.2004) and a parallel check meter UPE81331 (19.12.2005). After MRI, installation of a pole meter, and conversion of the check meter into the main meter (9.6.2010), the July 2010 bill showed arrears of Rs. 6,66,671 on a report that the main meter was 34.62% slow versus the check meter; later UPE81331 was found 67.4% slow versus the pole meter. His 6.9.2010 objection to arrears of Rs. 6,52,172 was decided only on 14.5.2013. A recovery certificate of Rs. 23,21,150 issued on 27.1.2016. Supply was disconnected and restored after deposits of Rs. 4 lakh (12.2.2016) and Rs. 2 lakh (10.11.2020). CGRF, Agra decided complaint 13-F/2016 against him on 26.9.2016; the Electricity Ombudsman dismissed representation no. 228/2017 on 8.2.2021. He sought quashing of those orders and the recovery, restoration of the 8.3.2021 disconnection, and a correct bill.

REUSABLE CONSTRUCTIONS

1. A CGRF order sustaining slow-meter arrears founded on a parallel check meter cannot stand if the Forum neither considers Clause 5.6(e) nor affords the consumer a proper hearing. ¶ 8-10, 13-14
2. The Electricity Ombudsman exceeds jurisdiction if, on the consumer's own representation and without any appeal by the licensee, he takes away part of the relief CGRF had granted. ¶ 10-14
3. An unchallenged CGRF order is final and binding between the parties even if it may not be strictly legal; neither the Ombudsman nor CGRF on remand may withdraw unappealed part-relief (Authorised Officer (Land Reforms) v. M.M. Krishnamurthy Chetty). ¶ 10-14

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6(e)

CGRF must apply Clause 5.6(e) and hear the consumer on a check-meter slow-meter arrear

QUESTION

Can a CGRF order sustaining check-meter slow-meter arrears and a recovery certificate stand where Clause 5.6(e) was not considered and the consumer was not properly heard?

HOLDING

No. The petitioner's 6.9.2010 objection and the parallel check-meter history engaged Clause 5.6(e). CGRF's order dated 26.9.2016 showed no proper consideration of that clause and no proper opportunity of hearing, and those defects vitiated

the order (and the recovery founded on it). The Court quoted Clause 5.6(e) in full: after a 7–15 day test, if the existing meter is fast or slow beyond permissible limits and the consumer does not dispute the results, the check meter remains and bills of the previous three months are adjusted; if the results are disputed, Clause 5.6(c) is to be followed. It did not itself apply the three-month adjustment or decide whether the test results were disputed. The CGRF order is set aside and the complaint remitted for a fresh decision after hearing, in the light of that observation, preferably within six weeks. ¶ 8-10, 13-14

QUALIFIER

The High Court remitted rather than recomputing the bill under 5.6(e).

FLAG Petitioner described the licensee's reliance as '56 (ii) of the U.P. Electricity Act, 2003'; that is s.56(2) of the Electricity Act, 2003 — the Court did not construe it. Caption is 'State of U.P. And 2 Others', but the reserved judgment treats respondent no. 2 as the Ombudsman, no. 3 as CGRF, no. 4 as the distribution division, and also sets aside a citation dated 31.5.2021 of 'respondent no. 6' that is not in the prayer. Two consecutive paragraphs are numbered 13. The source PDF also contains listing/amendment/stay orders from 7.4.2021 to 22.8.2024; the judgment under record is 23.9.2024 (2024:AHC:154585).

INTERPLAY · EA2003::42(6)

Ombudsman cannot withdraw unappealed CGRF part-relief on the consumer's own representation

QUESTION

May the Electricity Ombudsman, on a consumer's representation and without any appeal by the licensee, take away part of the relief CGRF had granted?

HOLDING

No. The Ombudsman exceeded jurisdiction by withdrawing, in representation/appeal no. 228/2017 filed by the consumer, part of the relief granted by CGRF on 26.9.2016, there being no appeal or representation by respondent no. 4. Applying *Authorised Officer (Land Reforms) v. M.M. Krishnamurthy Chetty*, even an order that may not be strictly legal becomes final and binding between the parties if it is not challenged before a superior forum; a dispute that has attained finality cannot be reopened. The Ombudsman order dated 8.2.2021 is set aside. On remand, CGRF cannot withdraw that part-relief, there being no appeal or writ by the licensee against the 26.9.2016 order. ¶ 10-14

FLAG The Court did not cite s.42(6). It treated respondent no. 2 (Electricity Ombudsman, U.P.) as the 'appellate Court' on the consumer's representation. Keyed to s.42(6) as the Ombudsman provision. The judgment recites that CGRF decided 'against the petitioner' (para 2) yet also that 'relief which was granted in part' cannot be withdrawn (paras 10, 13-14); the content of that part-relief is not identified.

PRINCIPLE TAGS

audi-alteram-partem-for-demand-assessment-orders CGRF's 26.9.2016 order on the check-meter slow-meter complaint was set aside for want of proper opportunity of hearing as well as for non-consideration of Clause 5.6(e). Fresh decision after hearing directed. ¶ 10, 14

ombudsman-cannot-withdraw-unappealed-cgrf-relief On a consumer's representation, the Electricity Ombudsman cannot take away part of the relief CGRF had granted when the licensee filed no appeal. Unchallenged CGRF relief is final between the parties (*Authorised Officer (Land Reforms)*); CGRF on remand is equally barred from withdrawing it. Lead authorities: *Authorised Officer (Land Reforms) v. M.M. Krishnamurthy Chetty*. ¶ 10-14

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — QUANTUM OF THE SLOW-METER ARREARS AND WHETHER CLAUSE 5.6(E)'S THREE-MONTH ADJUSTMENT OR THE CLAUSE 5.6(C) DISPUTED-RESULT PROCEDURE APPLIES ON THESE FACTS

Clause 5.6(e) was quoted and CGRF was directed to decide in its light after hearing; the High Court did not recompute the bill or decide whether the test results were disputed. ¶ 8, 10, 14

NOT DECIDED — WHETHER SECTION 56(2) OF THE ELECTRICITY ACT, 2003 BARS OR SUPPORTS THE DEMAND

Petitioner said the impugned orders rested on '56 (ii)' without considering mandatory Clause 5.6(e); the licensee said s.56(ii) was rightly applied. Not construed. ¶ 4-5

NOT DECIDED — RESTORATION OF THE 8.3.2021 DISCONNECTION AND ISSUANCE OF A 'CORRECT BILL' AFTER ADJUSTING PAID BILLS

Prayed as mandamus; the operative order quashes the CGRF/Ombudsman orders and the recovery citations and remits the complaint, without a restoration or recasting direction. ¶ 2, 14

NOT DECIDED — VALIDITY OF THE 14.5.2013 DECISION ON THE 6.9.2010 OBJECTION, AND THE CONTENT OF THE 'PART OF THE RELIEF' GRANTED BY CGRF ON 26.9.2016

Petitioner alleged the 14.5.2013 order was passed without hearing, pursuant to the 1.11.2010 writ direction. The part-relief CGRF is forbidden to withdraw is not identified. ¶ 4, 10, 14

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Authorised Officer (Land Reforms) v. M.M. Krishnamurthy Chetty</i> (1998) 9 SCC 138 Supreme Court	Even orders which may not be strictly legal become final and binding between the parties if they are not challenged before the superior courts; a dispute that has attained finality cannot be reopened.		Court	Followed
<i>Shiba Shankar Mohapatra v. State of Orissa</i> (2010) 12 SCC 471 Supreme Court	Cited by the petitioner; no ratio extracted.		Petitioner	Relied on
<i>Bachhaj Nahar v. Nilima Mandal</i> (2008) 17 SCC 491 Supreme Court	Cited by the petitioner; no ratio extracted.		Petitioner	Relied on
<i>Union of India v. Jai Prakash Singh</i> (2007) 10 SCC 712 Supreme Court	Cited by the petitioner; no ratio extracted.		Petitioner	Relied on
<i>V.K. Majotra v. Union of India</i> (2003) 8 SCC 40 Supreme Court	Cited by the petitioner; no ratio extracted.		Petitioner	Relied on
<i>D.P. Kesari v. Board of Directors of Allahabad Agricultural Institute</i> (2009) 12 SCC 272 Supreme Court	Cited by the petitioner; no ratio extracted.		Petitioner	Relied on
<i>M/s Shri Gautam Motors Pvt. Ltd. v. U.P. Power Corporation Ltd.</i> Writ-C No. 12076 of 2004 (order dated 14.12.2016) Allahabad High Court (DB)	Recited in a 11.5.2023 listing order: Division Bench allowed the writ, relying on Amrawati Devi, Balwant Spinning Mills and Tata Hydro, and set aside a demand dated 19.02.2004 and a recovery bill of Rs. 5,93,227. Not applied in the reserved reasons.		Petitioner	Relied on
<i>Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd.</i> 2009 (1) ADJ 430 (DB) Allahabad High Court (DB)	Recited in the 11.5.2023 listing order: provisional assessment notice dated 31.12.2008 quashed; meter to be tested by an independent agency under Clause 5.6(c)(iii); restoration on deposit. Not applied in the reserved reasons.		Petitioner	Relied on
<i>Balwant Spinning Mills Ltd. v. U.P. State Electricity Board</i> (1997) 6 SCC 740 Supreme Court	Named only as a case relied on in Gautam Motors; no ratio extracted.		Petitioner	Referred
<i>Tata Hydro Electric Power Supply Co. Ltd. v. Union of India</i>	Named only as a case relied on in Gautam Motors; no ratio extracted.		Petitioner	Referred

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
(2003) 4 SCC 172 Supreme Court				

SCJ-552 · Prakash Chandra Gupta v. State of U.P. & 2 Others · 2024:AHC:154585 · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.

M/S Santosh Preservation Pvt. Ltd. & Anr. v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Anr.

Allahabad High Court · Division Bench · 24 July 2023 · 2023:AHC:146861-DB · WRIT - C No. 27553 of 2019 · **Writ petition dismissed**

HEADNOTE

The consumer's right under Clause 5.6(c)(iii) of the U.P. Electricity Supply Code, 2005 to have a meter tested at an independent laboratory of choice applies only where the conclusion of tampering or a fast/slow-running meter is arrived at ON THE BASIS OF a test report — i.e. where the defect/tampering is not obvious on inspection and requires laboratory analysis to establish. Where tampering is patent and visible to the naked eye at the time of inspection itself (e.g. cut phase wires, broken seals, a meter recording nil consumption despite live current on the transformer), the conclusion of theft does not depend on any test report, and Clause 5.6(c)(iii) is simply not attracted; sending the meter for testing thereafter (for record purposes) does not create a new right to independent testing that never existed. Mohd. Sagir and Smt. Amrawati Devi are distinguished as cases where tampering was not obvious on inspection and was established only by subsequent test reports.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6

Independent-laboratory testing right under Clause 5.6(c)(iii) applies only where the tampering/defect conclusion rests on a test report, not where tampering is patent on inspection

QUESTION

Is a theft assessment vitiated for not offering the consumer an option to test the meter at an independent laboratory under Clause 5.6(c)(iii), where the tampering (cut phase wires, broken seals, nil consumption despite live transformer current) was patent and recorded on the spot at inspection, and not derived from any subsequent test report?

HOLDING

No. Clause 5.6(c)(iii)'s independent-testing option exists to rule out bias where the conclusion of a fast/slow-running or tampered meter is arrived at on the basis of a test report (i.e. where the defect is not visible on inspection and needs laboratory ascertainment) — as in Mohd. Sagir and Smt. Amrawati Devi, both distinguished here. Where, as here, tampering is obvious to the naked eye at inspection itself (window/TP seals tampered, R and B phase wires cut, the meter recording nil consumption though the transformer showed live current on all three phases), the conclusion of theft does not depend on any test report; the licensee's subsequent sending of the meter for testing (for record purposes) does not confer a Clause 5.6(c)(iii) right that never arose. Since the tampering was a foregone conclusion on the inspection report itself, the assessment order was not vitiated for want of independent testing or for being non-speaking, and interference under Article 226 was declined. ¶ paras 20-30

LIMITING FACTS

On checking (12.6.2019) of a cold storage's meters, both the Main meter and a Pole meter showed tampered window/TP seals with the R and B phase wires cut, rendering both meters incapable of recording consumption (showing nil) despite the transformer recording live current (112-125 Amp) on all three phases; the consumer paid Rs. 56 lakh as compounding fee (to avoid criminal prosecution) and Rs. 10 lakh towards the anticipated assessment, and was later assessed Rs. 20,54,895 for 59 days of unauthorised use.

PRINCIPLE TAGS

independent-lab-testing-only-if-conclusion-rests-on-test-report Clause 5.6(c)(iii)'s independent-laboratory option is triggered only when the tampering/defect finding is derived from a test report; it has no application where tampering is visibly patent at inspection, distinguishing Mohd. Sagir and Amrawati Devi (ambiguous, test-report-dependent tampering). Lead authorities: *Mohd. Sagir v. Dakshinanchal Vidyut Vitran Nigam Ltd.* [1795995], *K.C. Ninan v. Kerala State Electricity Board & Ors.* [160269658]. ¶ paras 21-27

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Mohd. Sagir v. Dakshinanchal Vidyut Vitran Nigam Ltd.</i> (DB) [1795995] Allahabad High Court (DB)	A tampered meter is also a 'defective meter' within Clause 5.6 (read with Clause 5.9(a)(ii)); where tampering (a foreign remote-sensing device) was not visible on inspection and was established only by a subsequent committee's opening of the meter, the consumer had a right under Clause 5.6(c)(iii) to independent testing.	Distinguished — that case involved tampering not obvious at inspection, established only by later test/committee report, unlike the patent tampering here. ¶ paras 21, 27	Petitioner	Distinguished
<i>Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd. & Anr.</i> (DB) Allahabad High Court (DB)	Clause 5.6(c) requires the consumer's agreement for testing at the licensee's lab or an independent lab; failure to apprise the consumer of the right to independent testing (where tampering was found only via a subsequent lab test) renders the sealing/assessment proceedings irregular and illegal.	Distinguished on the same ground as Mohd. Sagir. ¶ paras 20, 27	Petitioner	Distinguished
<i>K.C. Ninan v. Kerala State Electricity Board & Ors.</i> 2023 SCC OnLine SC 603 [160269658] Supreme Court	Electricity constitutes a 'public good', and the courts' interpretation of the law must foster this position.	Referred to support a purposive interpretation of Clause 5.6 that does not create an artificial independent-testing right in cases of patent, visible meter tampering. ¶ para 26	Court	Referred

SCJ-064 · M/S Santosh Preservation Pvt. Ltd. & Anr. v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Anr. · 2023:AHC:146861-DB · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.

Surya Trauma Centre and Hospital v. State of U.P. & Others

High Court of Judicature at Allahabad · Division Bench · 15 February 2023 (interim order; petition pending, last listed 4 November 2025) · Writ-C No. 34085 of 2022 · **No final disposition — the writ petition remains pending. By interim order dated 15.2.2023 the Division Bench granted conditional protection: subject to the petitioner depositing a further sum of Rs.5 lakhs within two weeks before respondent no.3, the respondents would take no coercive measure against the petitioner in pursuance of the impugned demand till the next date of listing. The petitioner deposited Rs.5,00,000 on 21.2.2023, and the interim order has since been extended from time to time before successive Division Benches; as of the last order in the record, dated 4.11.2025, the matter awaits final hearing.**

Source file: WRIC(A)_34085_2022.pdf

HEADNOTE

An interim order in a pending challenge to an electricity demand. The petitioner, a hospital, challenged a demand raised by the licensee on the footing of a slow/defective meter, contending that the defective-meter procedure under the U.P. Electricity Supply Code, 2005 had not been followed and that, under Clause 5.6(c)(ii), even a slow meter permits revision of bills only for the three months preceding the month in which the dispute arose, whereas the demand had been raised from the date the connection was released (July 2019). Without deciding the merits, the Division Bench (order dated 15.2.2023) granted conditional interim protection: subject to the petitioner depositing a further Rs.5 lakhs within two weeks before respondent no.3, no coercive measure would be taken against the petitioner in pursuance of the impugned demand till the next date. The petitioner complied by depositing Rs.5,00,000 on 21.2.2023, and the interim order was extended from time to time. The matter has been listed before successive Division Benches without a final decision and remains pending (last listed order dated 4.11.2025). The record thus yields an interim arrangement, not a ruling on the Clause 5.6(c)(ii) contention.

FACTUAL SUMMARY

The petitioner, Surya Trauma Centre and Hospital, filed Writ-C No. 34085 of 2022 challenging an electricity demand raised by the respondent licensee (through respondent no.3) on the footing that its meter was found running slow/defective. The petitioner contended that the procedure prescribed under the U.P. Electricity Supply Code, 2005 for a defective meter had not been followed, and that under Clause 5.6(c)(ii), even if the meter was accepted to be running slow, the licensee could revise the bills only for the three months preceding the month in which the dispute arose, whereas the impugned demand had been raised from the date the connection was released (July 2019). The petition was listed on numerous dates from 6.12.2022 onwards, with repeated adjournments. By order dated 15.2.2023 the Court granted the Electricity Department three weeks to file a counter affidavit and passed a conditional interim order restraining coercive recovery subject to a further deposit of Rs.5 lakhs; the petitioner deposited Rs.5,00,000 on 21.2.2023 (recorded on 14.3.2023). The interim order was thereafter extended repeatedly, and the matter was placed before successive Division Benches. As of the last order in the record, dated 4.11.2025, the petition remained pending for final hearing with the interim protection continuing.

REUSABLE CONSTRUCTIONS

1. In a pending challenge to an electricity demand, interim protection against coercive recovery may be granted on condition that the consumer deposits a specified sum with the licensee, the protection continuing till the next date and being extended from time to time. **order of 15.2.2023**

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6

OBITER

Conditional interim protection against coercive recovery pending challenge to a slow-meter demand under Clause 5.6

QUESTION

Pending a challenge to a demand raised on a slow/defective meter allegedly contrary to Clause 5.6(c)(ii) of the U.P. Electricity Supply Code, 2005, on what terms may the consumer be protected from coercive recovery?

HOLDING

The Court did not decide the merits. Recording the petitioner's contention that the defective-meter procedure had not been followed and that Clause 5.6(c)(ii) confines revision of a slow meter's bills to the three months preceding the month of dispute (as against a demand raised from July 2019), the Division Bench granted conditional interim protection by order dated 15.2.2023: subject to a further deposit of Rs.5 lakhs within two weeks before respondent no.3, the respondents would take no coercive measure against the petitioner in pursuance of the impugned demand till the next date. The petitioner deposited Rs.5,00,000 on 21.2.2023 and the interim order was extended from time to time. The petition remains pending (last listed order dated 4.11.2025); no ruling on the Clause 5.6(c)(ii) point has been rendered. **order of 15.2.2023**

EVIDENCE *"In the meantime, subject to the petitioner depositing a further sum of Rs.5 lakhs within two weeks from today before respondent no.3, the respondents will not take any coercive measure against the petitioner in pursuance of the impugned demand till the next date of listing"* **order of 15.2.2023**

EVIDENCE *"under Clause 5.6 (c) (ii) even if it is accepted that the meter was found to be running slow, the respondents were empowered to revise the bills of previous three months prior to the month in which the dispute had arisen"* **order of 15.2.2023**

FLAG Order-sheet matter with no printed page numbers or numbered paragraphs (pin_basis=date). Interim order only; matter pending before successive Division Benches, last listed 4.11.2025. The Clause 5.6(c)(ii) point is the petitioner's recorded contention, not a decided holding.

PRINCIPLE TAGS

interim-protection-pending-meter-demand-challenge Coercive recovery of a slow/defective-meter demand restrained pending the writ, on condition of a deposit before the licensee. **order of 15.2.2023**

part-deposit-stay-of-recovery-without-prejudice Recovery of the impugned demand stayed on a part deposit (Rs.5 lakhs) pending final hearing. **order of 15.2.2023**

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE IMPUGNED DEMAND COMPLIED WITH CLAUSE 5.6(C)(II) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 (SLOW-METER REVISION LIMITED TO THE THREE MONTHS PRECEDING THE MONTH OF DISPUTE)

The petitioner contended the demand was raised from the date of release of the connection (July 2019), beyond the three-month window, and that the defective-meter procedure was not followed. The Court recorded the contention but did not decide it; only conditional interim protection was granted and the petition remains pending. See SCJ-203 for the proposition that a slow meter's difference is confined to three months under Clause 5.6(c)(ii). **order of 15.2.2023**

RELATED CASES — SEE ALSO

SCJ-203 — Directly supports the petitioner's contention: under Clause 5.6(c)(ii) the difference on a slow meter is confined to the three months preceding the month of dispute (here left undecided).

SCJ-2199 — Companion interim posture — interim protection granted pending a challenge to a meter-based demand.

SCJ-2194 — Conditional interim stay of recovery on a deposit, pending the writ.

SCJ-083 — Clause 5.6 meter-dispute procedure must be exhausted before writ; frames the defective-meter regime engaged here.

Dakshinanchal Vidyut Vitran Nigam Ltd. v. State of U.P.

High Court of Judicature at Allahabad · Single Judge · 25 November 2021 · Writ-C No. 65749 of 2014 · Writ-C No. 65749 of 2014 · **Writ dismissed for non-prosecution; any interim order vacated; recall liberty reserved.**

HEADNOTE

The Allahabad High Court dismissed as unpressed a DISCOM writ against an Additional Commissioner's s.127 order that had quashed a s.135 theft and excess-load assessment. After notice in 2014, none appeared for the petitioners in 2021. The Court treated the petition as likely infructuous, vacated any interim order, and reserved liberty to seek recall if a cause of action survived. The assessment and appellate merits were not decided.

FACTUAL SUMMARY

The DISCOM assessed Adarsh Shiksha Samiti (connection of Rajendra Kumar Gupta) after a 12.08.2010 inspection found 14.756 KW used against a 7.5 KW sanctioned load and a tampered meter. Assessment of Rs 2,71,476.34 under s.135 was confirmed. The consumer's first writ was directed to a s.127 appeal, which the Additional Commissioner (Judicial), Agra, allowed on 02.04.2014, quashing the assessment. The DISCOM challenged that appellate order, citing clause 5.5 of the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

dismissal of DISCOM writ against s.127 order for non-prosecution

HOLDING

The DISCOM's writ challenging a s.127 appellate order that quashed a s.135 assessment was dismissed when none appeared for the petitioners even on revised call. The Court treated the petition as likely infructuous or abandoned, vacated any interim order, and reserved liberty to apply for recall if a cause of action survived. The legality of the assessment and the appellate order was not examined. ¶ 1-4

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy The Allahabad High Court dismissed as unpressed a DISCOM writ against an Additional Commissioner's s.127 order that had quashed a s.135 theft and excess-load assessment. After notice in 2014, none appeared for the petitioners in 2021.. ¶ 1-4

relegate-to-statutory-remedy The Allahabad High Court dismissed as unpressed a DISCOM writ against an Additional Commissioner's s.127 order that had quashed a s.135 theft and excess-load assessment. After notice in 2014, none appeared for the petitioners in 2021.. ¶ 1-4

writ-petition-dismissed-for-want-of-prosecution-on-non-appearance The Allahabad High Court dismissed as unpressed a DISCOM writ against an Additional Commissioner's s.127 order that had quashed a s.135 theft and excess-load assessment. After notice in 2014, none appeared for the petitioners in 2021.. ¶ 1-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ADDITIONAL COMMISSIONER'S S.127 ORDER DATED 02.04.2014, QUASHING THE S.135/SUPPLY CODE ASSESSMENT, WAS SUSTAINABLE, INCLUDING THE DISCOM'S CLAUSE 5.5 OBJECTION

Petition dismissed for non-appearance without examining merits. ¶ 1-3

Om Prakash Sahani v. State of U.P. & 4 Others

High Court of Judicature at Allahabad · Single Judge · 10 November 2021 (last order; matter pending) · Writ - C No. 8432 of 2018 · **No final adjudication in the record. Interim protection against coercive recovery was granted on 10.4.2018 and continued on later dates; on 10.11.2021, the petitioner's counsel being not ready to argue and repeatedly seeking adjournments, the case was listed after three months and the interim order was expressly not extended. The challenge to the 80-month demand founded on a slow meter (raised, it was contended, without following the Supply Code's defective-meter testing procedure) remained undecided.**

Source file: WRIC(A)_8432_2018.pdf

HEADNOTE

The petitioner challenged a demand raised by the electricity department for a period of 80 months on the basis of a slow meter, contending that the provision for testing a defective meter under the U.P. Electricity Supply Code, 2005 had not been followed and the demand was therefore not legally sustainable. The record is an order-sheet of successive interlocutory orders (6.3.2018 to 10.11.2021) containing no adjudication on the merits. The Court granted interim protection on 10.4.2018 restraining any coercive step against the petitioner pursuant to the demand and continued it on later dates; it also took up a disconnection said to have been effected during the currency of the interim order (the connection being later reported restored). On 10.11.2021, the petitioner's counsel not being ready to argue and repeatedly seeking adjournments, the Court listed the case after three months and made it clear that the interim order was not extended. No question of law was decided.

FACTUAL SUMMARY

The petitioner, Om Prakash Sahani, filed Writ - C No. 8432 of 2018 against the State of U.P. and the electricity department/licensee (respondents 4 and 5). He challenged a demand raised by the department for a period of 80 months computed on the basis of a slow meter, contending that the meter-testing procedure for a defective meter prescribed by the U.P. Electricity Supply Code, 2005 had not been followed, so that the demand was not legally sustainable; a question was also raised (order of 6.3.2018) whether the petitioner's deposit of Rs. 80,000 on 13.6.2016 and other deposits could be treated as compliance with Regulation 18.4 of the 2007 Regulations. The matter passed through several single-judge benches between 2018 and 2021 with repeated adjournments and extensions of time for the respondents' counter affidavit. Interim protection against coercive recovery was granted on 10.4.2018 and continued; during its currency the department disconnected the petitioner's connection, which the Court took up (the connection being later reported restored on 29.10.2021). On 10.11.2021, the petitioner's counsel being not ready to argue and seeking adjournments, the Court listed the case after three months and declined to extend the interim order. The record contains no final decision.

REUSABLE CONSTRUCTIONS

1. Interim protection restraining coercive recovery of a disputed slow/defective-meter demand may be granted pending adjudication, but is liable to be discontinued where the petitioner is not ready to argue and repeatedly seeks adjournments. **orders of 10.4.2018 and 10.11.2021**

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6

OBITER

Interim protection against coercive recovery of a slow/defective-meter demand pending adjudication of alleged non-compliance with the Code's meter-testing procedure; no decision on the merits

QUESTION

Pending adjudication of the contention that an 80-month demand founded on a slow meter was raised without following the U.P. Electricity Supply Code, 2005 procedure for testing a defective meter, should the petitioner have interim protection against coercive recovery, and was any question of law decided?

HOLDING

No question of law was decided. The Court did not adjudicate whether the meter-testing procedure under the Supply Code had been followed or whether the 80-month slow-meter demand was sustainable. It granted interim protection on

10.4.2018 restraining any coercive step against the petitioner pursuant to the demand, continued that protection on subsequent dates, and took up a disconnection effected during its currency (the connection being later reported restored). Ultimately, on 10.11.2021, the petitioner's counsel not being ready to argue and repeatedly seeking adjournments, the Court listed the matter after three months and expressly declined to extend the interim order. The merits therefore remain open. [orders of 10.4.2018 to 10.11.2021](#)

EVIDENCE “the provision for testing defective meter as provided by the U.P. Electricity Supply Code, 2005 has not been followed” [order of 10.4.2018](#) (petitioner's submission)

EVIDENCE “the demand raised by the electricity department for a period of 80 months on the basis of a slow meter is not legally sustainable” [order of 10.4.2018](#) (petitioner's submission)

EVIDENCE “no coercive step shall be taken against the petitioner pursuant to demand raised by the department for the concerned period” [order of 10.4.2018](#)

EVIDENCE “It is made clear that interim order, passed earlier, is not extended.” [order of 10.11.2021](#)

FLAG Order-sheet with no final adjudication; the matter was pending as of the last order (10.11.2021). Pins are to order dates; the clause number for the Code's defective-meter testing procedure is not stated in the source and is mapped to Clause 5.6 (Metering / Defective Meters).

PRINCIPLE TAGS

interim-protection-pending-meter-demand-challenge Pending a challenge that a slow/defective-meter demand was raised without following the Supply Code's meter-testing procedure, the Court may stay coercive recovery; such interim relief is not extended where the petitioner does not prosecute the matter. [orders of 10.4.2018 to 10.11.2021](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE 80-MONTH DEMAND FOUNDED ON A SLOW METER IS LEGALLY SUSTAINABLE, AND WHETHER THE U.P. ELECTRICITY SUPPLY CODE, 2005 PROCEDURE FOR TESTING A DEFECTIVE METER WAS FOLLOWED.

Raised by the petitioner but left undecided; the record contains only interlocutory orders and the interim protection was ultimately not extended. [orders of 10.4.2018 to 10.11.2021](#)

NOT DECIDED — WHETHER THE PETITIONER'S DEPOSIT OF RS. 80,000 ON 13.6.2016 AND OTHER DEPOSITS CAN BE TREATED AS COMPLIANCE WITH REGULATION 18.4 OF THE 2007 REGULATIONS.

Flagged for the respondent's instructions in the order of 6.3.2018 but not adjudicated. [order of 6.3.2018](#)

RELATED CASES — SEE ALSO

SCJ-059 — M/s Modern Rice Mill v. MVVNL - Clause 5.6 governs the licensee's right and procedure to test a meter on reasonable doubt of accuracy; directly relevant to the meter-testing procedure the petitioner says was skipped.

SCJ-058 — M/s Krown Bakers v. PVVNL - the obligation to install a check meter or otherwise test a meter under Clause 5.6; sibling on the defective-meter testing procedure.

SCJ-153 — Mohd. Sagir v. DVVNL - a tampered/defective meter falls within Clause 5.6; companion authority on the defective-meter provision engaged by a slow-meter demand.

Pashchimanchal Vidyut Vitran Nigam Ltd. & Another v. J.P. International Sports Ltd. & Another

High Court of Judicature at Allahabad · Division Bench · 26 July 2021 (interim order; order-sheet 26.7.2021 to 24.4.2023, writ petition pending) · WRIT - C No. - 15712 of 2021 · **Writ petition pending; not finally decided. On the licensee's petition challenging an order of the Consumer Grievance Redressal Forum dated 22 March 2021, the Division Bench, recording that the matter required consideration, stayed by interim order dated 26 July 2021 the effect and operation of that order to the extent it directed re-assessment of the demand on the basis of reduced load, till the next date of listing (the interim order being extended thereafter). The first part of the Forum's order, implementing the Committee's report dated 9 November 2015 for the period 27.10.2011 to 23.11.2011, was left untouched. After several adjournments the matter was last listed for 1 May 2023.**

Source file: WRIC(A)_15712_2021.pdf

HEADNOTE

Order-sheet record of a pending writ petition brought by the licensee, Pashchimanchal Vidyut Vitran Nigam Ltd., against an order of the Consumer Grievance Redressal Forum dated 22 March 2021 concerning the bill for a period (27 October 2011 to 20 March 2012) during which no meter was installed at the consumer's premises. The billing dispute had been resolved by a Committee under clause 5.7 of the U.P. Electricity Supply Code, 2005 (report dated 9 November 2015); the consumer's complaint travelled through the Forum, the Electricity Ombudsman (which remanded on 28 December 2018), a fresh Forum order, a recall for want of notice, and finally the impugned order of 22 March 2021. That order had two parts: the first implemented the Committee's report for 27.10.2011 to 23.11.2011; the second provided that, on the consumer depositing the amount for that period within one month, the consumption for the remaining period would be reassessed on the basis of reduced load. The licensee, aggrieved only by the second part, contended that where supply is made without a meter clause 5.7 is attracted, requiring the bill to be raised on the basis of three months' average consumption after installation of the meter — the basis on which the Committee had already reported — so that there was no justification to further reduce the consumption. Finding that the matter required consideration, the Division Bench (Manoj Misra and Jayant Banerji, JJ.) stayed the second part (reduced-load reassessment) pending final hearing, and did not decide the clause 5.7 question.

FACTUAL SUMMARY

In respect of the supply of electricity to the first respondent, J.P. International Sports Ltd., for the period 27 October 2011 to 20 March 2012, a dispute arose over the demand raised by the petitioner-licensee, Pashchimanchal Vidyut Vitran Nigam Ltd. The dispute was resolved by a Committee on the basis of clause 5.7 of the U.P. Electricity Supply Code, 2005, and on the report of the Committee dated 9 November 2015 a bill was raised. The first respondent complained to the Consumer Grievance Redressal Forum in September 2016, praying that the bill for the period 27.10.2011 to 20.03.2012 — when no meter was installed — be corrected under clause 5.7 on the basis of the average of three months' consumption after installation of the meter. The Forum dismissed the complaint; the first respondent appealed to the Electricity Ombudsman, which by order dated 28 December 2018 remanded the matter; the Forum again confirmed its earlier order on 14 June 2019; on a recall application (allowed 5 March 2020 for want of notice after remand) the Forum re-examined the matter and passed the impugned order dated 22 March 2021, whose operative portion had two parts: the first implemented the Committee's report for consumption from 27.10.2011 to 23.11.2011, and the second provided that if the complainant deposited the amount for that period within one month, the consumption for the remaining period would be assessed on reduced load. Aggrieved only by the second part, the licensee filed Writ - C No. 15712 of 2021, contending that supply without a meter attracts clause 5.7 and its three-months-average measure, on which the Committee had already reported, leaving no justification to further reduce the consumption. On 26 July 2021 the Division Bench, finding the matter required consideration, stayed the second part of the Forum's order pending final hearing; the interim order was extended on later dates and the matter, passing through several benches, was last listed for 1 May 2023.

REUSABLE CONSTRUCTIONS

1. Where electricity has been supplied without a meter, clause 5.7 of the U.P. Electricity Supply Code, 2005 is attracted and the bill is to be raised on the basis of the average of three months' consumption after installation of the

meter; a licensee may contend that, the assessment Committee having reported on that very basis, there is no justification for a forum to further reduce the consumption on 'reduced load'. **order of 26.07.2021**

2. At the instance of the licensee, a Consumer Grievance Redressal Forum's direction to reassess a demand on reduced load may be stayed pending final hearing, while the part of the order that merely implements the assessment Committee's report is left to operate. **order of 26.07.2021**

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.7

OBITER

Interim stay of a Consumer Grievance Redressal Forum's direction to reassess a demand on reduced load

QUESTION

Pending decision on the licensee's challenge, should the Forum's direction to reassess the demand on the basis of reduced load be stayed?

HOLDING

Finding that the matter required consideration, the Division Bench stayed, till the next date of listing, the effect and operation of the Forum's order dated 22 March 2021 to the extent it directs re-assessment of the demand with reduced load; the first part of the order (implementing the Committee's report for 27.10.2011 to 23.11.2011) was left untouched. The relief was interlocutory and the interim order was extended on later dates. **order of 26.07.2021**

QUALIFIER

Interlocutory direction on a pending writ; the clause 5.7 question is not decided.

EVIDENCE *"The matter requires consideration."* **order of 26.07.2021**

EVIDENCE *"Till the next date of listing, the effect and operation of the order dated 22.03.2021 to the extent it directs for re-assessment of the demand with reduced load shall remain stayed."* **order of 26.07.2021**

FLAG Order-sheet compilation (26.7.2021 to 24.4.2023) without printed page numbers or numbered paragraphs; pins are order dates. Coram is the bench that passed the substantive interim order dated 26.7.2021; the matter later travelled through other benches. Petitioner is the licensee.

HOLDING-UNIT · UP-2005::5.7

OBITER

Whether an unmetered period must be billed on three months' average consumption under clause 5.7, precluding a 'reduced load' reduction

QUESTION

Where electricity is supplied without a meter, must the bill be raised on the basis of three months' average consumption after installation of the meter under clause 5.7 of the Supply Code, so as to preclude a further reduction on 'reduced load'?

HOLDING

The petitioner-licensee contended that supply without a meter attracts clause 5.7 of the Supply Code, under which the bill is to be raised on the basis of three months' average consumption after installation of the meter, and that as the Committee had already reported on that very basis there was no justification to further reduce the consumption. The Court recorded that the matter required consideration and did not decide the point, granting interim protection. **order of 26.07.2021**

QUALIFIER

Prima facie only; recorded as requiring consideration and left for final decision.

EVIDENCE *"if the electricity supply is made without a meter, clause 5.7 of the Code gets attracted. As per which, the bill is to be raised on the basis of three months average consumption after installation of the meter."* **order of 26.07.2021**

EVIDENCE *"It has been submitted that the Committee submitted the report on that very basis therefore, there was no justification to further reduce the consumption."* **order of 26.07.2021**

FLAG Order-sheet source; pins are order dates.

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances

The consumer's billing grievance over an unmetered period was adjudicated through the Consumer Grievance Redressal Forum and the Electricity Ombudsman (which remanded on 28.12.2018) before the licensee challenged the Forum's final order of 22.03.2021 in this writ. [order of 26.07.2021](#)

no-meter-billing-on-three-months-average-clause-5.7

The licensee contended that supply given without a meter attracts clause 5.7, requiring the bill to be raised on three months' average consumption after meter installation — the basis on which the Committee had reported — leaving no room for a further reduction on reduced load; recorded as requiring consideration. [order of 26.07.2021](#)

interim-stay-of-forum-direction-to-reassess-on-reduced-load

The second part of the Forum's order, directing reassessment of the remaining period on reduced load, was stayed pending final hearing at the licensee's instance, while the part implementing the Committee's report was left to operate. [order of 26.07.2021](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER, WHERE ELECTRICITY IS SUPPLIED WITHOUT A METER, CLAUSE 5.7 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 REQUIRES THE BILL TO BE RAISED ON THE BASIS OF THREE MONTHS' AVERAGE CONSUMPTION AFTER INSTALLATION OF THE METER, SO AS TO PRECLUDE THE FORUM'S DIRECTION TO REASSESS THE REMAINING PERIOD ON REDUCED LOAD

Recorded on 26 July 2021 as requiring consideration; the reduced-load reassessment was stayed and the question left for final decision. Compare the spine authority confining a comparable three-months measure in a metering dispute. [\[SCJ-203\]](#)

[order of 26.07.2021](#)

RELATED CASES — SEE ALSO

SCJ-203 — Applies the three-months-consumption yardstick to a metering discrepancy (clause 5.6(c)(ii)) — the same 'three months' average' measure the licensee here invokes under clause 5.7 for the unmetered period; also a dispute against the Pashchimanchal Nigam.

SCJ-1055 — Spine sibling on the clause 7.10 route — the Consumer Grievance Redressal Forum / Ombudsman machinery through which this billing dispute was adjudicated before the licensee brought it to the writ court.

SCJ-1137 — Another clause 7.10 billing-grievance matter routed through the Consumer Grievance Redressal Forum, the forum whose order the licensee challenges here.

Chaudhary Nursing Home Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 7 December 2020 · Writ-C No. 41868 of 2011 · **Writ disposed; relegated to CGRF; interim continued three weeks**

HEADNOTE

Challenge to an 18-month slow-metering supplementary bill as contrary to clause 5.6 of the U.P. Electricity Supply Code, 2005. The Division Bench held the dispute was factual and not examinable under Article 226, relegated the consumer to the Consumer Grievance Redressal Forum under the 2007 Regulations, and continued 2011 interim protection for three weeks. Clause 5.6 and the HV-2 tariff issue were not decided.

FACTUAL SUMMARY

Chaudhary Nursing Home challenged PVVNL's June 2011 supplementary bill of about Rs. 17.48 lakh for alleged slow metering over 18 months from December 2009. A check meter installed in June 2011 showed the old meter slow beyond the permissible limit and it was replaced. The consumer argued that clause 5.6 confined such assessment to three months, and also disputed HV-2 tariff enhancement. The High Court had in 2011 stayed further action on a Rs. 4 lakh deposit.

HOLDING-UNITS

INTERPLAY · UP-2005::5.6

slow-meter supplementary bill — Article 226 vs CGRF

HOLDING

Whether a slow-metering supplementary bill may run for 18 months on a check-meter report, or only three months under clause 5.6, is a question of fact that cannot be enquired into under Article 226. The consumer must approach the Consumer Grievance Redressal Forum under the UPERC (CGRF and Electricity Ombudsman) Regulations, 2007, which may also hear an HV-2 tariff dispute. The writ is disposed of without entering the merits; interim protection continues for three weeks and stands vacated if the Forum is not approached. ¶ 3

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances Challenge to an 18-month slow-metering supplementary bill as contrary to clause 5.6 of the U.P. Electricity Supply Code, 2005.. ¶ 3

meter-dispute-must-exhaust-clause-5.6-before-writ Challenge to an 18-month slow-metering supplementary bill as contrary to clause 5.6 of the U.P. Electricity Supply Code, 2005.. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 5.6 CONFINES A SLOW-METERING SUPPLEMENTARY BILL TO THREE MONTHS, AND WHETHER A CHECK-METER REPORT CAN FOUND AN 18-MONTH DEMAND

¶ 2-3

NOT DECIDED — HV-2 TARIFF ENHANCEMENT

¶ 3

Shiv Kumar Yadav v. State of U.P.

Allahabad High Court · Division Bench · 6 October 2020 · WRIT - C No. 12137 of 2020 · **Writ dismissed; remaining billing grievance relegated to clause 7.10.**

HEADNOTE

After the Executive Engineer decided the consumer's representation against a demand notice and recovery citation, the High Court dismissed the writ and left any further billing grievance to the competent authority under clause 7.10 of the Electricity Supply Code, 2005. Clauses 5.6 and 6.5, invoked in the prayer for a corrected bill on a new meter, were not construed.

FACTUAL SUMMARY

Shiv Kumar Yadav challenged a demand notice dated 1 August 2019 issued by the Executive Engineer, Electricity Distribution-II, Mughalsarai, U.P. Power Corporation Limited, Chandauli, and a recovery citation dated 1 October 2019 issued by the Tehsildar, Mughalsarai. He sought a mandamus for a correct bill on a newly installed meter under clauses 5.6 and 6.5 of the Electricity Supply Code, 2005. After adjournments, counsel for the Power Corporation produced an order dated 30 September 2020 on the petitioner's representation of 13 January 2020.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

forum after executive engineer decides billing representation

HOLDING

Where the Executive Engineer has already considered the consumer's representation against a demand notice and recovery citation, any remaining billing grievance is to be taken to the competent authority under clause 7.10 of the Electricity Supply Code, 2005, and the writ is dismissed. ¶ 1

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances After the Executive Engineer decided the petitioner's representation on the demand and recovery, the Court dismissed the writ and left further billing grievance to the clause 7.10 forum. ¶ 1

consumer-grievance-redressal-forum-remedy-clause-7.10 The Court treated clause 7.10 as the remaining statutory route once respondent No. 2 had already passed an order on the representation. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND NOTICE DATED 1.8.2019 AND THE RECOVERY CITATION DATED 1.10.2019

¶ 1

NOT DECIDED — WHETHER A CORRECTED BILL WAS DUE UNDER CLAUSES 5.6 AND 6.5 ON THE NEWLY INSTALLED METER

¶ 1

NOT DECIDED — DISCREPANCY BETWEEN THE AMOUNT IN THE DEMAND NOTICE AND THE RECOVERY CITATION

Raised at the 28.9.2020 listing; not decided in the final order. ¶ 1

Executive Engineer (Distribution), Electricity Distribution Division, KESCO v. Presiding Officer, Electricity Consumer Grievance Redressal Forum

High Court of Judicature at Allahabad · Division Bench · 19 October 2019 · Writ - C No. 33426 of 2019 · WRIT - C No. - 33426 of 2019 · **Writ petition dismissed; Forum order directing actual-consumption billing without penalty stands.**

HEADNOTE

A licensee cannot sustain a twenty-six-month cumulative assessment for a missing current transformer merely because MRI reports later showed the CT absent throughout that period. Where correctness of the meter is in issue, Electricity Supply Code, 2005 requires the meter to be checked in the consumer's presence, an assessment for a defective meter only after opportunity to the consumer, and, if the consumer demands, reference to the Inspector. Failure to follow that procedure, and unexplained inaction despite months of MRI indications, left the licensee's writ against the Forum without merit.

FACTUAL SUMMARY

KESCO's distribution division at Dadanagar, Kanpur Nagar, challenged a 26 July 2019 order of the Electricity Consumer Grievance Redressal Forum. The Forum had set aside a cumulative bill of Rs 32,93,796 raised after an inspection on 2 February 2018 found the current transformer of the main meter missing. The licensee had assessed twenty-six months because MRI reports showed the CT missing throughout that period. The Forum held the bill contrary to Electricity Supply Code, 2005 paragraph 5.7(g) and directed billing of consumption actually recorded, without penalty or surcharge.

REUSABLE CONSTRUCTIONS

1. A licensee who finds a current transformer missing on inspection cannot raise a retrospective multi-month assessment unless it has followed the Supply Code procedure for checking the meter in the consumer's presence and for billing a defective meter after giving the consumer an opportunity. ¶ 4-5
2. Where MRI reports already showed a missing CT over many months, unexplained failure to act on the first such report, and failure to test the CT, disentitles the licensee to sustain the additional demand in a writ against the Forum. ¶ 4

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.7(g)

defective-meter / missing-CT assessment

HOLDING

The Division Bench dismissed KESCO's writ against the Forum order that set aside a Rs 32,93,796 assessment for a missing main-meter CT over twenty-six months. Counsel could not explain why the defect, if already visible in MRI reports throughout that period, was not acted on at the first report, nor show that the CT was tested. Correctness of the meter being central, the licensee had to follow the Code 2005 procedure for checking the meter in the consumer's presence (and, if demanded, referring the matter to the Chief Administrative Inspector) and for raising an assessment for a defective meter only after opportunity to the consumer. The additional demand was raised without that procedure. The petition was dismissed. ¶ 3-6

FLAG Court attributes the presence-of-consumer check, Inspector-reference, and defective-meter assessment-after-opportunity duties to Code 2005 para 5.7(g), using the title 'Chief Administrative Inspector'.

ombudsman-cannot-direct-contrary-to-act-and-code A licensee cannot sustain a twenty-six-month cumulative assessment for a missing current transformer merely because MRI reports later showed the CT absent throughout that period.. ¶ 3-6

SCJ-2112 · Executive Engineer (Distribution), Electricity Distribution Division, KESCO v. Presiding Officer, Electricity Consumer Grievance Redressal Forum · Writ - C No. 33426 of 2019 · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.

Madhyanchal Vidyut Vitran Nigam Limited v. Permanent Lok Adalat

High Court of Judicature at Allahabad · Single Judge · 14 October 2019 · WRIT - C No. 28207 of 2019 · **Writ petition dismissed; Permanent Lok Adalat award left undisturbed.**

HEADNOTE

A distribution licensee's writ against a Permanent Lok Adalat award directing computation of an electricity bill was dismissed. An oral plea that the Adalat had skipped conciliation before deciding the claim was not pleaded in the petition and was not entertained. Counsel also failed to show that the billing directions violated any provision or procedure of the U.P. Electricity Supply Code, 2005. The Court found no ground to interfere.

FACTUAL SUMMARY

Madhyanchal Vidyut Vitran Nigam Limited, a distribution licensee, filed a writ petition impugning an award of the Permanent Lok Adalat that had issued directions for computation of an electricity bill. After two dates on which none appeared for the petitioner, counsel at the hearing orally submitted that the Permanent Lok Adalat had not undertaken any conciliation process before deciding the claim on merits, and that the award's billing directions fell foul of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.9(c)

bill computation in Permanent Lok Adalat award

HOLDING

A writ against a Permanent Lok Adalat award directing computation of an electricity bill will not be entertained where the licensee neither pleaded that conciliation was skipped nor established that the award's billing directions violate any statutory provision or procedure under the U.P. Electricity Supply Code, 2005.

¶ 1

PRINCIPLE TAGS

bill-computation-in-permanent-lok-adalat-award A distribution licensee's writ against a Permanent Lok Adalat award directing computation of an electricity bill was dismissed. An oral plea that the Adalat had skipped conciliation before deciding the claim was not pleaded in the petition and was not entertained.. ¶ 1

M/s New Fab Engineering Works v. Paschimanchal Vidyut Vitran Nigam

High Court of Judicature at Allahabad · Division Bench · 15 April 2019 · Writ - C No. 11292 of 2019 · **Stay of assessment and citation; supply restored through new meter pending writ.**

HEADNOTE

Writ challenging on-spot meter testing after the licensee broke open the meter. Without deciding the clause 5.6(c)(iii) independent-laboratory plea, the Court stayed the assessment orders and citation and directed restoration of supply through a new tested meter; the writ remained pending.

FACTUAL SUMMARY

The petitioners, M/s New Fab Engineering Works, challenged PVVNL orders dated 26.12.2018 and 19.12.2018 and a citation dated 15.02.2019. They alleged that licensee officials came to their premises, removed the electricity meter, broke it open, and tested it on the spot through the Assistant Engineer (Meter). They contended that clause 5.6(c)(iii) of the Electricity Supply Code, 2005 required testing in an independent laboratory of the consumer's choice, and that sending the already tampered meter for laboratory testing would serve no purpose.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

interim stay and restoration pending writ on meter-testing challenge

HOLDING

Pending a writ challenging assessment and citation after alleged on-spot testing of a meter broken open by the licensee, the Court stayed the impugned orders dated 26.12.2018, 19.12.2018 and the citation dated 15.02.2019, and directed restoration of the petitioners' electricity connection through a new tested meter. The clause 5.6(c)(iii) independent-laboratory issue was not decided. Later listings extended the stay; the writ remained pending. ¶ 15.4.2019

PRINCIPLE TAGS

procedural-listing-no-construction Writ challenging on-spot meter testing after the licensee broke open the meter. Without deciding the clause 5.6(c)(iii) independent-laboratory plea, the Court stayed the assessment orders and citation and directed restoration of supply through a new tested meter; the writ remained pending. ¶ 15.4.2019

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ON-SPOT TESTING OF A METER BROKEN OPEN BY THE LICENSEE COMPLIES WITH CLAUSE 5.6(C)(III) (INDEPENDENT LABORATORY OF THE CONSUMER'S CHOICE).

Only stay and restoration through a new tested meter were granted; the writ was listed for counter affidavit and remained pending. ¶ 15.4.2019

Mukhtar Ahmad v. State of Uttar Pradesh

High Court of Judicature at Allahabad · Division Bench · 1 March 2019 · WRIT - C No. 7205 of 2019 · **Writ allowed; order dated 10.10.2017 set aside; representation to be decided within one month.**

HEADNOTE

A representation under Clause 5.9 of the U.P. Electricity Supply Code, 2005 cannot be refused until compounding fee is deposited. The Code contains no such condition precedent. KESCO's order holding the representation in abeyance for want of compounding fee was illegal and was set aside, with a direction to decide the representation within one month.

FACTUAL SUMMARY

The petitioner's earlier writ (Writ Petition No. 21918 of 2017) over a defective electricity meter was disposed of on 18 May 2017, leaving him to seek redress under Clause 5.9 of the U.P. Electricity Supply Code, 2005. He made a representation dated 5 October 2017. The Executive Engineer, Urban Electricity Distribution Division, KESCO, by order dated 10 October 2017, refused to decide it unless compounding fee was first deposited. With consent the Division Bench decided the writ finally on the record, without a counter-affidavit.

REUSABLE CONSTRUCTIONS

1. No provision of the U.P. Electricity Supply Code, 2005 requires a consumer to deposit compounding fee before a representation under Clause 5.9 is decided; an order making such deposit a condition of hearing the representation is illegal. ¶ 4

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.9(c)

compounding fee as condition to deciding a Clause 5.9 representation

HOLDING

There is no provision requiring a person to deposit compounding fee before a representation under Clause 5.9 of the U.P. Electricity Supply Code, 2005 is decided. An order of the Executive Engineer refusing to decide such a representation unless compounding fee is first deposited is illegal and is set aside. The competent authority must take a final decision on the representation expeditiously, and in any case within one month of production of a certified copy of the order. ¶ 4-5

FLAG Court cited Clause 5.9 generally; catalog key is 5.9(c).

PRINCIPLE TAGS

compounding-fee-not-precondition-clause-5.9 KESCO's 10.10.2017 direction that the petitioner first deposit compounding fee, else his Clause 5.9 representation would not be decided, was held unsupported by any provision and was quashed. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CLAUSE 5.9 DEFECTIVE-METER REPRESENTATION DATED 5 OCTOBER 2017

Remitted to the competent authority for a final decision within one month; only the compounding-fee precondition was decided. ¶ 5

M/s Anees Rayin And Company v. Dakshinanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 7 February 2019 · Writ - C No. 2018 of 2019 · **Writ disposed; petitioner directed to object to the provisional assessment; coercive action stayed one month.**

HEADNOTE

Where a meter-testing challenge under Clause 5.6 of the Electricity Supply Code, 2005 is still at the provisional-assessment stage, the High Court will not decide the Code grievance on writ. The consumer is to file an objection before the Assessing Officer raising non-compliance with Clause 5.6; the officer is to consider it and pass an order in accordance with law. Coercive action on the demand was stayed for one month.

FACTUAL SUMMARY

The petitioner's meter was replaced and the old meter sent for testing to the manufacturer, M/s Secure Meter Limited, Gurgaon, not the licensee's laboratory or a laboratory of the consumer's choice. Challenging a notice-cum-assessment dated 1 December 2018 and a temporary disconnection order dated 24 November 2018, the petitioner alleged breach of Clause 5.6(c)(iii) of the Electricity Supply Code, 2005. The distribution company said the demand remained a provisional assessment, no final assessment had been made, and the petitioner had filed no objection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6

objection to provisional assessment after disputed meter testing

HOLDING

A consumer who alleges that Clause 5.6 of the Electricity Supply Code, 2005 was not followed in meter testing, while the demand is still only a provisional assessment, must file an objection before the Assessing Officer raising that grievance. The officer is then to consider the objection and pass an appropriate order in accordance with law. The High Court will not decide the Clause 5.6 controversy on writ at that stage. ¶ 3

PRINCIPLE TAGS

meter-dispute-must-exhaust-clause-5.6-before-writ

Where a meter-testing challenge under Clause 5.6 of the Electricity Supply Code, 2005 is still at the provisional-assessment stage, the High Court will not decide the Code grievance on writ.. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER SENDING THE OLD METER TO THE MANUFACTURER FOR TESTING COMPLIED WITH CLAUSE 5.6

Left to the Assessing Officer if the consumer files an objection to the provisional assessment. ¶ 3

Shamsul Qamar v. PVVNL and Others

Allahabad High Court · Division Bench · 14 December 2018 · Writ - C No. 25431 of 2008 · **Writ allowed; 28.11.2007 provisional assessment quashed; liberty to supply lab report and issue fresh bill**

HEADNOTE

A provisional theft assessment cannot stand where the licensee has removed the meter for laboratory testing under clause 8.1(vii) of the U.P. Electricity Supply Code, 2005 (testing to follow clause 5.6) but has not supplied the laboratory report. The inspection report itself made that report binding on the parties; the bill did not disclose or even mention it; and uncontroverted pleadings were that no testing date was fixed and no result given. Pointing the consumer to objections under section 126(3) of the Electricity Act, 2003 does not save the bill, because those objections cannot be filed without the report. The 28 November 2007 provisional assessment is quashed as illegal and in violation of clause 8.1(vii), with liberty to supply the laboratory report and then issue a fresh provisional bill, to which the consumer may object.

FACTUAL SUMMARY

Shamsul Qamar ran an ice factory, M/s Amna Mini Cold Storage, at village Mustafabad, Rampur Road, Moradabad, on an LMV-6 LT connection from PVVNL. On 19 November 2007 department officers inspected the premises, recorded that the meter was displaying magnetic tamper, removed it and sent it for laboratory testing. Condition (4) of the inspection report stated that the old meter was being sent for laboratory testing and that the report would bind the parties. A provisional assessment bill dated 28 November 2007 was then raised and challenged in this writ.

The petitioner pleaded that neither had the meter been tested as clause 8.1(vii) of the U.P. Electricity Supply Code, 2005, read with clause 5.6, requires, nor had he been given a testing date or any laboratory result. Those averments (writ paragraphs 15 and 16) were not denied in the counter affidavit, which said only that he might file objections under section 126(3) of the Electricity Act, 2003. The bill itself did not disclose or even mention a laboratory report of the old meter.

REUSABLE CONSTRUCTIONS

1. Where a meter is removed for laboratory testing under Clause 8.1(vii) (testing to follow Clause 5.6), a provisional theft assessment cannot stand unless the laboratory report is supplied. ¶ 3-7
2. A bill that neither discloses nor mentions the laboratory report is illegal, even if the inspection itself recorded that the report would bind the parties. ¶ 3-7
3. Relegation to section 126(3) objections does not save the bill: those objections cannot be filed until the meter-testing report is provided. ¶ 5

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1(VII)

Laboratory report of a meter removed for testing must be supplied before a provisional theft assessment can stand

QUESTION

Can a licensee issue a provisional theft assessment after removing a meter that displayed magnetic tamper, without testing it as clause 8.1(vii) (read with clause 5.6) requires and without supplying the laboratory report?

HOLDING

No. Clause 8.1(vii) requires that, on prima facie evidence of theft by tampering, the meter be removed, sealed and tested in accordance with clause 5.6. The 19.11.2007 inspection itself recorded that the old meter was sent for laboratory testing and that the report would bind the parties. The petitioner's uncontroverted case was that the meter was not so tested, no testing date was given, and no laboratory result was supplied. The 28.11.2007 bill did not disclose or even mention a laboratory report. The bill is illegal, arbitrary and in violation of clause 8.1(vii), and is quashed. The department may supply the laboratory report and then issue a fresh provisional assessment, to which the petitioner may object. ¶ 3-7

QUALIFIER

The Court did not decide whether magnetic tamper or theft was established, nor the quantum of any assessment.

FLAG Source PDF concatenates listing orders of 11.11.2011, 14.11.2018, 27.11.2018 and 5.12.2018 with this 14.12.2018 disposal. Cited as clause 8.1(vii); catalog key UP-2005::8.1(VII). The 14.12.2018 order is unnumbered; paras 3-7 are the petitioner's submission, the quoted clause, the uncontroverted pleadings, the quashing and the liberty.

INTERPLAY · EA2003::126(3)

Section 126(3) objections cannot be insisted on until the laboratory testing report is supplied

QUESTION

Does an invitation to file objections under section 126(3) save a provisional theft bill issued without supplying the laboratory report of the removed meter?

HOLDING

No. The counter affidavit did not deny the non-testing and non-supply of the report, and said only that the petitioner might object under section 126(3). Unless the meter-testing report is provided, the consumer cannot file those objections. Relegation to section 126(3) therefore does not sustain the bill. ¶ 5

PRINCIPLE TAGS

clause-5.6d-meter-testing-procedure-mandatory-for-theft-finding Clause 8.1(vii) incorporates clause 5.6 testing. A provisional theft bill raised after the meter is removed for laboratory testing, without a testing date and without supplying the laboratory report that the inspection itself made binding, is illegal. Same 5.6 testing-before-theft-finding cluster as SCJ-114 and SCJ-161. ¶ 3-7

s126-procedural-strictness-notice-and-hearing A licensee cannot meet a challenge to a provisional theft bill merely by pointing the consumer to section 126(3) objections when the laboratory report of the removed meter has not been supplied. Those objections cannot then be filed. ¶ 5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER MAGNETIC TAMPER OR THEFT WAS IN FACT ESTABLISHED, AND THE QUANTUM OF ANY ASSESSMENT

Left open. Liberty to supply the laboratory report and issue a fresh provisional bill, to which the petitioner may object. ¶ 6-7

NOT DECIDED — INDEPENDENT BREACH OF NUMBERED SUB-CLAUSES OF CLAUSE 5.6 (INCLUDING 5.6(C)(III) VENUE OPTION AND 5.6(D) TESTING-DATE NOTICE)

Petitioner invoked clause 8.1(vii) read with clause 5.6 generally, including that no testing date was fixed. The Court keyed the quashing to clause 8.1(vii) and non-supply of the laboratory report; it did not parse 5.6 sub-clauses. ¶ 3-5

Rituraj v. State of U.P. & Others

Allahabad High Court · Division Bench · 14 December 2017 · 2017 SCC OnLine All 3786 · C.M.W.P. No. 35477 of 2016 · **Writ petition allowed with costs; assessment, demand and test report quashed**

HEADNOTE

A demand raised on the strength of meter testing is illegal where the consumer was given no intimation/notice of the testing as required by Clause 5.6(d) of the U.P. Electricity Supply Code, 2005, and where the consumer was never apprised of the right under Clause 5.6(c)(iii) to have the sealed meter tested at an independent lab. Following the Division Bench in *Amrawati Devi and Mohd. Sagir*, the licensee has a duty to apprise the consumer of the testing-venue option; failure renders the sealing and testing illegal. Following *Modern Rice Mill*, a report of a laboratory that is not an independent test laboratory — in particular the meter manufacturer's own lab (*Secure Meters Ltd.*) — cannot be relied upon: no one can be a judge in his own cause, the manufacturer has a commercial interest and bias, and its lab is not an 'independent laboratory' under Clause 5.6(b)(iii). Here no intimation was given for testing of the meter seals; the assessment order, demand notice and test-lab report are quashed, with liberty to proceed afresh in accordance with law.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6(d)

Assessment based on meter/seal testing without the Clause 5.6(d) intimation is illegal

QUESTION

Is a demand valid where it rests on testing of meter seals conducted without giving the consumer the Clause 5.6(d)(i) intimation/notice of testing?

HOLDING

No. Clause 5.6(d) makes it imperative to inform the consumer of the proposed date of testing, give him an opportunity to be present, obtain his signature and preserve his right to dispute the result. Here no intimation was given for the alleged testing of the meter seals; the assessment order is per se illegal and, with the demand notice and the test-lab report, is quashed. ¶ 2, 6

LIMITING FACTS

Demand raised on a testing report dated 17.2.2017 that showed no defect or even doubt about the meter seals, and without the Clause 5.6(d)(i) notice.

HOLDING-UNIT · UP-2005::5.6(c)(iii)

Meter manufacturer's lab is not an 'independent laboratory'; duty to offer the venue option

QUESTION

Can the licensee rely on a testing report of the meter manufacturer's own laboratory, and need it apprise the consumer of the independent-testing option?

HOLDING

No to the first, yes to the second. Applying *Amrawati Devi and Mohd. Sagir*, the licensee must apprise the consumer of the Clause 5.6(c)(iii) right to have the sealed meter tested at an independent agency; failure renders the proceedings illegal. Applying *Modern Rice Mill*, a report of a non-independent lab cannot be relied upon: the meter manufacturer (*Secure Meters Ltd.*) has a commercial interest and cannot be a judge in its own cause, and its lab is not an 'independent laboratory' under Clause 5.6(b)(iii). ¶ 4-6

FLAG Follows the corpus cases SCJ-162 (*Amrawati Devi*) and SCJ-153 (*Mohd. Sagir*), and *Modern Rice Mill*, on Clause 5.6.

PRINCIPLE TAGS

clause-5.6d-meter-testing-procedure-mandatory-for-theft-finding The Clause 5.6(d) procedure — advance intimation of the testing date, opportunity to be present, signature, right to dispute — is mandatory; an assessment on testing done without the

5.6(d)(i) intimation is illegal. Lead authorities: *Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd.*.. ¶ 2, 6

meter-manufacturer-testing-not-independent A meter manufacturer's own laboratory (Secure Meters Ltd.) is not an 'independent laboratory' under Clause 5.6(b)(iii); its report cannot be relied upon because it has a commercial interest and cannot be a judge in its own cause. Lead authorities: *Modern Rice Mill v. Madhyanchal Vidyut Vitran Nigam Ltd.*.. ¶ 5

meter-testing-venue-option-must-be-offered-before-sealing The licensee must apprise the consumer of the Clause 5.6(c)(iii) right to choose the testing venue, including independent testing, before testing a sealed meter. ¶ 4-6

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd.</i> (2009) 74 ALR 701 Allahabad High Court (Division Bench)	The licensee must apprise the consumer of the Clause 5.6(c)(iii) right to have a sealed meter tested at an independent agency; failure renders the sealing and testing illegal, and no waiver runs without knowledge of the right.	Followed and quoted at length. (Digested in the corpus as SCJ-162.) ¶ 4	Petitioner	Followed
<i>Mohd. Sagir v. Dakshinanchal Vidyut Vitran Nigam Ltd.</i> (2014) 105 ALR 603 Allahabad High Court (Division Bench)	Clause 5.6 applies to tampered meters too and the Clause 5.6(c)(iii) testing-venue option must be offered before testing.	Relied on. (Digested in the corpus as SCJ-153.) ¶ 3	Petitioner	Relied on
<i>Modern Rice Mill v. Madhyanchal Vidyut Vitran Nigam Ltd.</i> 2012 (1) ADJ 296 : (2012) 90 ALR 12 Allahabad High Court	A report of a laboratory that is not independent — in particular the meter manufacturer's own lab — cannot be relied upon; the manufacturer cannot be a judge in its own cause and its lab is not an 'independent laboratory'.	Followed and quoted (paras 48-52) on the manufacturer-lab point. ¶ 5	Petitioner	Followed
<i>JMD Alloys Ltd.</i> Patna High Court	Sending a meter for testing to the accredited laboratory of its manufacturer/supplier (Secure Meters Ltd.) is likely to create a strong bias on the part of the supplier/manufacturer.	Noticed within the quoted Modern Rice Mill extract in support of the manufacturer-bias point. ¶ 5	Court	Referred

SCJ-161 · Rituraj v. State of U.P. & Others · 2017 SCC OnLine All 3786 · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.

Gee Cee Cycle Balls Pvt. Ltd. v. State of U.P. and 2 Others

High Court of Judicature at Allahabad · Division Bench · 24.5.2017 · WRIT - C No. 17548 of 2017; connected Civil Misc. Amendment Application No. 5 of 2023, Civil Misc. Delay Condonation Application No. 09 of 2026, and Civil Misc. Restoration Application No. 10 of 2026 · **Interlocutory order-sheet series; the underlying Supply-Code billing dispute was never decided on the merits. By its order of 24.5.2017 the Division Bench found the dispute to prima facie require scrutiny, directed a counter affidavit within six weeks and a rejoinder within two weeks, and stayed both recovery under the assessment bill (Annexure 11) and disconnection under the impugned order dated 10.3.2017, subject to the petitioner depositing the amount calculated by the respondent for the last three months from the date the dispute arose (9.12.2016) within ten days of demand and continuing to pay current bills. After a long procedural history the petition was disposed of / consigned to record for non-prosecution off the 'Oldest Pending Cases' Warning List (5.8.2025, Neutral Citation 2025:AHC:132157-DB) with liberty to seek recall, and was then restored to its original number, the disposal order being recalled, on sufficient cause (17.8.2026). The writ petition stands pending; no merits ruling has been delivered.**

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HEADNOTE

In a company consumer's challenge to an assessment bill said to have been raised on the difference between the consumer meter and the double-pole meter, the Division Bench did not decide the billing dispute but granted conditional interim protection. The petitioner invoked Clause 5.6 of the U.P. Electricity Supply Code, 2005 (only bills for the three months previous to the month in which the dispute arose being chargeable) to attack a nine-month assessment; the respondent relied on Clause 5.7 as inserted by the Electricity Supply Code (Fifth Amendment), 2005 (effective 24.7.2014), under which, where a working double-metering system exists, the double-pole/substation/audit meter reading governs billing on a per-day basis for the period between the last reading and replacement of the defective meter, the amended clause also permitting the three-month consumer/double-pole difference to be considered. Holding the issue prima facie to 'require scrutiny', the Court (24.5.2017) directed pleadings and stayed recovery under the assessment bill (Annexure 11) and disconnection under the order dated 10.3.2017, conditional on the petitioner depositing the amount the respondent calculated for the last three months from the date the dispute arose (9.12.2016) within ten days of demand and continuing to pay current bills. The competing readings of Clauses 5.6 and 5.7, the legality of the consumer/double-pole billing basis, and the lawfulness of the nine-month assessment were all left open. On the later procedural track, the petition was disposed of for non-prosecution off the Warning List (5.8.2025) with liberty to seek recall, and was then restored to its original number, the disposal order being recalled, on the Court finding sufficient cause for the delay and the non-appearance (17.8.2026); the petition remains pending.

FACTUAL SUMMARY

The petitioner, Gee Cee Cycle Balls Pvt. Ltd., a company, filed WRIT - C No. 17548 of 2017 in the Allahabad High Court against the State of U.P. and the electricity respondents (respondents 2 and 3), challenging an assessment bill and a disconnection order dated 10.3.2017. The dispute arose on 9.12.2016. The company contended that under the Electricity Supply Code, 2005 and various (unnamed) government circulars an assessment bill could not be raised on the basis of the difference between the consumer meter and the double-pole meter, and that Section/Clause 5.6 of the Code confined the chargeable period to the three months previous to the month in which the dispute arose, so that the respondents' nine-month bill (Annexure 11) was excessive and illegal. In reply the respondents relied on Clause 5.7 as amended by the Electricity Supply Code (Fifth Amendment), 2005 (effective 24.7.2014), under which, where a healthy double-metering system exists, the double-pole/substation/audit meter reading governs billing on a per-day basis for the period between the last reading and replacement of the defective meter, and which also permits the three-month consumer/double-pole difference to be considered. By order of 24.5.2017 (Krishna Murari and Ravindra Nath Kakkar, JJ.) the Division Bench found the issue prima facie to require scrutiny, directed a counter affidavit and rejoinder, and granted a conditional interim stay. The record that follows is a compiled series of order-sheet entries (with the coram changing across benches) running to 17.8.2026: pleadings were completed by 2018, an amendment application (Civil Misc. Amendment Application No. 5 of 2023) was allowed on 29.7.2024, the petition was disposed of for non-prosecution off the 'Oldest Pending Cases' Warning List on 5.8.2025 (Neutral Citation 2025:AHC:132157-DB) with liberty to seek recall, and on 17.8.2026 (Prakash Padia and Vivek Saran, JJ.) the Court condoned the delay, allowed the restoration application, recalled the 5.8.2025 order and restored the writ petition to its original number. The merits of the billing dispute remain undecided.

REUSABLE CONSTRUCTIONS

1. Where a Supply-Code billing dispute turns on genuinely competing clause readings - the consumer invoking Clause 5.6's three-month cap against a nine-month assessment raised on the consumer-meter/double-pole-meter difference, the licensee invoking the Fifth-Amendment Clause 5.7 (per-day double-pole/substation/audit reading, with the three-month difference also considered) - a Division Bench may hold the issue prima facie to 'require scrutiny' and grant interim protection rather than resolve the clause conflict at the threshold. **order of 24.5.2017**
2. Interim stay of recovery under a disputed assessment bill and of disconnection may be granted on terms: deposit of the amount the licensee calculates for the last three months from the date the dispute arose, within ten days of demand, coupled with continued payment of current bills as generated, pending final adjudication. **order of 24.5.2017**
3. A writ petition disposed of / consigned to record for non-prosecution off the 'Oldest Pending Cases' Warning List, with liberty to seek recall if the cause of action survives, can be restored to its original number and the disposal order recalled on sufficient cause shown for the non-appearance and for the delay in moving. **order of 5.8.2025; order of 17.8.2026**

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6

RATIO

Conditional interim stay of recovery and disconnection where the billing basis and period for a disputed assessment (Clause 5.6 three-month cap vs Fifth-Amendment Clause 5.7 double-pole reading) is prima facie arguable

QUESTION

Pending adjudication of a dispute over the correct billing basis and period under the Supply Code - the petitioner invoking Clause 5.6 (bills only for the three months previous to the month the dispute arose) against a nine-month assessment raised on the consumer-meter/double-pole-meter difference, the respondent invoking the Fifth-Amendment Clause 5.7 (per-day double-pole/substation/audit reading between last reading and replacement of the defective meter) - should recovery under the assessment bill and disconnection be stayed, and on what terms?

HOLDING

The Division Bench did not resolve the clause conflict; it held the issue prima facie required scrutiny, directed a counter affidavit within six weeks and a rejoinder within two weeks, and stayed both recovery under the assessment bill (Annexure 11) and disconnection under the impugned order dated 10.3.2017, subject to the petitioner depositing the amount the respondent calculates for the last three months from the date the dispute arose (9.12.2016) within ten days of demand and continuing to pay current bills as generated. The competing readings of Clause 5.6 and the amended Clause 5.7 were reserved for the final hearing. **order of 24.5.2017**

EVIDENCE *"the provisions contained in Section 5.6 of the Electricity Supply Code, 2005 provide that bills of previous three months prior to the month in which the dispute has arisen is liable to be charged. However, the respondents have wrongly calculated the bill for the last nine months."* **order of 24.5.2017**

EVIDENCE *"referring to Electricity Supply Code (Fifth Amendment), 2005 which came into effect on 24.7.2014, points out that in view of the amendment in clause 5.7, the period between the date of last reading and the date of replacement of the defective meter, where double metering system is available and is working in healthy condition, the reading of double pole meter/ substation meter/audit meter shall be considered for billing purposes on per day basis in that particular month."* **order of 24.5.2017**

EVIDENCE *"Prima facie, the issue raised before us requires scrutiny."* **order of 24.5.2017**

EVIDENCE *"recovery against the petitioner in pursuance to the assessment bill (Annexure 11 to the writ petition) as well as disconnection of the supply of electrical energy to the petitioner's company in pursuance of the impugned order dated 10.3.2017 shall remain stayed subject to condition that petitioner deposits the amount, to be calculated by the respondent for the last three months from the date when the dispute arose, i.e. 9.12.2016, within ten days from the date demand is raised."* **order of 24.5.2017**

FLAG Compiled order-sheet series with no printed pagination or continuous paragraph numbers (pin_basis is order date). This is an interlocutory holding (grant of conditional interim stay), not a ruling on the merits of the billing dispute.

INTERPLAY · OFFTOPIC::restoration-of-writ-after-non-prosecution

RATIO

Restoration of a writ petition disposed of for non-prosecution off the Warning List, and recall of the disposal order, on sufficient cause

QUESTION

Where a writ petition is disposed of / consigned to record for non-prosecution (none appearing on the revised call from the 'Oldest Pending Cases' Warning List) with liberty to seek recall if the cause of action survives, can it be restored to its original number and the disposal order recalled?

HOLDING

Yes. On a Delay Condonation Application and a Restoration Application, the Court (Prakash Padia and Vivek Saran, JJ., 17.8.2026) found the cause shown for the delay and for the non-appearance sufficient, condoned the delay, allowed the recall/restoration application, recalled the disposal order dated 5.8.2025 and restored the writ petition to its original number, the petitioner having stated that the writ petition still survives. order of 5.8.2025 (disposal, recalled); order of 17.8.2026 (recall and restoration)

EVIDENCE “Upon perusal of the record, it appears that no cause of action survives, and accordingly, the matter is consigned to record.” order of 5.8.2025

EVIDENCE “Accordingly the recall/restoration application is allowed and the order dated 05.08.2025 is recalled. The writ petition is restored to its original number.” order of 17.8.2026

FLAG Off-topic procedural holding (Article 226 restoration practice), not a Supply-Code ruling; recorded because it fixes the current status of the petition as pending.

PRINCIPLE TAGS

prima-facie-scrutiny-interim-protection-on-disputed-assessment A billing dispute resting on genuinely competing Supply-Code clause readings may be held prima facie to require scrutiny and met with interim protection and a direction for pleadings, rather than decided at the threshold. order of 24.5.2017

conditional-interim-stay-deposit-of-three-months-amount Recovery under a disputed assessment bill and disconnection stayed on condition of depositing the amount calculated for the last three months from the date the dispute arose and continuing to pay current bills. order of 24.5.2017

restoration-of-writ-after-non-prosecution-disposal A writ petition consigned to record for non-prosecution off the Warning List, with liberty to seek recall, can be restored and the disposal order recalled on sufficient cause for the non-appearance and the delay. order of 5.8.2025; order of 17.8.2026

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ASSESSMENT BILL'S BASIS - CHARGING ON THE DIFFERENCE BETWEEN THE CONSUMER METER AND THE DOUBLE-POLE METER - IS ILLEGAL UNDER THE ELECTRICITY SUPPLY CODE, 2005 AND THE UNNAMED GOVERNMENT CIRCULARS.

Recorded by the 24.5.2017 order only as prima facie requiring scrutiny; never adjudicated. order of 24.5.2017

NOT DECIDED — WHICH BILLING-PERIOD RULE GOVERNS: THE PETITIONER'S CLAUSE 5.6 READING (BILLS ONLY FOR THE THREE MONTHS PREVIOUS TO THE MONTH THE DISPUTE AROSE) OR THE RESPONDENT'S FIFTH-AMENDMENT CLAUSE 5.7 READING (PER-DAY DOUBLE-POLE/SUBSTATION/AUDIT READING FOR THE LAST-READING-TO-REPLACEMENT WINDOW, WITH THE THREE-MONTH CONSUMER/DOUBLE-POLE DIFFERENCE ALSO CONSIDERED).

Both readings were placed before the Court and left to the final hearing. order of 24.5.2017

NOT DECIDED — WHETHER THE NINE-MONTH ASSESSMENT ACTUALLY RAISED BY THE RESPONDENTS WAS LAWFUL OR EXCESSIVE UNDER EITHER VERSION OF THE CLAUSE.

Not decided; the interim order neither approved nor disapproved the quantum. order of 24.5.2017

NOT DECIDED — THE MERITS OF THE WRIT PETITION AS A WHOLE.

Never reached; the petition was disposed of for non-prosecution (5.8.2025) and then restored to pending status (17.8.2026) without any merits ruling. order of 5.8.2025; order of 17.8.2026

RELATED CASES — SEE ALSO

SCJ-2017 — Company consumer's challenge to a disputed assessment under Clause 5.6 of the 2005 Supply Code; same billing-period provision.

SCJ-1722 — Commercial consumer; shares Clause 5.6 on the permissible billing period for a disputed assessment.

SCJ-058 — Pvt. Ltd. company invoking Clause 5.6 against a disputed assessment bill; provision sibling.

SCJ-071 — Commercial consumer's Clause 5.6 billing/assessment dispute; provision sibling.

SCJ-064 — Company consumer; Clause 5.6 assessment/billing-period dispute; provision sibling.

SCJ-1361 — Clause 5.6 bill-dispute sibling under the 2005 Supply Code.

SCJ-2194 · Gee Cee Cycle Balls Pvt. Ltd. v. State of U.P. and 2 Others · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.

Saurabh Agrawal & Another v. State of U.P. & Others

Allahabad High Court · Single Judge · 19 May 2017 · Application U/S 482 No. 31955 of 2008 · **Application allowed; charge-sheet/cognizance order and criminal proceedings under s.135 quashed**

HEADNOTE

Where the consumer inspection report underlying an FIR under Section 135 of the Electricity Act, 2003 does not itself record theft (the 'theft' column being struck through), and instead the licensee's own subsequent action treats the matter as one of slow metering under Clause 5.6(c)(ii) of the U.P. Electricity Supply Code, 2005 (billed and paid as such), and the appellate authority under Section 127 has already conclusively found — in proceedings that attained finality — that the case was not one of theft, continued criminal prosecution under Section 135 is an abuse of the process of law liable to be quashed under Section 482 Cr.P.C. Clause 5.6(d) of the Supply Code mandates a specific procedure for testing a disputed/defective meter (notice to the consumer of the testing date, an opportunity to be present, and a right to dispute the testing per Clause 5.6(c)); non-compliance (including failure to obtain an MRI report or send the meter to a proper testing laboratory) undermines the evidentiary basis for any theft finding. Once a consumer has paid the full slow-metering assessment under Clause 5.6(c)(ii), and the appellate authority has held Section 135 inapplicable, no separate theft prosecution can be sustained on the same consumer inspection report.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6(d)

Continued s.135 theft prosecution is quashed as an abuse of process where the underlying consumer inspection report does not itself allege theft, the licensee's own subsequent conduct treated the matter as slow metering (fully paid under Clause 5.6(c)(ii)), the Clause 5.6(d) meter-testing procedure (including MRI/proper laboratory testing) was not followed, and the s.127 appellate authority already conclusively held (with finality) that s.135 was inapplicable on the same facts

QUESTION

Should a criminal prosecution under s.135 for theft of electricity be quashed where: (a) the underlying consumer inspection report's theft column was struck through and does not allege theft; (b) the licensee itself separately assessed and recovered the amount as slow metering under Clause 5.6(c)(ii) (fully paid); (c) the mandated Clause 5.6(d) meter-testing procedure (including MRI) was never followed, with the meter instead left at the police station; and (d) the s.127 appellate authority had already held, in a final and unchallenged order, that the case was not one of theft?

HOLDING

Yes — quashed. The consumer inspection report dated 2.8.2007, the sole evidentiary basis for the FIR/charge-sheet, did not itself record an allegation of theft (the relevant column was struck through); the licensee's parallel conduct — assessing and fully recovering the disputed amount (Rs. 71,95,449) as slow-metering charges under Clause 5.6(c)(ii) — was inconsistent with treating the same facts as theft. The Clause 5.6(d) procedure (notice of testing date, opportunity to be present, right to dispute per 5.6(c)) was never followed; no MRI report was obtained, and the seized meter was left at the police station rather than sent for proper laboratory testing, undermining any theft finding. The appellate authority under s.127 (Additional Commissioner, Judicial-II, Saharanpur) had, in a final order dated 24.10.2008 (upheld by a separate writ petition and never further challenged), held that s.135 was inapplicable and directed revision of the bills — a finding of finality directly negating the criminal prosecution's premise. Continuing the s.135 prosecution on the same consumer inspection report, after these developments, amounts to an abuse of the process of law within the settled *Prakash P. Hinduja* standard, and the charge-sheet, cognizance order, and pending proceedings were accordingly quashed. ¶¶ unnumbered (final paragraphs)

LIMITING FACTS

The applicants' company (an induction-furnace steel unit, 4000 KVA contracted load) was inspected multiple times in July-August 2007; the 2.8.2007 consumer inspection report found the meter circuit slow (53.14%, per a private testing agency) rather than recording theft; a provisional assessment (Rs. 97,53,840, later revised) and separately, slow-metering charges (Rs. 71,95,449, fully paid) were raised; an FIR under s.135 was nonetheless lodged the same day, leading to a charge-sheet and cognizance in 2007, even as the s.127 appeal against the theft-based assessment succeeded

on the merits (order dated 24.10.2008, holding s.135 inapplicable) and that finding was upheld in a separate writ petition and attained finality.

PRINCIPLE TAGS

clause-5.6d-meter-testing-procedure-mandatory-for-theft-finding A theft finding premised on a defective/tampered meter requires compliance with Clause 5.6(d)'s testing procedure (notice, opportunity to be present, consumer's right to dispute per 5.6(c)); non-compliance (no MRI, no proper laboratory testing) undermines the evidentiary basis for both the assessment and any criminal prosecution. Lead authorities: *M/s Modern Rice Mill v. Madhyanchal Vidyut Vitran Nigam Ltd. & Another* [1883604], *Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd.* [149862600]. ¶ **unnumbered**

slow-metering-assessment-inconsistent-with-parallel-theft-prosecution Where a licensee itself assesses and fully recovers disputed consumption as slow-metering charges under Clause 5.6(c)(ii) (a civil, non-theft remedy), and a s.127 appellate authority conclusively finds s.135 inapplicable on the same facts, a parallel/continuing s.135 theft prosecution on the identical inspection report is an abuse of process. ¶ **unnumbered**

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/s Modern Rice Mill v. Madhyanchal Vidyut Vitran Nigam Ltd. & Another</i> 2012 (1) ADJ 296 [1883604] Allahabad High Court	Clause 5.6(d) mandates a specific procedure before meter testing — information to the consumer of the proposed testing date, an opportunity to be present (personally or through a representative), obtaining signature if present, and a right to dispute the testing under Clause 5.6(c).	Applied to hold the meter-testing procedure was not followed, undermining the theft allegation.	Court	Followed
<i>Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd.</i> 2009 (1) ADJ 430 [149862600] Allahabad High Court (DB)	Clause 5.6(c)(iii) requires the consumer's agreement for the choice of testing laboratory (licensee's/independent/Electrical Inspector); this being a harsh provision against the consumer must be construed strictly, and failure to apprise the consumer of this right renders the meter-sealing/testing proceedings irregular and illegal.	Applied (quoting para 6) to reinforce that non-compliance with the meter-testing consumer-rights procedure vitiates the proceedings.	Court	Followed
<i>Union of India v. Prakash P. Hinduja & Another</i> AIR 2003 SC 2612 [767596] Supreme Court	Section 482 Cr.P.C. power to quash criminal proceedings may be exercised (sparingly, with circumspection) where the FIR/complaint even taken at face value discloses no offence, or the uncontroverted allegations/evidence do not disclose commission of any offence, or there is an express legal bar to continuance of proceedings.	Applied as the governing standard for quashing the s.135 prosecution.	Court	Followed

Mukhtar Ahmad v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 18 May 2017 · WRIT - C No. 21918 of 2017 · **Writ disposed; petitioner left to Clause 5.9 procedure.**

HEADNOTE

A writ complaining that the electricity meter at the consumer's premises is defective, and that the licensee has taken no steps after being told, is disposed of without a merits inquiry. Such a complaint is to be examined by the concerned authority under the procedure in Clause 5.9 of the U.P. Electricity Supply Code, 2005; the consumer is left to seek redressal there.

FACTUAL SUMMARY

Mukhtar Ahmad petitioned the Allahabad High Court in a writ complaining of an electricity meter installed at his premises. He asserted that the respondents, including the distribution licensee, had been told on earlier occasions that the meter was defective, yet they had taken no steps to redress the grievance. Counsel appeared for the petitioner and for respondent Nos. 2 to 4. The Court recorded that this was the sole grievance raised and did not inquire into whether the meter was in fact defective.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.9(c)

defective meter

HOLDING

A consumer's complaint that the electricity meter at his premises is defective, and that the licensee has taken no steps despite being informed, warrants examination by the concerned authority under the procedure in Clause 5.9 of the Electricity Supply Code, 2005. The High Court will not decide that grievance on a writ petition and will dispose of the petition, leaving the consumer to seek redressal under that clause. ¶ 1

FLAG Order cites Clause 5.9 generally, not sub-clause 5.9(c).

PRINCIPLE TAGS

relegate-to-statutory-remedy A writ complaining that the electricity meter at the consumer's premises is defective, and that the licensee has taken no steps after being told, is disposed of without a merits inquiry. Such a complaint is to be examined by the concerned authority under the procedure in Clause 5.9 of the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER'S ELECTRICITY METER IS DEFECTIVE AND WHAT REDRESSAL IS DUE

¶ 1

M/s Vikas Cool Industries v. Madhyanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 2 March 2017 · Writ-C No. 9462 of 2017 · **Writ disposed; deposit ₹4 lakh and apply under Clause 5.6.**

HEADNOTE

A consumer alleging a defective meter and inflated bills, who had stopped paying and then faced disconnection and a recovery citation, was not granted a merits ruling on the meter or the demand. Clause 5.6 of the U.P. Electricity Supply Code, 2005 is the route for checking a suspected defective meter. The consumer may apply under that clause; the licensee shall decide and, if necessary, issue a fresh bill. Restoration and a stay of coercive recovery of the balance were made conditional on depositing ₹4 lakh within ten days and filing the Clause 5.6 application.

FACTUAL SUMMARY

M/s Vikas Cool Industries alleged that the meter replaced by Madhyanchal Vidyut Vitran Nigam Ltd. on 7 April 2015 was defective, as bills thereafter were unusually high. It repeatedly sought testing and bill correction; the licensee took no action. The consumer stopped paying. A recovery citation for ₹8,45,017 plus other charges followed, and supply was disconnected. The consumer said excess had already been paid; the licensee justified the citation and disconnection for non-payment.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6

defective-meter-testing

HOLDING

Clause 5.6 of the U.P. Electricity Supply Code, 2005 governs checking of defective meters. A consumer who doubts meter accuracy must apply to the licensee under that clause; the licensee shall decide and, if necessary, issue a fresh bill. Where supply has already been disconnected and a recovery citation issued, the Court directed that if the consumer deposits ₹4 lakh within ten days and files a Clause 5.6 testing application, the licensee shall restore supply, decide in accordance with law, and take no further coercive action for the balance; failure to deposit withdraws that protection. The writ was disposed of on those directions without a finding that the meter was defective or that the demand was wrong. ¶ 1

PRINCIPLE TAGS

meter-dispute-must-exhaust-clause-5.6-before-writ

The Court did not test the meter or recast the bills on the writ; it sent the consumer to Clause 5.6 and directed the licensee to decide in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE METER REPLACED ON 7 APRIL 2015 IS DEFECTIVE

¶ 1

NOT DECIDED — WHETHER THE RECOVERY DEMAND OF ₹8,45,017 PLUS OTHER CHARGES IS DUE

¶ 1

M/s Madhuvan Properties (P) Ltd. v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Another

Allahabad High Court · Division Bench · 22 December 2016 · 2016 SCC OnLine All 1150 · Writ - C No. 60839 of 2016 · **Interim order — partial deposit, restoration of supply, balance recovery stayed**

HEADNOTE

Interim order. A slow/defective-meter demand is governed by Clause 5.6 of the U.P. Electricity Supply Code, 2005: the meter must be tested in the consumer's presence (which prima facie was not done here), the consumer must be given an opportunity to object, and under Clause 5.6(c)(ii) the difference of energy consumed can be charged only for the previous three months (with an option to pay in instalments). Where the department, on an MRI test finding the meter running slow (recording only 50%), demanded about Rs. 1.03 crore for nearly four years (3.11.2012 to 15.09.2016), the Court found prima facie that recovery for more than two-and-a-half years could not be done, and, as interim relief, directed restoration of supply on a Rs. 15 lakh deposit with the balance not to be recovered pending the petition.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6

Slow-meter difference chargeable only for the previous three months; testing in consumer's presence

QUESTION

(Interim) Can a slow-meter demand cover nearly four years, and without testing in the consumer's presence?

HOLDING

Prima facie, no. Clause 5.6 requires the meter to be tested in the consumer's presence with an opportunity to object, and Clause 5.6(c)(ii) permits charging the difference of energy consumed only for the previous three months (with an instalment option). A demand for more than two-and-a-half years could not be made; as interim relief, restoration of supply was ordered on a Rs. 15 lakh deposit, the balance not to be recovered pending the petition. ¶ 5-6, 9

LIMITING FACTS

Carbonized meter; MRI showed it running slow, recording only 50%; demand of Rs. 1,03,69,390 for 3.11.2012 to 15.9.2016; supply disconnected after the writ was filed.

FLAG Interim order only; final view reserved after counter affidavit.

PRINCIPLE TAGS

slow-meter-difference-only-three-months-clause-5.6cii Under Clause 5.6(c)(ii) the difference for a slow/defective meter is chargeable only for the previous three months, and testing must be in the consumer's presence with an opportunity to object; a multi-year slow-meter demand cannot stand. ¶ 5-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — FINAL VALIDITY AND QUANTUM OF THE SLOW-METER DEMAND

Only interim protection was granted; the correctness of the demand awaits the counter affidavit and final hearing. ¶ 6-9

Shri Gautam Motors Pvt. Ltd. v. U.P. Power Corporation Ltd. & Others

Allahabad High Court · Division Bench · 14 December 2016 · 2016 SCC OnLine All 4727 · Writ - C No. 12076 of 2004 · **Writ petition allowed; check-meter-based demand set aside**

HEADNOTE

There is no provision under the U.P. Electricity Supply Code, 2005 or the Electricity Act, 2003 by which an electricity bill can be raised on the basis of a check meter. The only question in the petition being whether a bill could be raised on the basis of a check meter, and the licensee's counsel having fairly admitted that there is no such provision, the demand raised on the strength of the inspection report / check meter was set aside.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6

No bill can be raised on the basis of a check meter

QUESTION

Can an electricity bill/demand be raised on the basis of a check meter?

HOLDING

No. There is no provision under the U.P. Electricity Supply Code or the Electricity Act, 2003 permitting a bill to be raised on the basis of a check meter (as the licensee's counsel fairly admitted). The demand of Rs. 5,93,227 raised on the strength of the inspection report / check meter is set aside. ¶ 3-6

LIMITING FACTS

Demand of Rs. 5,93,227 based on an inspection report dated 19.2.2004 for installation HP-24; the only question was the legality of billing on a check meter.

PRINCIPLE TAGS

no-billing-on-basis-of-check-meter A bill/demand cannot be raised on the basis of a check meter, there being no such provision in the Code or the Act. ¶ 5-6

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd.</i> (2009) 1 ADJ 430 (DB) Allahabad High Court (Division Bench)	On the mandatory meter-testing procedure and the consumer's rights when a meter is disputed/tested.	Cited by the petitioner in support. (Digested in the corpus as SCJ-162.) ¶ 4	Petitioner	Referred
<i>Belwal Spinning Mills Ltd. v. U.P. State Electricity Board</i> (1997) 6 SCC 740 Supreme Court	On the basis on which electricity charges/dues may be levied and the limits of the Board's power to raise demands.	Cited by the petitioner in support of the challenge to check-meter billing. ¶ 4	Petitioner	Referred
<i>Tata Hydro-Electric Power Supply Co. Ltd. v. Union of India</i> (2003) 4 SCC 172 Supreme Court	On the interpretation of the statutory/tariff basis for levying electricity charges.	Cited by the petitioner in support. ¶ 4	Petitioner	Referred

Jay Narayan v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 2 November 2016 · Writ-C No. 52272 of 2016 · Writ-C No. 52272 of 2016 · **Representation treated as Clause 5.5 bill-correction application; recovery stayed four weeks**

HEADNOTE

A writ against a recovery citation on a disputed electricity bill of Rs 6,32,754 was disposed of by directing the Executive Engineer to treat the pending representation as an application for correction of the bill under Clause 5.5 of the Electricity Supply Code, 2005 and decide it by a reasoned speaking order within two weeks; recovery to remain in abeyance for four weeks. The correctness of the bill was not decided.

FACTUAL SUMMARY

Jay Narayan petitioned the Allahabad High Court against a demand of Rs 6,32,754. He contended that the electricity bill was incorrect because earlier payments had not been adjusted, and that a representation seeking that adjustment was still pending. While the representation remained undecided, a recovery citation issued for the same amount. The writ sought relief against that recovery. Counsel for the petitioner and for respondent nos. 2 and 3 (the licensee) were heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.5

bill correction on pending representation

HOLDING

Where a consumer disputes a bill on the ground that previous payments were not adjusted and a representation is pending when a recovery citation issues, the Executive Engineer is to treat that representation as an application for correction of the bill under Clause 5.5 and decide it by a reasoned speaking order within two weeks of production of a certified copy; recovery remains in abeyance for four weeks. ¶ 1

FLAG Clause 5.5 cited for bill-correction of unadjusted payments; recorded as stated, not recast.

PRINCIPLE TAGS

relegate-to-statutory-remedy A writ against a recovery citation on a disputed electricity bill of Rs 6,32,754 was disposed of by directing the Executive Engineer to treat the pending representation as an application for correction of the bill under Clause 5.5 of the Electricity Supply Code ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILL OF RS 6,32,754 WAS INCORRECT FOR WANT OF ADJUSTMENT OF PREVIOUS PAYMENTS

Left to the Executive Engineer on the representation treated as a Clause 5.5 application. ¶ 1

Dr. Umesh Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 19 February 2016 · WRIT - C No. - 6706 of 2016 · **Writ disposed; EE Bareilly to decide representation; merits not adjudicated**

HEADNOTE

A consumer invoking Clause 5.6(c)(iii) of the U.P. Electricity Supply Code, 2005 for independent laboratory testing of a defective meter, after a representation to the Executive Engineer had remained undecided, obtained only a direction that the representation be decided in accordance with law. The High Court did not examine whether the option exercised at sealing entitled the consumer to independent testing, or whether the licensee's own test bound him.

FACTUAL SUMMARY

Dr. Umesh Singh invoked Clause 5.6(c)(iii) of the U.P. Electricity Supply Code, 2005, seeking independent laboratory testing of a defective meter. He had exercised that option when the meter was sealed on 3 November 2014. The distribution corporation instead tested the meter itself; he disputed the result. On 18 August 2015 he represented to the Executive Engineer, Bareilly, for independent testing. No order had been passed and the meter had not been independently tested. Counsel for the corporation stated that the representation would be decided.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6(c)(iii)

independent laboratory testing of defective meter

HOLDING

Where a consumer had invoked Clause 5.6(c)(iii) for independent laboratory testing of a defective meter after exercising that option at sealing, and a representation to the Executive Engineer remained undecided, the writ was disposed of with a direction to the Executive Engineer, Bareilly, to decide the representation in accordance with law, preferably within one month of a certified copy being filed. The Court made it clear that it had not adjudicated the merits. ¶ 1

PRINCIPLE TAGS

meter-dispute-must-exhaust-clause-5.6-before-writ

A consumer invoking Clause 5.6(c)(iii) of the U.P. Electricity Supply Code, 2005 for independent laboratory testing of a defective meter, after a representation to the Executive Engineer had remained undecided, obtained only a direction that the representation be decided in accordance with law.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 5.6(C)(III) REQUIRED INDEPENDENT LABORATORY TESTING AFTER THE CONSUMER'S OPTION AT SEALING, AND WHETHER THE CORPORATION'S OWN TEST BOUND THE CONSUMER

Court expressly declined to adjudicate merits; left to the Executive Engineer, Bareilly. ¶ 1

Jaydev Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 3 September 2015 · WRIT - C No. 49846 of 2015 · **Writ dismissed; petitioner relegated to clause 5.6 of the Supply Code.**

HEADNOTE

A consumer dissatisfied with a consumption bill raised by the distribution corporation must pursue the remedy under clause 5.6 of the U.P. Electricity Supply Code, 2005. The High Court dismissed the writ petition with liberty to that statutory course and did not examine the bill on merits.

FACTUAL SUMMARY

Jaydev Singh filed Writ-C No. 49846 of 2015 in the Allahabad High Court against the State of Uttar Pradesh and two others, including the electricity corporation, challenging a bill raised for his electricity consumption. He sought writ relief against that bill. The Division Bench of Arun Tandon and Shashi Kant JJ. heard the matter on 3 September 2015. The order records only that the petitioner was dissatisfied with the corporation's consumption bill; it does not set out the billing period, load, or any meter-defect or theft allegation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6

bill-dispute-clause-5.6-remedy

HOLDING

A consumer dissatisfied with a consumption bill raised by the distribution corporation has a remedy under clause 5.6 of the Electricity Supply Code, 2005; a writ petition challenging that bill is dismissed with liberty to pursue that remedy. ¶ 1

PRINCIPLE TAGS

meter-dispute-must-exhaust-clause-5.6-before-writ

A consumer dissatisfied with a consumption bill raised by the distribution corporation must pursue the remedy under clause 5.6 of the U.P. Electricity Supply Code, 2005. The High Court dismissed the writ petition with liberty to that statutory course and did not examine the bill on merits.

¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE CONSUMPTION BILL

Writ dismissed with liberty to clause 5.6; the bill was not examined on merits. ¶ 1

Smt. Shakuntla Devi v. State of U.P. — bill dispute relegated to Clause 5.6

Allahabad High Court · Division Bench · 3 September 2015 · Writ-C No. 49700 of 2015 (All.) · Writ-C No. 49700 of 2015 · **Writ dismissed; consumer relegated to Clause 5.6.**

HEADNOTE

A Division Bench of the Allahabad High Court dismissed a writ petition challenging an electricity consumption bill, holding that a consumer dissatisfied with such a bill has a remedy under Clause 5.6 of the U.P. Electricity Supply Code, 2005, and granting liberty to pursue that remedy.

FACTUAL SUMMARY

Smt. Shakuntla Devi filed a writ petition in the Allahabad High Court against the State of Uttar Pradesh and two others, including the electricity corporation, challenging a bill raised for her electricity consumption. Counsel for the petitioner was Rahul Malviya; Sri R.S. Umrao appeared for respondents 2 and 3. The order does not record the bill amount, the period, or whether the dispute concerned a defective meter or ordinary billing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6

bill-dispute-relegated-to-clause-5.6

HOLDING

A consumer dissatisfied with a bill raised for electricity consumption has a remedy under Clause 5.6 of the U.P. Electricity Supply Code, 2005; a writ petition challenging such a bill is dismissed with liberty to pursue that remedy. ¶ 1

PRINCIPLE TAGS

meter-dispute-must-exhaust-clause-5.6-before-writ A Division Bench of the Allahabad High Court dismissed a writ petition challenging an electricity consumption bill, holding that a consumer dissatisfied with such a bill has a remedy under Clause 5.6 of the U.P. Electricity Supply Code, 2005, and granting liberty to pursue that remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL

Merits of the bill left to the Clause 5.6 remedy. ¶ 1

Chandrawati Singh v. State of U.P. & Others

Allahabad High Court · Division Bench · 11 August 2015 · Writ - C No. 36217 of 2013 · **Writ petition disposed of. The challenge to the testing meter report (10.01.2013) and the assessment/provisional bill (15.04.2013) was not examined on merits; the petitioner was relegated to file a representation/objection before respondent no.3 raising all grounds of challenge, and respondent no.3 was directed to decide the same by a reasoned order within four weeks.**

Source file: WRIC(A)_36217_2013.pdf

HEADNOTE

A consumer challenged, by writ, a testing meter report dated 10 January 2013 and an assessment/provisional bill dated 15 April 2013, contending that in preparing the testing meter report the mandatory provisions of the U.P. Electricity Supply Code, 2005 had not been followed, so that the report could not be relied upon and the provisional bill founded on it was not legally justified. A Division Bench of the Allahabad High Court declined to examine these grounds in writ jurisdiction, holding that the grievance could more appropriately be addressed before respondent no.3. Without ruling on whether the testing meter report was prepared in breach of the Supply Code, it disposed of the petition by directing the petitioner to file a representation/objection before respondent no.3 raising all objections and grounds of challenge, and directing that authority to decide the same by a reasoned order within four weeks. The correctness of the testing meter report and the legality of the provisional bill were left to be decided in that forum. The order sits with the meter-dispute cluster in which a consumer must ordinarily exhaust the Clause 5.6 remedy before invoking writ jurisdiction.

FACTUAL SUMMARY

Chandrawati Singh, a consumer, filed Writ - C No. 36217 of 2013 in the Allahabad High Court against the State of U.P. (through its Secretary) and three others, including the electricity distribution authorities. She challenged a testing meter report dated 10 January 2013 and an assessment/provisional bill dated 15 April 2013. Her principal ground was that, in preparing the testing meter report, the mandatory provisions of the U.P. Electricity Supply Code, 2005 had not been followed, with the result that the report could not be relied upon and the provisional bill based on it was not legally justified; the petition also raised various other grounds. The matter passed through a long series of order-sheet listings from 8 July 2013 onward before different Benches, including an adjournment on 28 May 2014, a dismissal in default on 4 July 2014 when none appeared for the petitioner, and the recall of that dismissal and restoration of the petition to its original number on 18 April 2015. At the final hearing on 11 August 2015 the counsel for the petitioner and the learned Standing Counsel were heard; no one appeared on behalf of respondent nos. 2, 3 and 4.

REUSABLE CONSTRUCTIONS

1. A writ challenge to a testing meter report and a provisional/assessment bill, founded on alleged non-compliance with the mandatory provisions of the U.P. Electricity Supply Code, 2005, may be declined in writ jurisdiction and the consumer relegated to raise all such objections and grounds by representation before the competent departmental authority. **11.8.2015**
2. When relegating a consumer to the departmental authority, the Court directs that authority to dispose of the representation/objection by a reasoned order within a fixed period (here four weeks), preserving every ground of challenge for decision in that forum. **11.8.2015**

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6

RATIO

Challenge to a testing meter report and provisional bill relegated to the departmental authority by representation

QUESTION

Whether a writ court should examine, on the merits, a consumer's challenge to a testing meter report and a provisional/assessment bill founded on alleged breach of the mandatory provisions of the U.P. Electricity Supply Code, 2005, or relegate the consumer to the competent departmental authority?

HOLDING

The grievance is more appropriately addressed before the departmental authority. Without deciding whether the testing meter report was prepared in breach of the mandatory provisions of the Supply Code, 2005, the Court disposed of the writ petition by directing the petitioner to file a representation/objection before respondent no.3 raising all objections and grounds of challenge, and directing respondent no.3 to decide the same by a reasoned order within a further period of four weeks. **11.8.2015**

EVIDENCE “in preparing the testing meter report, mandatory provisions of U.P. State Electricity Supply Code, 2005 have not been followed and, therefore, testing meter report can not be relied upon” **11.8.2015**

EVIDENCE “We are of the view that the grievance of the petitioner can more appropriately be addressed before the respondent no.3.” **11.8.2015**

EVIDENCE “the writ petition is disposed of asking the petitioner to file representation/objection before the respondent no.3 raising all the objections/grounds of challenge and the respondent no.3 is directed to dispose of the same within another period of four weeks by a reasoned order” **11.8.2015**

FLAG Order-sheet matter with no printed page numbers or numbered paragraphs; pins are keyed to the operative order dated 11.8.2015. Keyed to UP-2005::5.6 (meter testing) to sit with the relegation-to-authority cluster (SCJ-1361, SCJ-1362); the Court relegated the challenge without itself citing the clause or ruling on the Supply Code compliance point.

PRINCIPLE TAGS

meter-dispute-must-exhaust-clause-5.6-before-writ A consumer disputing a testing meter report (and the provisional bill based on it) on grounds of non-compliance with the Supply Code, 2005 is ordinarily relegated to the departmental remedy rather than having those grounds examined in writ jurisdiction. **11.8.2015**

alternative-remedy-relegation The writ petition was disposed of by relegating the petitioner to a representation/objection before respondent no.3, the authority being directed to decide it by a reasoned order within four weeks. **11.8.2015**

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE TESTING METER REPORT DATED 10 JANUARY 2013 WAS PREPARED IN BREACH OF THE MANDATORY PROVISIONS OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Expressly left to the departmental authority (respondent no.3) to decide on the petitioner's representation by a reasoned order within four weeks. **11.8.2015**

NOT DECIDED — LEGALITY OF THE ASSESSMENT/PROVISIONAL BILL DATED 15 APRIL 2013

Not examined on merits; to be raised among the objections and grounds of challenge before respondent no.3. **11.8.2015**

RELATED CASES — SEE ALSO

SCJ-1361 — Shakuntla Devi — same relegation pattern: writ challenging an electricity bill dismissed with liberty to pursue the Clause 5.6 remedy.

SCJ-1362 — Jaydev Singh — writ relegated to Clause 5.6 of the Supply Code; alternate-remedy disposal of a metering/billing grievance.

SCJ-126 — Vimla Tiwari — contrast on the same 5.6 meter cluster, where the Court examined the merits and quashed the s.126/127 assessment rather than relegating.

Smt. Babita v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 July 2015 · WRIT - C No. 37155 of 2015 · **Writ disposed; Assessing Authority to decide pending objections then issue a Supply Code-compliant bill, subject to 50% deposit; if already decided, petitioner to appeal under Clause 6.8(d).**

HEADNOTE

On a challenge to a defective-meter demand and threatened disconnection, where the consumer alleged that Clause 5.6(d) of the U.P. Electricity Supply Code, 2005 was not followed and that objections before the Assessing Authority remained undecided, the Allahabad High Court did not examine the demand on merits. It directed the Assessing Authority to decide the objections and then issue a bill after complying with the Supply Code, subject to deposit of 50% of the noticed amount; if the objections had already been decided, the petitioner was to be informed so she could appeal under Clause 6.8(d).

FACTUAL SUMMARY

Smt. Babita challenged a 26 March 2015 notice of Electricity Supply Division 5th, Ghaziabad demanding Rs 47,574 and threatening disconnection. The meter at her premises had been found defective and replaced. She alleged that Clause 5.6(d) of the U.P. Electricity Supply Code, 2005 was not followed because the meter was not checked in her presence, and that she had filed objections before the Assessing Authority which remained undecided when the demand notice issued.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8(d)

assessment-objections-and-appeal

HOLDING

If objections to a defective-meter demand remain pending, the Assessing Authority shall decide them and then issue a bill after complying with the U.P. Electricity Supply Code, 2005, subject to deposit of 50% of the demanded amount; if the objections have already been decided, the consumer is to be informed so that an appeal may be filed under Clause 6.8(d). ¶ 1

PRINCIPLE TAGS

opportunity-before-final-assessment

On a challenge to a defective-meter demand and threatened disconnection, where the consumer alleged that Clause 5.6(d) of the U.P. Electricity Supply Code, 2005 was not followed and that objections before the Assessing Authority remained undecided, the Allahabad High Court did not examine the demand on merits.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 5.6(D) WAS BREACHED BECAUSE THE DEFECTIVE METER WAS NOT CHECKED IN THE PETITIONER'S PRESENCE

Pleaded but not decided; the Court directed Supply Code compliance without examining the meter-check procedure. ¶ 1

NOT DECIDED — VALIDITY OF THE RS 47,574 DEMAND AND THE THREATENED DISCONNECTION

Merits left to the Assessing Authority or to a Clause 6.8(d) appeal. ¶ 1

Shri Krishna Kumar Bhargava v. State of U.P. & 4 Others

Allahabad High Court · Division Bench · 30 June 2014 · 2014 SCC OnLine All 7692 · Writ - C No. 33401 of 2014 · **Interim order — recovery stayed pending counter affidavit**

HEADNOTE

Interim order. On the contentions that (i) the checking report found the meter merely 'defective' without any finding that the consumer made it defective, so it could not be a case of theft/unauthorised use under Section 126, a defective meter being governed by the distinct defective-meter regime (Clauses 5.6 and 5.8 of the U.P. Electricity Supply Code, 2005) rather than Section 126; (ii) a demand notice was issued on 18.11.2011 while the purported final assessment order was passed only on 04.07.2013, showing the show-cause notice was treated as the final assessment and recovery pursued before assessment, contrary to Ashok Kumar; and (iii) the assessment did not show how the amount of Rs. 90,326 was computed — the Court, finding a prima facie case, stayed recovery under the citation dated 01.03.2014 pending exchange of affidavits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6

Defective meter is not per se theft; distinct assessment regime — interim stay

QUESTION

(Interim) Can a 'defective meter' finding, without any finding that the consumer made it defective, be treated as theft/UUE under s.126?

HOLDING

Prima facie, no. Where the checking report finds the meter defective without finding that the consumer rendered it defective, it may not be a case of theft/UUE under s.126; a defective meter is governed by the distinct defective-meter rules (Clauses 5.6 and 5.8), and assessment must follow that regime. Coupled with a demand notice predating the 'final assessment' (suggesting the show-cause was treated as final, contra Ashok Kumar) and an unexplained computation, a prima facie case was made out and recovery was stayed. ¶ 1-3, 6

FLAG Interim order only (stay of recovery); the merits await final hearing on affidavits.

PRINCIPLE TAGS

defective-meter-not-per-se-theft-distinct-assessment-regime A defective meter, absent a finding that the consumer rendered it defective, is not per se theft/UUE under s.126 and is governed by the distinct defective-meter rules (Clauses 5.6/5.8), not the s.126 route. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE ASSESSMENT AND WHETHER IT IS THEFT OR A DEFECTIVE-METER CASE

Only an interim stay was granted; the characterisation and the legality of the assessment (and the computation of Rs. 90,326) are left for final hearing. ¶ 6

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Ashok Kumar v. State of U.P.</i> 2008 (6) ADJ 660 Allahabad High Court (Division Bench)	A s.126 assessment must follow the prescribed procedure — a proper final assessment order preceded by opportunity, not a show-cause notice treated as final with recovery pursued upon it.	Cited by the petitioner as violated (demand notice predating the final assessment); a prima facie case found and recovery stayed. (Digested in the corpus as SCJ-158.) ¶ 3	Petitioner	Referred

Mohd. Sagir v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Ors.

Allahabad High Court · Division Bench · 30 May 2014 · 2014 SCC OnLine All 8462 · Writ - C No. 55384 of 2009 · **Writ petition disposed of; final assessment order set aside; matter remitted**

HEADNOTE

A tampered meter is a 'defective meter' within Clause 5.6 of the U.P. Electricity Supply Code, 2005: the marginal heading 'Defective Meters' cannot cut down the substantive right in Clause 5.6(a) to test 'any meter', and Clause 5.6 read with Clause 5.9 (which speaks of a meter 'rendered defective due to tampering') shows tampering falls within the same testing machinery. Consequently the mandatory procedure of Clause 5.6(c)(iii) applies even in a theft/tampering case: once the meter is removed and sealed, the licensee must apprise the consumer of, and let him exercise, his option to have it tested at the licensee's lab, an independent lab or by the Electrical Inspector 'as agreed by consumer'; failure to offer that option renders the testing and the assessment built on it illegal, and no waiver can be inferred against a consumer who was never told of the right. Independently, a final assessment under Section 126(3) of the Electricity Act, 2003 passed without a reasonable opportunity of hearing — refusing the consumer any time to object and never deciding his pending objection, before the statutory one-month period had even run — violates natural justice and is void; and the availability of a Section 127 appeal is no bar to writ relief in such a case.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6

Whether the 'Defective Meters' heading confines Clause 5.6 to non-tampered meters

QUESTION

Does Clause 5.6 (headed 'Defective Meters') apply where the licensee alleges the meter was tampered, or is it limited to meters that are merely inaccurate/defective?

HOLDING

Clause 5.6 applies to tampered meters too. The heading cannot control the clear substantive provision: Clause 5.6(a) gives the licensee the right to test 'any meter' on reasonable doubt, and Clause 5.9(b)(ii) expressly treats a meter 'rendered defective due to tampering or any other deliberate act' within the same scheme. Read together, a tampered meter is a defective meter for Clause 5.6; the licensee's contention that Clause 5.6 was not attracted is incorrect.

LIMITING FACTS

Meter removed from the premises on 16/8/2009 and sent for lab testing; on testing (3/9/2009) foreign wires, remote control and sensing device were found inside, and an FIR under ss.135/150 followed; the licensee argued 5.6(c) governs only 'defective', not 'tampered', meters.

HOLDING-UNIT · UP-2005::5.6(c)(iii)

Consumer's option on the venue of meter testing; illegality of testing without it

QUESTION

Where a sealed meter is sent for testing, must the licensee inform the consumer of, and obtain, his agreement to the testing venue (licensee's lab / independent lab / Electrical Inspector) before testing?

HOLDING

Yes. Clause 5.6(c)(iii) requires the meter, after sealing in the consumer's presence, to be tested 'at licensee's lab/Independent lab/Electrical Inspector, as agreed by consumer', the option once exercised not to be changed and the resulting report to be final. The licensee has a corresponding duty to apprise the consumer of this right; failure to offer the option renders the sealing and testing irregular and illegal, and vitiates the assessment built upon it.

QUALIFIER

The clause operates harshly against the consumer and is to be construed strictly.

INTERPLAY · EA2003::126(3)

Reasonable opportunity of hearing before a final assessment

HOLDING

A final assessment order passed without affording a reasonable opportunity of hearing violates s.126(3) and natural justice and is liable to be set aside on that ground alone. Here the consumer's objection of 11/9/2009 was never decided, his request on 29/9/2009 for time (even short of the 15 days sought) was refused, and the one-month period contemplated by s.126(3) had not expired when the final order of 30/9/2009 was passed.

LIMITING FACTS

Consumer's proprietor was abroad; his manager twice sought a later date; a writ challenging the meter testing was pending; yet the assessing officer finalised in haste.

INTERPLAY · EA2003::127

Alternative statutory appeal as a bar to writ jurisdiction

HOLDING

The existence of a s.127 appeal against a s.126 final assessment does not bar a writ petition where the order is assailed for violation of natural justice; the rule of exhaustion is one of policy and discretion, not law. The Court also declined to relegate the petitioner because the writ had been entertained, an interim order passed, and it had been pending for about five years.

PRINCIPLE TAGS

clause-heading-not-a-limit-on-substantive-scope The 'Defective Meters' marginal heading of Clause 5.6 does not confine the clause to non-tampered meters; the substantive words ('any meter' in 5.6(a); 'rendered defective due to tampering' in 5.9) govern, so tampering falls within the Clause 5.6 testing machinery.

opportunity-before-final-assessment A s.126(3) final assessment made without deciding the consumer's objection and without allowing even minimal time to be heard — and before the statutory one-month window closed — is void for breach of natural justice; set aside on that ground alone.

whirlpool-exceptions-to-alternative-remedy-bar A s.127 appeal is no bar to a writ where the assessment is challenged for violation of natural justice; alternative remedy is a rule of discretion, not an absolute bar (fundamental rights, natural justice, want of jurisdiction, vires). Lead authorities: *Whirlpool Corporation v. Registrar of Trade Marks, Mumbai*. ¶ 15-21

waiver-requires-full-knowledge-of-right A consumer who was never informed of the Clause 5.6(c)(iii) testing option cannot be deemed to have waived it; waiver is an intentional act done with full knowledge of the right, and there is no presumption that everyone knows the law. Lead authorities: *M/s Moti Lal Padampat Sugar Mills Ltd. v. State of U.P.*. ¶ 9

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ASSESSMENT FOR 365 DAYS WAS JUSTIFIED

The petitioner argued that, the meter having been inspected on 28/4/2009 with nothing found wrong, no period prior to that date could be assessed. Having set aside the order on other grounds, the Court left this open for the fresh assessment / objection.

NOT DECIDED — VIRES OF OFFICE ORDER DATED 19/6/2009 CONSTITUTING THE METER-TESTING COMMITTEE

Challenged as ultra vires the Code, 2005; the Court held it needed no consideration in this petition and left it open for an appropriate case.

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd.</i> 2009 (1) ADJ 430 Allahabad High Court (Division Bench)	Clause 5.6(c)(iii) requires the licensee to apprise the consumer of, and obtain his agreement to, the testing venue (licensee's lab / independent lab / Electrical Inspector) before a sealed meter is tested; the clause operates harshly and is construed strictly, and failure to give a bold, printed notice of the	Followed and applied; the Court held the law it lays down fully supports the petitioner. Noted that the licensee's SLP against Amrawati Devi was dismissed by the Supreme Court on 3/8/2009. ¶ 6-11	Petitioner	Followed

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
	option renders the proceedings illegal.			
<i>Whirlpool Corporation v. Registrar of Trade Marks, Mumbai</i> (1998) 8 SCC 1 Supreme Court	Alternative statutory remedy does not bar a writ under Article 226 in at least three contingencies — enforcement of fundamental rights, violation of natural justice, or an order wholly without jurisdiction / where the vires of an Act is challenged; exhaustion is a rule of policy, convenience and discretion, not of law.	Relied on and quoted (paras 15-21) to entertain the writ despite the s.127 appeal, the order being challenged for breach of natural justice. ¶ 15-21	Court	Relied on
<i>M/s Moti Lal Padampat Sugar Mills Ltd. v. State of U.P.</i> AIR 1979 SC 621 Supreme Court	Waiver means the intentional abandonment of a right and must be made with full knowledge of the right; there is no presumption that every person knows the law, so a right cannot be treated as waived without knowledge of it.	Quoted within the Amrawati Devi extract and relied on: absent intimation of the Clause 5.6(c)(iii) option, the consumer cannot be deemed to have waived it. ¶ 6 (quoting SC para 6)	Court	Relied on
<i>State of U.P. v. Mohd. Nooh</i> AIR 1958 SC 86 Supreme Court	The rule requiring exhaustion of statutory remedies before a writ is one of policy, convenience and discretion, not of law; certiorari has issued despite the availability of other adequate legal remedies.	Noticed within the quoted Whirlpool extract as part of the catena on the alternative-remedy rule. ¶ 17	Court	Referred
<i>A.V. Venkateswaran, Collector of Customs v. Ramchand Sobhraj Wadhwani</i> AIR 1961 SC 1506 Supreme Court (Constitution Bench)	The exceptions to the alternative-remedy rule are not exhaustive; a discretion vests in the High Court to entertain a petition and grant relief notwithstanding an adequate alternative remedy.	Noticed within the quoted Whirlpool extract. ¶ 18	Court	Referred
<i>Calcutta Discount Co. Ltd. v. Income Tax Officer, Companies Distt. I</i> AIR 1961 SC 372 Supreme Court (Constitution Bench)	Where an executive authority acts without jurisdiction and thereby subjects a person to lengthy proceedings and harassment, the High Court may issue prohibition/certiorari notwithstanding the executive character of the act.	Noticed within the quoted Whirlpool extract. ¶ 19	Court	Referred

M/S Krown Bakers India Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam & Anr.

Allahabad High Court · Division Bench · 12 February 2014 · WRIT - C No. 59470 of 2011 · **Writ petition dismissed**

HEADNOTE

Under Clause 5.6 of the U.P. Electricity Supply Code, 2005, the obligation to install a check meter (or otherwise test a meter under the prescribed procedure) arises only on a consumer's request; where the sealing certificate on inspection recorded that the main meter was running slow (with the difference from a double-pole meter chargeable per rule) and the consumer, with knowledge of that finding, never questioned the meter's operational status or requested a check-meter test — challenging only the resulting bill and seeking installments — the consumer cannot later contend that the bill is vitiated for want of a Clause 5.6 check-meter procedure.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6

Check-meter procedure under Clause 5.6 is triggered only by the consumer's request; silence on the meter's slow-running finding forfeits the objection

QUESTION

Is a bill based on an inspection finding that the meter was running slow (difference chargeable per rule) vitiated for not following the Clause 5.6 check-meter procedure, where the consumer never disputed the meter's slow-running or requested a check meter, but only objected to the resulting bill?

HOLDING

No. Clause 5.6 gives the licensee the right to test a meter on reasonable doubt of accuracy, and separately gives the consumer the right to request testing (including installation of a check meter) if he doubts the meter's accuracy; the obligation to install a check meter arises only on the consumer's request. Since the consumer had full knowledge from the sealing certificate that the meter was found running slow, never disputed that finding or sought a check-meter test — his representations and applications (including a request for installment payment) challenged only the bill, not the meter's operational status — he cannot now contend that the bill is vitiated for non-compliance with Clause 5.6.

¶ unnumbered order

LIMITING FACTS

On inspection (18.4.2011) no discrepancy was found with the main meter's tamper status, but the sealing certificate recorded the meter running slow, with the difference from a double-pole meter chargeable per rule, resulting in demand bill dated 8.8.2011; the consumer never sought a check-meter test and only sought installment payment of the bill.

PRINCIPLE TAGS

check-meter-procedure-on-consumer-request The Clause 5.6 check-meter/testing procedure for a disputed meter is triggered only by the consumer's request; a consumer who has knowledge of a slow-meter finding and does not dispute it or seek testing cannot later invoke Clause 5.6 non-compliance to challenge the consequential bill. ¶ unnumbered order

Abdul Hameed Alias Abdul Haneef v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 11 April 2013 · Writ - C No. 17317 of 2013 · **Check meter directed under clause 5.6; bills to be corrected on result**

HEADNOTE

On a domestic consumer's plea that the licensee had neither installed a check meter nor revised a disputed high-consumption bill, the Court directed installation of a check meter under clause 5.6 of the Uttar Pradesh Electricity Supply Code, 2005 within one month, and correction of bills according to the inspection result.

FACTUAL SUMMARY

The petitioner held a domestic connection from U.P. Power Corporation Ltd. and had been paying charges. In July and August 2011 the licensee raised a bill of Rs.1,50,773. Objecting, he deposited Rs.50,000 and asked for a check meter to test whether the existing meter was defective. His grievance was that neither a check meter had been installed nor the July 2011 bill revised. He sought a writ for check-meter installation and bill correction.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6

check meter for alleged defective meter

HOLDING

Where a domestic consumer disputes a high-consumption bill and seeks a check meter alleging the installed meter is defective, the licensee must install a check meter in terms of clause 5.6 of the U.P. Electricity Supply Code, 2005 and, depending on the inspection result, pass appropriate orders for correction of bills. ¶ 1

PRINCIPLE TAGS

meter-dispute-must-exhaust-clause-5.6-before-writ On a domestic consumer's plea that the licensee had neither installed a check meter nor revised a disputed high-consumption bill, the Court directed installation of a check meter under clause 5.6 of the Uttar Pradesh Electricity Supply Code, 2005 within one month ¶ 1

Deepak Mishra v. M.D. Kanpur Electricity Supply Co. Ltd.

Allahabad High Court · Single Judge · 29 May 2012 · Writ-C No. 27215 of 2012 · **Writ dismissed;**
CGRF/Ombudsman 180-unit bill upheld.

HEADNOTE

A KESCO consumer challenged the Ombudsman's confirmation of a CGRF direction to bill him at 180 units per month for 1991–2010, relying on a check meter that found the existing meter 7.6% fast and on para 5.6(e) of the Electricity Supply Code, 2005. Held, para 5.6(e) does not authorise billing on check-meter consumption; it requires adjustment of the previous three months' bills as per the test results. That three-month window, if anchored to the 1999 bill, fell when the 2005 Code was not in force, and successive meter replacements broke any continuous consumption pattern. The 180-unit assessment was just and equitable. Petition dismissed.

FACTUAL SUMMARY

Deepak Mishra challenged the Electricity Ombudsman's 12.04.2012 order confirming CGRF, KESCO's direction to bill him at 180 units per month from 30.07.1991 to 26.01.2010. He had underpaid a 30.07.1999 bill of Rs 26,496 (paying Rs 14,000 without dispute) and had meters replaced on 22.09.2007, 31.05.2009 and 26.01.2010. Check-meter testing of meter No. 16506483 found it 7.6% fast; he said about 20 days' check-meter consumption of 85.04 units implied 128–130 units a month, not 180.

REUSABLE CONSTRUCTIONS

1. Para 5.6(e) of the Electricity Supply Code, 2005 does not authorise issuing bills on the basis of check-meter consumption; it requires adjustment of bills for the previous three months prior to the month in which the dispute arose, as per the test results. ¶ 2-5
2. Para 5.6(e) cannot be applied to a period when the 2005 Code was not in force, nor where successive meter replacements prevent treating consumption as a continuous pattern. ¶ 5

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6(e)

check-meter billing adjustment

HOLDING

Para 5.6(e) does not authorise billing on check-meter consumption. Where a check meter shows the existing meter fast or slow beyond permissible limits, bills of the previous three months prior to the month in which the dispute arose are to be adjusted as per the test results. Applying that window to the petitioner's 1999 bill would fall before the 2005 Code was in force, and successive meter replacements broke any continuous consumption pattern. The CGRF/Ombudsman assessment at 180 units per month for 1991–2010 was just and equitable and was not interfered with. ¶ 2-7

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances A KESCO consumer challenged the Ombudsman's confirmation of a CGRF direction to bill him at 180 units per month for 1991–2010, relying on a check meter that found the existing meter 7.6% fast and on para 5.6(e) of the Electricity Supply Code, 2005.. ¶ 2-7

meter-dispute-must-exhaust-clause-5.6-before-writ A KESCO consumer challenged the Ombudsman's confirmation of a CGRF direction to bill him at 180 units per month for 1991–2010, relying on a check meter that found the existing meter 7.6% fast and on para 5.6(e) of the Electricity Supply Code, 2005.. ¶ 2-7

M/S Venus Stone Crushing Co. & Anr. v. U.P. Power Corporation Ltd. & Ors.

Allahabad High Court · Single Judge · 15 May 2012 · AIR 2013 All 47; (2012) 8 ADJ 221 · WRIT - C No. 64725 of 2011 · **Writ petition allowed; appellate assessment order quashed; refund with 6% interest and costs**

HEADNOTE

Under paras 5.17, 5.18 and 5.20 of the U.P. Electricity Supply Code, 2002 (materially identical to Clause 5.6 of the 2005 Code), a licensee testing a meter in its laboratory must inform the consumer of the proposed testing date at least seven days in advance so the consumer may be present; this procedure is mandatory (*Amrawati Devi v. PVVNL*, whose SLP was dismissed by the Supreme Court, rendering the ruling final), and a test report obtained without it cannot be relied upon. Where no tampering or defect was noted in the meter or its seals at the time of its removal (only a burnt meter and unrelated CT/PT phase errors, which are also explicable on purely technical grounds and self-corrected without external intervention), a subsequent 'tampering' finding by the meter manufacturer's own lab — obtained ex parte and after the meter had passed into the licensee's custody — cannot be relied upon; the licensee bears the burden of proving, with cogent evidence, that the consumer (and not some intervening cause after the meter left his possession) caused the irregularity found. A meter manufacturer's own laboratory is not an 'independent laboratory'. Where the very basis of an assessment (the test report) is legally vitiated, the entire assessment must fall.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6

Mandatory pre-testing notice (now final per SC's SLP dismissal in *Amrawati Devi*); licensee bears the burden of proving the consumer, not an intervening cause, caused the irregularity; manufacturer's lab is not independent

QUESTION

Can a theft assessment rest on a manufacturer-lab 'tampering' finding obtained without the mandatory seven-day pre-testing notice to the consumer, where no defect was noted in the meter/seals at removal and the alleged phase errors were also explicable on technical grounds and self-corrected?

HOLDING

No. Paras 5.17/5.18/5.20 of the 2002 Code (materially identical to Clause 5.6 of the 2005 Code) mandate seven days' advance notice of any laboratory testing so the consumer may be present; this is a mandatory procedure per *Amrawati Devi v. PVVNL*, a ruling since rendered final by the Supreme Court's dismissal of the SLP against it (3.8.2009) — a test report obtained without this procedure cannot ground any action against the consumer. Since the sealing certificate at removal recorded only a burnt meter (no tampered/defective seals) and unrelated CT/PT phase errors that were also technically explicable and had self-corrected without any external intervention, the subsequent 'tampering' finding of the manufacturer's own lab (obtained ex parte, undated, and after the meter had left the consumer's custody) could not be relied upon; the licensee bears the burden of proving with cogent evidence that the consumer, rather than some cause arising after the meter's removal, caused the alleged irregularity. Following *Modern Rice Mill v. MVVNL* and *JMD Alloys v. Bihar SEB*, a meter manufacturer's own laboratory is not an 'independent laboratory'. Since the assessment's very basis (the test report) was vitiated, and the Clause 6.8/Ashok Kumar assessment procedure was also not followed, the entire assessment fell. ¶ paras 24-38

LIMITING FACTS

A burnt meter was replaced (21.8.2003) with no tampering noted in the sealing certificate, only unrelated CT/PT phase errors that had self-corrected (e.g. a CT error recorded 28.5.2002 became normal by 17.6.2002 without any noted intervention); a subsequent undated report from the meter's manufacturer (obtained without notice to the consumer) alleged tampered body/lab seals, on the strength of which a theft assessment (~Rs. 21.5 lakh, later reduced on appeal to ~Rs. 6.37 lakh) was made and confirmed on appeal with a further direction to prosecute under Section 135.

PRINCIPLE TAGS

mandatory-pretesting-notice-final-by-slp-dismissal

The mandatory seven-day pre-testing notice requirement (*Amrawati Devi*) is now final law, the Supreme Court having dismissed the SLP against it; non-compliance renders the test report unusable.

Lead authorities: *Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd. & Anr.*. ¶ para 27

manufacturer's own lab is not an 'independent laboratory'; extends the point with a burden-of-proof holding that the licensee must affirmatively prove the consumer (not an intervening cause after the meter left his custody) caused any tampering found.

Lead authorities: *M/s Modern Rice Mill v. MVVNL & Anr.*, *M/s JMD Alloys Limited v. Bihar State Electricity Board* [559116].

¶ paras 33, 39, 49-50 (quoting Modern Rice Mill)

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd. & Anr.</i> 2009 (1) ADJ 430; SLP dismissed 3.8.2009 Allahabad High Court (DB); SLP dismissed by Supreme Court	The procedure prescribed for meter testing (enabling the consumer to remain present) is mandatory; a test report obtained without following it cannot be relied on to take action against the consumer.	Followed as now-final law (SLP dismissed), applied to invalidate the manufacturer's ex parte test report. ¶ para 27	Court	Followed
<i>M/s Modern Rice Mill v. MVVNL & Anr.</i> 2012 (1) ADJ 296 Allahabad High Court	A meter manufacturer's own lab cannot be an 'independent laboratory'; testing by the manufacturer amounts to making a person judge in his own cause, given its commercial interest in defending its product's tamper-proof reputation.	Followed and quoted at length. ¶ paras 33, 36	Court	Followed
<i>M/s JMD Alloys Limited v. Bihar State Electricity Board</i> (referenced via Modern Rice Mill) [559116] Patna High Court	Testing of a Secure Meter by its own manufacturer is likely to create a strong bias in favour of the supplier/manufacturer.	Followed (via Modern Rice Mill). ¶ para 33	Court	Followed
<i>Ashok Kumar & Others v. State of U.P. & Others</i> 2008 (6) ADJ 660 (DB) [897981] Allahabad High Court (DB)	Lays down the mandatory Clause 6.8 procedure for a theft-based assessment.	Followed; the assessment procedure was found not to have been complied with in this case either. ¶ para 37	Court	Followed

SCJ-071 · M/S Venus Stone Crushing Co. & Anr. v. U.P. Power Corporation Ltd. & Ors. · AIR 2013 All 47; (2012) 8 ADJ 221 · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.

Smt. Vimla Tiwari v. State of U.P. And Others

Allahabad High Court · Single Judge · 20 April 2012 · AIR 2012 Allahabad 142 · WRIT - C No. 14347 of 2012 · **Writ petition allowed; s.126 assessment order and s.127 appellate order quashed; Rs. 10,000 costs awarded against respondents, recoverable from responsible officials personally, with direction for entry of censure in their Annual Character Roll**

HEADNOTE

Where a theft-of-electricity 'missing meter' checking report and the resultant s.126 assessment order are shown, on the Assessing and Appellate Authorities' own personal affidavits filed under the Court's directions, to be internally contradictory, inconsistent as to dates, and effectively fabricated or backdated, the entire proceeding is vitiated by 'malice in law' — i.e., action taken without just cause or excuse, or founded on non-existent/misrepresented facts, irrespective of any actual personal ill-will towards the consumer. Given the overlap between s.126 (assessment for unauthorised use) and s.135 (theft) — the same 'missing meter' facts routinely underlie both — an assessment under s.126 carries reputational and character consequences comparable to a theft charge, requiring the same rigour of procedural fairness, natural justice, and honest, reasoned recording of facts by the Assessing Officer as would be demanded in a quasi-criminal proceeding. Before finalising an assessment premised on an allegedly missing or non-functional meter, Clause 5.6 of the U.P. Electricity Supply Code, 2005 requires that the meter be sent for testing (to verify the checking report's claims) rather than the Assessing Officer relying solely on a field report riddled with internal contradiction. Structurally, the statutory s.127 Appellate Authority — a Commissioner assisted by a Superintending Engineer 'technical member' — must exercise independent, non-mechanical appellate judgment; an appellate order that reflects the Commissioner having abdicated all technical assessment to the Superintending Engineer, without independent application of mind, fails the requirements of a genuine appeal.

HOLDING-UNITS

HOLDING-UNIT · EA2003::126

A s.126 assessment premised on a 'missing meter' checking report that is internally contradictory and effectively fabricated/backdated (as revealed through compelled personal affidavits of the Assessing/Appellate Authorities and field officials) is vitiated by malice in law and must be quashed, given the assessment's overlap with theft (s.135) and its consequent reputational/character stakes requiring rigorous procedural fairness

QUESTION

Can a s.126 assessment order stand where the underlying 'missing meter' checking report — on which the entire assessment rests — is shown through the Assessing Authority's, Appellate Authority's, and field officials' own personal affidavits (filed pursuant to the Court's specific directions) to be internally inconsistent as to dates and material facts, indicating fabrication or backdating?

HOLDING

No. The Court, having directed personal affidavits from the Assessing Authority, the Appellate Authority (the Commissioner) and the Superintending Engineer (technical member), and multiple field officials involved in the checking, found the record riddled with irreconcilable inconsistencies going to the core factual premise (whether and when the meter was actually found missing/tampered), amounting to fabrication or backdating of the checking report. Such action, taken without just cause or on a misrepresented factual foundation, constitutes 'malice in law' regardless of any personal ill-will (extensively discussed via *S.R. Venkatraman v. Union of India*, *Mukesh Kumar Agrawal v. State of U.P.*, *Somesh Tiwari v. Union of India*, *HMT Ltd. v. Mudappa* and the string of authorities at para 42). Because s.126 assessments frequently share their factual predicate with s.135 theft charges and carry comparable reputational/character consequences for the consumer, the same procedural rigour applicable to quasi-criminal proceedings must govern s.126 assessments — a standard flagrantly breached here. The assessment order and the appellate order affirming it are accordingly quashed. ¶ paras throughout; malice-in-law discussion at para 42

LIMITING FACTS

A checking report alleged the petitioner's electricity meter was found missing/tampered, triggering a s.126 assessment; upon challenge, the Court required the Assessing Officer, the Appellate Authority (Commissioner) and Superintending Engineer, and the field checking officials to each file personal affidavits explaining the sequence of events and the

report's preparation; the affidavits proved mutually contradictory and inconsistent with the documentary record, particularly as to dates.

HOLDING-UNIT · UP-2005::5.6

Before an assessment is finalised on the basis that a meter was found missing, tampered, or otherwise defective, Clause 5.6 requires the meter to be sent for testing to verify the checking report's claim, rather than the Assessing Officer relying solely on the (here, internally contradictory) field checking report

QUESTION

Was the Assessing Officer entitled to finalise the s.126 assessment based solely on the checking report's claim of a missing meter, without first sending the meter (or confirming its absence through a verifiable, testable process) per Clause 5.6?

HOLDING

No. Following *Smt. Amrawati Devi v. PuVVNL* and *M/s Modern Rice Mill v. MVVNL* (both already part of this corpus's Clause 5.6 line of authority), the Court held the Assessing Officer was obliged to ensure the meter was tested/verified per Clause 5.6 before relying on the checking report's contested factual claim; reliance on an internally inconsistent, unverified report without such testing further vitiated the assessment.

¶ paras discussing Clause 5.6 and meter-testing precedent

LIMITING FACTS

Same checking-report facts as above; no meter-testing process per Clause 5.6 was shown to have been followed before the assessment was finalised.

HOLDING-UNIT · EA2003::127

A s.127 appellate order is vitiated where the Commissioner (Appellate Authority) mechanically defers entirely to the Superintending Engineer's technical assessment without independently applying his own mind to the record, undermining the structural purpose of a statutory appeal

QUESTION

Does an appellate order under s.127 satisfy the requirements of a genuine appeal where the Commissioner, who presides as the Appellate Authority, effectively abdicates independent assessment to the Superintending Engineer (technical member) rather than exercising his own judgment on the record, including the contested checking report?

HOLDING

No. The Court critiqued the structural functioning of the s.127 Appellate Authority as constituted, observing that the Commissioner routinely defers wholesale to the Superintending Engineer on technical questions without independent application of mind, which defeats the object of a genuine, independent appellate review distinct from the original assessment. On the facts, the appellate order simply affirmed the assessment without meaningfully grappling with the checking report's internal inconsistencies, and was accordingly quashed along with the assessment order.

¶ paras critiquing s.127 Appellate Authority's independence

LIMITING FACTS

The Commissioner's appellate order affirmed the Assessing Officer's order relying on the Superintending Engineer's technical view, without independently addressing the inconsistencies in the underlying checking report that the petitioner had raised.

PRINCIPLE TAGS

malice-in-law-vitiates-s126-assessment-on-fabricated-report A s.126 assessment founded on a checking report shown (through compelled personal affidavits) to be internally contradictory/fabricated is vitiated by malice in law, applying the doctrine that malice in law requires no proof of personal ill-will, only action without just cause or on a misrepresented factual basis — a significant procedural-fairness precedent in this corpus's s.126/s.135 assessment cluster. Lead authorities: *S.R. Venkatraman v. Union of India*, *Mukesh Kumar Agrawal v. State of U.P.*, *Somesh Tiwari v. Union of India*, *HMT Ltd. v. Mudappa*.

¶ para 42 and surrounding discussion

s126-theft-overlap-requires-quasi-criminal-procedural-rigour Because s.126 assessment often shares its factual predicate with s.135 theft and carries comparable reputational/character consequences, the same procedural rigour and honest fact-recording expected in quasi-criminal proceedings must govern s.126 assessments. ¶ paras on s.126/s.135 overlap

clause-5.6-meter-testing-required-before-missing-meter-assessment

Reinforces this corpus's Clause 5.6 line (Smt. Amrawati

Devi, Modern Rice Mill) requiring meter testing/verification before an assessment premised on a missing or defective meter is finalised. Lead authorities: *Smt. Amrawati Devi v. PuVVNL* [149862600], *M/s Modern Rice Mill v. MVVNL* [1883604].

¶ paras on Clause 5.6

s127-appellate-authority-must-exercise-independent-judgment

Structural critique: a s.127 Commissioner who mechanically defers to the Superintending Engineer technical member without independent application of mind fails the statutory purpose of an appeal — a notable institutional-design observation in this corpus. ¶ paras critiquing s.127 Appellate Authority

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IN FACT COMMITTED THEFT/UNAUTHORISED USE

Not reached on merits; assessment quashed on procedural/malice-in-law grounds arising from the fabricated/inconsistent checking report, without a finding on the underlying factual allegation. ¶ throughout

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>S.R. Venkatraman v. Union of India</i> AIR 1979 SC 49 Supreme Court	Malice in law means an act done wrongfully and without reasonable/probable cause, though not necessarily with ill-will; an order founded on non-existent or misrepresented facts is vitiated by malice in law.	Applied as the foundational authority on malice in law to vitiate the assessment.	Court	Followed
<i>Mukesh Kumar Agrawal v. State of U.P.</i> JT 2009 (13) SC 643 Supreme Court	Elaborates the malice-in-law doctrine as applicable to administrative/statutory action taken without just cause.	Cited alongside <i>S.R. Venkatraman</i> in support of the malice-in-law finding.	Court	Followed
<i>Somesh Tiwari v. Union of India</i> (2009) 2 SCC 592 Supreme Court	Malice in law/fact distinction and its application to vitiate administrative action taken on an improper or misrepresented basis.	Cited in the malice-in-law discussion.	Court	Followed
<i>HMT Ltd. v. Mudappa</i> JT 2007 (3) SC 112 Supreme Court	Malice in law doctrine applied to administrative/service action.	Cited in the malice-in-law discussion.	Court	Followed
<i>Manager, Government Branch Press v. D.B. Belliappa</i> Supreme Court	Cited in the string of malice-in-law authorities at para 42.	Cited in support.	Court	Cited
<i>Punjab Electricity Board v. Zora Singh</i> Supreme Court	Cited in the string of malice-in-law authorities at para 42.	Cited in support.	Court	Cited
<i>K.K. Bhalla v. State of U.P.</i> Supreme Court	Cited in the string of malice-in-law authorities at para 42.	Cited in support.	Court	Cited
<i>P. Mohanan Pillai v. State of Kerala</i> Supreme Court	Cited in the string of malice-in-law authorities at para 42.	Cited in support.	Court	Cited
<i>Swarn Singh Chand v. Punjab State Electricity Board</i> Supreme Court	Cited in the string of malice-in-law authorities at para 42, in an electricity-board context.	Cited in support.	Court	Cited
<i>Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd.</i> [149862600] Allahabad High Court	A meter alleged to be missing, defective, or tampered must be tested/verified per Clause 5.6 before an assessment premised on that allegation is finalised.	Followed as part of this corpus's Clause 5.6 meter-testing line.	Court	Followed

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/s Modern Rice Mill v. Madhyanchal Vidyut Vitran Nigam Ltd.</i> [1883604] Allahabad High Court	Same Clause 5.6 meter-testing requirement before finalising an assessment premised on a defective/missing meter.	Followed alongside Amrawati Devi.	Court	Followed

SCJ-126 · Smt. Vimla Tiwari v. State of U.P. And Others · AIR 2012 Allahabad 142 · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.

M/S Modern Rice Mill v. MVVNL & Anr.

Allahabad High Court · Single Judge · 19 October 2011 · WRIT - C No. 52054 of 2010 · **Writ petition allowed; assessment and appellate orders quashed (liberty to reassess afresh)**

HEADNOTE

Clause 5.6 of the U.P. Electricity Supply Code, 2005 gives the licensee the right to test 'any meter' on reasonable doubt of accuracy — its marginal heading 'Defective Meters' does not restrict its scope only to meters already known to be defective, since a marginal note/heading is not a legitimate aid to statutory construction. Where the licensee itself invokes Clause 5.6 to test a meter, it must test it at its own laboratory or an independent laboratory (or by consumer-option check-meter) and follow the Clause 5.6(d) procedural safeguards (advance notice of the testing date, opportunity to be present, signature on the test result sheet); testing by the meter's own manufacturer (e.g. 'Secure Meters Ltd.') is not testing by an 'independent laboratory', since a commercial manufacturer with an interest in defending its product's tamper-proof reputation cannot be judge in its own cause. Where the Electricity Act (as it stood on the date of checking) prescribes an assessment rate of one-and-a-half times the tariff, that statutory rate prevails over any discrepant multiple in the Supply Code or in the orders of the assessing/appellate authorities. Assessment under Section 126 is a penal exercise and cannot be enlarged to include dues (e.g. electricity duty) not contemplated by the statute/Code. Minimum consumption/guarantee charges for a period of disconnection are chargeable only where the disconnection is attributable to the consumer's own fault (e.g. established theft); a consumer cannot be penalised for a disconnection attributable to the licensee.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6

Clause 5.6 applies to testing of 'any meter', not only a known-defective one; meter-manufacturer's own lab is not an 'independent laboratory'; procedural safeguards must be followed

QUESTION

(a) Is Clause 5.6 confined to testing of meters already known to be defective, given its heading 'Defective Meters'? (b) Can the licensee rely on a test report from the meter's own manufacturer (Secure Meters Ltd.) as testing by an 'independent laboratory' under Clause 5.6(b)(iii), and can it dispense with the Clause 5.6(d) procedural safeguards?

HOLDING

(a) No, the heading does not confine the clause: a marginal heading/side-note is not a legitimate aid to statutory construction (*Chandler v. DPP*; *Chandroji Rao v. CIT*; *Padmaraje R. Kadambande v. CIT*; *Guntaiah v. Hambamma*; followed in *Ghanshyam Gupta v. United India Insurance*). Clause 5.6(a) gives the licensee the right to test 'any meter' on reasonable doubt of accuracy, which includes a meter that has stopped recording despite continued consumption. (b) No — testing by the meter's own manufacturer is not testing by an 'independent laboratory'; a commercial manufacturer with a business interest in its product's reputation for being tamper/pilfer-proof cannot be an unbiased arbiter, offending the principle that no one may be a judge in his own cause (following the Patna High Court's *JMD Alloys Ltd. v. Bihar SEB*, which deprecated testing of Secure Meters by their own manufacturer as creating a strong bias). Further, the Clause 5.6(d) safeguards (advance notice of the testing date, opportunity for the consumer/representative to be present, signature on the test result sheet) were not followed before the manufacturer's report was obtained, and this defect was never addressed by either the Assessing Officer or the Appellate Authority. ¶ paras 34-53

LIMITING FACTS

A digital 'Secure Meter' was found stopped for a period during inspection though electricity was apparently being consumed, with only the meter body seal (not the meter box seal or terminal plate seal) noted as 'disturbed/tampered' — an internal inconsistency the licensee could not explain (the body seal cannot be reached without first breaching the outer meter box seal); the meter was sent, without following Clause 5.6(d) safeguards, to its manufacturer Secure Meters Ltd., whose report of tampering was then treated as conclusive by the Assessing Officer and Appellate Authority without independent scrutiny of the meter's own tamper-detection memory/MRI data.

HOLDING-UNIT · EA2003::126

Where the Code's assessment-rate provision conflicts with the statute, the statute prevails

HOLDING

At the relevant date, Section 126(6) fixed the assessment rate at one-and-a-half times the applicable tariff; any discrepancy in the Code (which the assessing/appellate authorities read as permitting a rate of thrice/twice respectively) must yield to the statute, which prevails over the Code in case of conflict. Both the assessing officer's (thrice) and the appellate authority's (twice) orders were accordingly unsustainable on rate alone, independent of the Clause 5.6 defect.

¶ para 56

HOLDING-UNIT · UP-2005::6.8

A Section 126 assessment (being penal/fiscal-preventive) cannot include dues not contemplated by the statute (e.g. electricity duty), and minimum-charge liability during disconnection requires fault attributable to the consumer

HOLDING

Since a Section 126/Clause 6.8 assessment amount is expressly excluded from computation of the consumer's monthly/annual charge liability, the assessment being penal in scope cannot be enlarged to add other dues (here, electricity duty) not contemplated by the statute. Separately, minimum consumption/guarantee charges for a period of disconnection can be demanded only where the disconnection is attributable to the consumer's own fault (e.g. an established theft justifying disconnection); where the fault (or its absence) is unresolved, the licensee cannot claim such charges, and the billing authority must determine responsibility for the disconnection before raising the demand.

¶ paras 59-60

PRINCIPLE TAGS

meter-manufacturer-testing-not-independent

Testing of a disputed meter by its own manufacturer (e.g. Secure Meters Ltd.) does not satisfy the Code's requirement of testing at an 'independent laboratory'; such testing is inherently biased and cannot be relied upon to sustain an unauthorised-use assessment. Followed by later cases (see also SCJ-051 line applying the same technical background). Lead authorities: *M/s JMD Alloys Limited v. Bihar State Electricity Board* [1595240]. ¶ paras 48-50

marginal-heading-not-aid-to-construction

A clause's marginal heading (e.g. 'Defective Meters' for Clause 5.6) does not restrict its substantive scope; general principle of statutory construction applied to a Supply Code clause. Lead authorities: *Chandroji Rao v. CIT* [633431], *Padmaraje R. Kadambande v. CIT* [1245093], *Guntaiah & Others v. Hambamma & Others* [839754]. ¶ paras 39-44

statute-prevails-over-supply-code

Where the Supply Code's assessment-rate provision is discrepant with the governing statute (Section 126(6)), the statute prevails. ¶ para 56

minimum-charges-only-if-consumer-at-fault

Minimum consumption/guarantee charges for a disconnection period are chargeable only if the disconnection is attributable to the consumer's own fault; a licensee-caused or unresolved-fault disconnection cannot ground such a demand. ¶ para 60

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE CONSUMER IN FACT COMMITTED THEFT/UNAUTHORISED USE OF ELECTRICAL ENERGY

Not decided on merits; quashed for procedural/legal defects, with liberty to the Assessing Officer to proceed afresh in accordance with law. ¶ para 64

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/s JMD Alloys Limited v. Bihar State Electricity Board</i> AIR 2009 (Patna) 26 [1595240] Patna High Court	Sending a disputed Secure Meter for testing to its manufacturer's own accredited laboratory is likely to create a strong bias in favour of the supplier/manufacturer, even if the laboratory is accredited.	Followed to hold that the manufacturer's testing report cannot be relied upon as an 'independent laboratory' report. ¶ para 49	Petitioner	Followed
<i>Ashok Kumar & Others v. State of U.P. & Others</i> 2008 (6) ADJ 660 (DB)	Explains the Secure Meter's technical features (tamper/fraud detection and logging via MRI) and lays down the mandatory Clause 6.8	Followed and extensively relied on for both the Clause 6.8 procedure and the Secure Meter technical background. ¶ paras 27, 54	Court	Followed

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
[897981] Allahabad High Court (DB)	procedure (inspection report, notice, hearing, speaking final order) for unauthorised-use assessments; technical opinions causing serious stigma/fiscal liability must be proved with cogent, disclosed material, not accepted uncritically.			
<i>M/s Mohit Paper Mills Ltd. & Anr. v. PVVNL & Ors.</i> Civil Misc. Writ Petition No. 63610 of 2010, decided 14.10.2011 [57045694] Allahabad High Court	Detailed technical description of the Secure Meter system (Consumer Energy Meter, Meter Reading Instrument, Base Computer Software) and its tamper-logging capability.	Relied on (a companion judgment by the same Judge, five days earlier) for the technical background of the Secure Meter. ¶ para 26	Court	Followed
<i>Chandler v. D.P.P.</i> [1964] A.C. 763 House of Lords	Side notes/marginal headings cannot be used as an aid to statutory construction; they are mere catchwords, not enacted as part of the Act.	Relied on for the marginal-heading principle applied to Clause 5.6's 'Defective Meters' heading. ¶ para 40	Court	Relied on
<i>Chandroji Rao v. CIT</i> 1970 (2) SCC 23 [633431] Supreme Court	A marginal heading cannot control the interpretation of a statutory provision.	Relied on to the same effect. ¶ para 41	Court	Relied on
<i>Padmaraje R. Kadambande v. CIT</i> 1992 (3) SCC 432 [1245093] Supreme Court	A marginal heading (e.g. 'compensation') does not control the operation or interpretation of the section.	Relied on to the same effect. ¶ para 42	Court	Relied on
<i>Guntaiah & Others v. Hambamma & Others</i> (2005) 6 SCC 228 [839754] Supreme Court	Titles/marginal notes have the effect of only marginal notes and are not a legitimate aid to construction of a section or rule.	Relied on to the same effect. ¶ para 43	Court	Relied on
<i>Ghanshyam Gupta v. United India Insurance Co. Ltd. & Ors.</i> Civil Misc. Writ Petition No. 53188 of 2011, decided 14.9.2011 [34782786] Allahabad High Court	Follows the same marginal-heading-not-aid-to-construction principle.	Referred as a recent application of the same principle by the same Court. ¶ para 44	Court	Referred

M/s Rukmani Ferro Pvt. Ltd. v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Ors.

High Court of Judicature at Allahabad · Division Bench · 20 July 2011 · WRIT - C No. - 55365 of 2009 · **Writ petition disposed of without interference. The challenge to the provisional assessment notice dated 22 September 2009 under Section 126(2) of the Electricity Act, 2003 was held premature; the petitioner was given liberty to file a detailed objection within fifteen days, which the competent authority must decide by a reasoned order dealing with each objection (including the objection to the competence to issue the notice) after fixing a date of hearing, no opinion being expressed on the merits. The apprehension of coercive action was held misconceived as only a provisional assessment had been made.**

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HEADNOTE

On a consumer's writ petition challenging a provisional assessment notice dated 22 September 2009 issued under Section 126(2) of the Electricity Act, 2003 (assessing Rs. 2,87,74,109 for alleged unauthorised use, following an eleven-member inspection and a meter examination), the Allahabad High Court declined to interfere and disposed of the petition by relegating the consumer to the statutory objection process. It held that a challenge to a merely provisional assessment is premature: the notice itself afforded an opportunity to reply, and it was open to the consumer to file a detailed objection raising all its pleas — including want of jurisdiction and non-compliance with the U.P. Electricity Supply Code, 2005 — which the competent authority could then modify, confirm or discharge; it was 'not the stage for this Court to enter into various issues raised by the parties.' The Court granted liberty to file objections within fifteen days and directed the competent authority to fix a date of hearing and pass a reasoned decision dealing with each objection, including the objection to the very competence to issue the notice, while expressing no opinion on the merits. It further held that, the assessment being only provisional, there was no occasion for any coercive action until a final assessment was made, so the consumer's apprehension of coercion was misconceived and no interim protection was warranted. The petitioner's reliance on *Ashok Kumar v. State of U.P.* (opportunity before concluding unauthorised use) and on Paragraph 5.6 of the Supply Code (right to independent meter testing, per *Amrawati Devi*) was left to be urged before, and decided by, the authority.

FACTUAL SUMMARY

M/s Rukmani Ferro Private Limited held a 3000 KVA electric connection under the HV category from Dakshinanchal Vidyut Vitran Nigam Ltd. Following an inspection on 4 September 2009 by an eleven-member team and a meter examination (M.R.I.) on 19 September 2009, the Nigam issued a provisional assessment notice dated 22 September 2009 under Section 126(2) of the Electricity Act, 2003, assessing Rs. 2,87,74,109 and stating that if the consumer did not reply within one week the provisional assessment would be treated as final. The consumer filed Writ - C No. 55365 of 2009 before the Allahabad High Court seeking to quash the notice, to declare the sealing certificate dated 4 September 2009 invalid and non-est, and to restrain coercive action against it. On 28 October 2009 the Court, relying on the Division Bench decision in *Amrawati Devi v. Purvanchal Vidyut Vitaran Nigam*, stayed the assessment proceedings; the Nigam's Special Leave to Appeal (Civil) No. 3406 of 2010 was dismissed by the Supreme Court on 19 February 2010, with an observation that any application to vacate the interim order be disposed of at the earliest. Thereafter, despite the Apex Court's expectation of early disposal, the matter travelled through numerous Benches over roughly fifteen months (orders from 5 April 2010 to 7 July 2011) on account of successive adjournments and incomplete pleadings, before finally being heard and disposed of by consent on 20 July 2011, counter and rejoinder affidavits having been exchanged. The petitioner argued that no opportunity was given before concluding unauthorised use and that it was not apprised of its right under Paragraph 5.6 of the U.P. Electricity Supply Code, 2005 to have the meter tested by an independent agency; the Nigam contended that the challenge was premature, that Paragraph 5.6 was inapplicable because this was a case of theft, and that the consumer ought to have replied to the notice instead of rushing to Court and obtaining an interim order.

REUSABLE CONSTRUCTIONS

1. A writ challenge to a provisional assessment notice under Section 126(2) of the Electricity Act, 2003 is premature: the assessee's remedy is to file a detailed objection to the assessing authority, who may modify, confirm or discharge the provisional assessment, and it is not the stage for the writ court to enter into the issues (jurisdiction, Supply Code compliance) raised by the parties. p. p. 5

2. Even objections going to the very competence or jurisdiction to issue a Section 126(2) notice can be raised in, and must be decided by, the assessing authority in the objection process — after notice of a date of hearing and by a reasoned order dealing with each objection — so the High Court may relegate the consumer to that process without itself deciding those objections and without expressing any opinion on the merits. p. pp. 5-6
3. So long as the assessment under Section 126 remains provisional, there is no occasion for coercive recovery; a consumer's apprehension of coercive action before a final assessment is misconceived, so no interim protection is warranted. p. p. 6

HOLDING-UNITS

HOLDING-UNIT · EA2003::126

RATIO

Premature writ challenge to a provisional assessment notice; relegation to the statutory objection process

QUESTION

Should a writ court interfere with a provisional assessment notice under Section 126(2) of the Electricity Act, 2003, or relegate the consumer to file objections before the assessing authority?

HOLDING

The Court declined to interfere. A provisional assessment notice is not the stage for the writ court to examine the consumer's pleas (including want of jurisdiction and non-compliance with the U.P. Electricity Supply Code, 2005). The notice itself afforded an opportunity to reply, and it was open to the consumer to file a detailed objection raising all its pleas, which the authority could modify, confirm or discharge. The petitioner was given liberty to file a detailed objection within fifteen days, and the competent authority was directed to fix a date of hearing and take a final decision by a reasoned order dealing with each objection raised, including the objection regarding competence to issue the notice, the Court expressing no opinion on the merits of any issue. p. pp. 5-6

EVIDENCE *"The assessment being only provisional, the same could have been modified, confirmed or discharged by the authorities themselves. It is not the stage for this Court to enter into various issues raised by the parties."* p. p. 5

EVIDENCE *"the authority competent shall consider the objection and take final decision in the matter dealing with each objection raised therein including the objection regarding competence of issuance of notice"* p. p. 5

FLAG Source is an order-sheet compilation; the operative order dated 20.7.2011 carries printed page numbers (pp. 1-6) — pins are those printed pages.

HOLDING-UNIT · EA2003::126

RATIO

No coercive action pending final assessment; no interim protection needed

QUESTION

Is a consumer entitled to protection against coercive action while only a provisional assessment notice under Section 126 has been issued?

HOLDING

No. Since only a provisional assessment notice had been issued, there was no occasion for any coercive action against the consumer unless and until a final assessment was made; the apprehension of coercive action was therefore misconceived, and the request for interim protection was declined. p. p. 6

EVIDENCE *"since only provisional assessment notice has been issued, at this stage there is no occasion of any coercive action against the petitioner unless final assessment is made, hence the apprehension of the petitioner is misconceived"* p. p. 6

PRINCIPLE TAGS

premature-writ-against-provisional-s126-assessment The Court refused to entertain a writ against a provisional assessment notice under Section 126(2), holding the challenge premature and relegating the consumer to file a detailed objection which the assessing authority could modify, confirm or discharge. Lead authorities: *GKN Driveshafts (India) Ltd. v. Income Tax Officer & Ors.* p. pp. 5-6

objection-to-competence-decided-by-assessing-authority The objection to the very competence to issue the Section 126(2) notice was directed to be raised before, and decided by, the competent authority in a reasoned order after hearing, rather than by the writ court. p. p. 5

occasion for coercive action and declined interim protection. **p. p. 6**

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER AN OPPORTUNITY MUST BE GIVEN TO THE CONSUMER BEFORE CONCLUDING THAT THERE HAS BEEN UNAUTHORISED USE OF ELECTRICITY

Petitioner relied on *Ashok Kumar v. State of U.P.* (paras 56 and 58); the Court did not rule on the point, expressly declining to express any opinion on the merits and leaving it to be urged before the competent authority. [897981] **p. pp. 3, 5**

NOT DECIDED — WHETHER PARAGRAPH 5.6 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 (RIGHT TO HAVE THE METER TESTED BY AN INDEPENDENT AGENCY) APPLIED AND WAS VIOLATED

Petitioner (relying on *Amrawati Devi*) contended it was not apprised of this right; the Nigam contended Paragraph 5.6 was inapplicable as this was a theft case. The Court left the question to the authority. [149862600] **p. pp. 3-4**

NOT DECIDED — WHETHER THE NOTICE WAS WITHOUT JURISDICTION / THE COMPETENCE TO ISSUE THE SECTION 126(2) NOTICE, AND WHETHER THIS WAS A CASE OF THEFT OR UNAUTHORISED USE

Expressly reserved for the competent authority to decide in the objection process; 'we are not expressing any opinion on merits of any of the issues raised by either of the parties.' **p. pp. 4-5**

RELATED CASES — SEE ALSO

SCJ-617 — Allahabad DB likewise declining to interfere with a Section 126 provisional assessment and relegating the consumer to a statutory objection decided under the Act and the Supply Code.

SCJ-782 — Writ against a provisional Section 126 bill dismissed and the consumer relegated to objections against the provisional assessment — same premature-challenge / alternate-remedy line.

SCJ-158 — The Division Bench authority (*Ashok Kumar v. State of U.P.*, 2008 (6) ADJ 660) the petitioner relied on here, digested in the spine — a writ against a Section 126 assessment lies where purely legal / jurisdictional issues arise.

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Smt. Amrawati Devi v. Purvanchal Vidyut Vitaran Nigam</i> 2009 (2) AWC 1190 [149862600] Allahabad High Court (DB)	Basis of the interim order dated 28 October 2009 staying the assessment proceedings; also relied on by the petitioner for the consumer's right, under Paragraph 5.6 of the Supply Code, to have the meter tested by an independent agency. Said to have been affirmed by the Apex Court.	Referred as the basis of the earlier interim order and as cited by the petitioner; not applied in the final disposition, which relegated the parties to the objection process. p. pp. 2-3	Petitioner	Referred
<i>Ashok Kumar & Others v. State of U.P.</i> 2008 (6) ADJ 660 (DB) [897981] Allahabad High Court (DB)	Before coming to the conclusion that there has been unauthorised use of electricity, an opportunity is required to be given to the consumer (relied on with reference to paragraphs 56 and 58).	Referred as the petitioner's authority; the Court did not decide the point, leaving it to be raised before the competent authority. p. p. 3	Petitioner	Referred
<i>GKN Driveshafts (India) Ltd. v. Income Tax Officer & Ors.</i> (2002) 125 Taxman 963 (SC) Supreme Court of India	A challenge to a notice for (provisional) assessment is premature; the assessee should file its reply / objection rather than rush to the writ court.	Referred as the respondent's authority; the Court's disposition relegating the consumer to the objection process is consistent with this approach. p. p. 4	Respondent	Referred

Rajendra Kumar Gupta v. DVVNL

High Court of Judicature at Allahabad · Division Bench · 30 March 2011 · Writ-C No. 18315 of 2011 · Writ-C No. 18315 of 2011 · **Writ disposed of; petitioner relegated to Section 127 appeal.**

HEADNOTE

A writ against a Section 126(3) assessment involving disputed facts—including want of hearing, unauthorised use versus a defective-meter case under Supply Code clause 5.6(c)(iii), and independent meter testing—is disposed of by relegating the consumer to a Section 127 appeal. Alternative remedy depends on the circumstances of each case. The appellate authority has jurisdiction, must hear all objections with a reasoned order, and the writ papers may be treated as part of the appeal.

FACTUAL SUMMARY

Rajendra Kumar Gupta, a DVVNL consumer, filed a writ against an assessment under Section 126(3) of the Electricity Act, 2003. He alleged he was given no hearing, that the case was neither tampering nor unauthorised use, and that the licensee first proposed independent meter testing then refused because the seal was broken. He relied on an earlier Division Bench order in his Writ Petition No. 54476 of 2010 (29 September 2010) and on authorities treating defective-meter notices under Supply Code clause 5.6(c)(iii).

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

writ vs s.127 appeal from s.126(3) assessment

HOLDING

Where a consumer challenges a Section 126(3) assessment on disputed facts—no hearing; whether the case is unauthorised use or a defective-meter dispute under Supply Code clause 5.6(c)(iii); whether the meter should have been independently tested—the writ is not decided on merits. Availability of an alternative remedy depends on the circumstances of each case; those factual disputes are to be raised in a Section 127 appeal. The appellate authority does not lack jurisdiction. The petitioner is directed to appeal within seven days of obtaining a certified copy; if appealed, the authority shall hear all objections with a reasoned order preferably within one month, treating the writ petition and annexures as part of the appeal, and decide on merits. ¶ 1-3

FLAG Court cites s.126(3) as Electricity Act, 2003 and also as 2006, s.127 as Electricity Act, 2005, and refers to the 'U.P. Electricity Act, 2005'.

PRINCIPLE TAGS

relegate-to-statutory-remedy A writ against a Section 126(3) assessment involving disputed facts—including want of hearing, unauthorised use versus a defective-meter case under Supply Code clause 5.6(c)(iii), and independent meter testing—is disposed of by relegating the consumer to a Section 127 appeal.. ¶ 1-3

s126-procedural-strictness-notice-and-hearing A writ against a Section 126(3) assessment involving disputed facts—including want of hearing, unauthorised use versus a defective-meter case under Supply Code clause 5.6(c)(iii), and independent meter testing—is disposed of by relegating the consumer to a Section 127 appeal.. ¶ 1-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ASSESSMENT WAS OF UNAUTHORISED USE OR TAMPERING UNDER S.126, OR A DEFECTIVE-METER CASE UNDER CLAUSE 5.6(C)(III)

¶ 2-3

NOT DECIDED — WHETHER THE LICENSEE WAS OBLIGED TO SEND THE METER FOR INDEPENDENT TESTING DESPITE A BROKEN SEAL

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd.</i> 2009 (1) ADJ 430 (DB)			2	Referred
<i>Ashok Kumar v. State of U.P.</i> 2008 (6) ADJ 660 (DB)			2	Referred
2010 (6) ADJ 315 (DB)			2	Referred

Abhinav Seva Sansthan Mahavidyalaya v. U.P. Power Corporation Nigam Ltd. & Ors.

Allahabad High Court · Division Bench · 24 March 2011 · WRIT - C No. 8747 of 2010 · **Writ petition dismissed (liberty to appeal the final assessment)**

HEADNOTE

Where a consumer has paid compounding charges for meter tampering / theft of electricity under Section 152 of the Electricity Act, 2003, the tampering stands compounded and the licensee need not follow the meter sealing/testing procedure of para 5.6(d) of the U.P. Electricity Supply Code, 2005 before the assessment can stand. Section 152 operates at two stages: under sub-section (2), where no prosecution has yet been instituted, payment of the compounding sum sets the person at liberty and bars proceedings; sub-section (3) (acceptance deemed an acquittal) applies only where a prosecution is already pending. Compounding therefore does not require a pending prosecution. A compounding amount paid without protest or contemporaneous objection cannot later be assailed as realised under coercion.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6(d)

Meter-testing procedure vs a compounded theft offence

QUESTION

Where a consumer has paid compounding charges under Section 152 for meter tampering, must the licensee still follow the meter sealing/testing procedure under para 5.6(d) of the Supply Code before the compounding/assessment can stand?

HOLDING

No. Once the sum is paid under Section 152(1) and the offence is deemed compounded, the tampering stands admitted-compounded and the question of following the meter-testing procedure (para 5.6(d)) does not arise. The theft assessment was made on the Code's formula (Annexure 6.3); the procedural challenge fails. ¶ 6-7, 14

LIMITING FACTS

Contracted load 7.5 KW against 32 KW connected; meter found tampered (a shunt resistance reducing the recording by 50%), the inspection videographed; the petitioner paid the compounding charge (Rs. 3,20,000) and part of the provisional assessment voluntarily, without protest.

QUALIFIER

The correctness of the provisional assessment (Rs. 4,29,359.56) was left to the statutory appeal under Section 127.

INTERPLAY · EA2003::152

Compounding of electricity theft — whether a pending prosecution is required

HOLDING

Section 152(2) and (3) operate at different stages: under s.152(2), where no criminal proceeding has yet been instituted, payment of the compounding sum sets the person at liberty and bars institution of proceedings; s.152(3) (acceptance deemed an acquittal) applies only where a prosecution is already pending. Compounding therefore does not require a pending prosecution. ¶ 16-19

FLAG The judgment refers throughout to 'Section 152(2) of the Electricity Supply Code 2005'; Section 152 is in the Electricity Act, 2003. Recorded, not merged.

PRINCIPLE TAGS

voluntary-payment-forecloses-coercion-plea A compounding/assessment amount paid without protest or contemporaneous objection cannot later be assailed as realised under coercion. ¶ 11-12

NOT DECIDED — NEGATIVE AUTHORITY

The quantum of the provisional electricity-theft assessment was not adjudicated; liberty was granted to pursue the statutory appeal under Section 127. ¶ 13, 20

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Dakshin Haryana Bijli Vitran Nigam Ltd. & Ors. v. Megh Raj</i> Revision Petition No. 3144 of 2007, decided 11.9.2008 [7031498] National Consumer Disputes Redressal Commission	The power to compound under Section 152 presupposes a pending prosecution, acceptance of the sum amounting to an acquittal.	Distinguished / confined — read as applicable only to compounding under s.152(3), where a prosecution is pending; it does not govern s.152(2) compounding before any prosecution is instituted. ¶ 10, 15-18	Petitioner	Distinguished

Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd. & Anr.

Allahabad High Court · Division Bench · 15 January 2009 · 2009 SCC OnLine All 26 · C.M.W.P. No. 1545 of 2009 · **Writ petition allowed; provisional assessment notice quashed; meter to be tested by an independent agency**

HEADNOTE

The leading Division Bench statement on Clause 5.6(c)(iii) of the U.P. Electricity Supply Code, 2005: where a defective/allegedly-tampered meter is sealed and sent for testing, it must be tested 'at licensee's lab/independent lab/electrical inspector, as agreed by the consumer', and the consumer's agreement is essential. Because the clause operates harshly against the consumer it is construed strictly, and the licensee has a corresponding DUTY to apprise the consumer of the right to choose the testing venue (including an independent agency); failure to do so renders the sealing and testing proceedings irregular and illegal. A notice merely stating that the meter will be tested at the licensee's lab, without intimating the right to independent testing, is contrary to law. No waiver of the option can be inferred against a consumer who was never informed of it, since waiver requires full knowledge of the right and there is no presumption that everyone knows the law. The Court prescribed that after sealing, the Nigam must serve a notice — printed in bold capitals — inviting the consumer to exercise the option (electrical inspector / Nigam lab / an approved outside agency, with the list supplied), fix a testing date in the consumer's presence, and treat the resulting report as final.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6(c)(iii)

Duty to apprise the consumer of the testing-venue option before testing a sealed meter

QUESTION

Must the licensee inform the consumer of, and obtain agreement to, the venue for testing a sealed meter (licensee's lab / independent lab / electrical inspector) before it is tested?

HOLDING

Yes. Clause 5.6(c)(iii) requires the sealed meter to be tested at the licensee's lab, an independent lab or by the electrical inspector 'as agreed by the consumer'; the consumer's agreement is essential and, once exercised, the option cannot be changed. The clause operates harshly and is construed strictly, so the licensee has a corresponding duty to apprise the consumer of the right — including the right to independent testing. Failure to do so renders the sealing and testing proceedings irregular and illegal, and a notice intimating only licensee-lab testing is contrary to law. ¶ 6-7, 10-12

LIMITING FACTS

Secure meter found running 12.61% slow, sealed on 26.11.2008 with a notice to appear at the Nigam's lab on 4.12.2008; on testing it was found tampered and a provisional assessment issued; the consumer was never told of the independent-testing option.

QUALIFIER

The Court laid down the procedure: a bold-capitals notice inviting the consumer to exercise the option (electrical inspector / Nigam lab / an approved outside agency, with the approved list supplied), a testing date fixed in the consumer's presence, and the resulting report treated as final.

FLAG Leading DB authority on Clause 5.6(c)(iii); followed in SCJ-153 (Mohd. Sagir). The SLP against this judgment was dismissed by the Supreme Court on 3-8-2009 (as noted in SCJ-153).

PRINCIPLE TAGS

meter-testing-venue-option-must-be-offered-before-sealing Before a sealed meter is tested, the licensee must give the consumer a clear (bold-capitals) notice of the right to choose the testing venue — licensee's lab, an approved independent agency, or the electrical inspector; omitting it makes the testing illegal. ¶ 6-7, 10-11

waiver-requires-full-knowledge-of-right A consumer not informed of the Clause 5.6(c)(iii) option cannot be deemed to have waived it; waiver is an intentional act with full knowledge of the right, and there is no presumption that everyone knows the law. Lead authorities: *Moti Lal Padampat Sugar Mills Ltd. v. State of U.P.*. ¶ 9

NOT DECIDED — WHETHER 'IGNORANCE OF LAW IS NO EXCUSE' APPLIES TO THE CODE

The respondents argued the consumer could not plead ignorance of the Code, being law; the Court found it unnecessary to decide this wider question, having held the notice contrary to Clause 5.6(c)(iii). ¶ 8

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Moti Lal Padampat Sugar Mills Ltd. v. State of U.P.</i> (1979) 2 SCC 409 : AIR 1979 SC 621 Supreme Court	Waiver means the intentional abandonment of a right and must be made with full knowledge of the right; there is no presumption that every person knows the law, so a right cannot be treated as waived without knowledge of it.	Relied on and quoted (para 6 of the SC judgment) to reject the plea of waiver against the consumer. ¶ 9	Petitioner	Relied on

SCJ-162 · Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd. & Anr. · 2009 SCC OnLine All 26 · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.

Mother India Refrigeration Industries (& Anr.) v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Ors.

Allahabad High Court · Division Bench · 18 July 2007 · Writ Petition (unnumbered order) · **Writ petition dismissed as premature; petitioner relegated to Clause 5.6 meter-testing procedure / Electrical Inspector, without prejudice**

HEADNOTE

Near-verbatim companion order to SCJ-083 (Mohamdabad Cold Storage Private Ltd. v. Dakshinanchal Vidyut Vitran Nigam Ltd.), decided the same day by the same Bench: a supplementary bill grounded in an admittedly defective transformer is a 'disputed bill' under Clause 6.5(b) of the U.P. Electricity Supply Code, 2005 (the clause's heading does not confine its scope), and the consumer must first invoke the Clause 5.6 meter-testing procedure (and thereafter the Electrical Inspector under s.162 of the Electricity Act, 2003, per *Bombay Electric Supply and Transport Undertaking v. Laffans (India) Pvt. Ltd.*) before approaching the writ court.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

Companion ruling to SCJ-083 — identical holding on a parallel supplementary-bill dispute grounded in a defective transformer

HOLDING

As in SCJ-083: a supplementary bill founded on a disputed/defective transformer reading is a 'disputed bill' under Clause 6.5(b); the consumer must first invoke the Clause 5.6 meter-testing procedure and, if unresolved, the Electrical Inspector under s.162 of the Electricity Act, 2003, rather than approach the writ court directly. The writ petition is premature and dismissed without costs, without prejudice to the petitioners' right to raise their grievance before the authority concerned or the Electrical Inspector. ¶ paras 2-5

LIMITING FACTS

A supplementary bill of Rs. 2,54,033/- was raised with a disconnection threat; the petitioners paid the amount under protest, disputing it on the ground of an admittedly defective transformer — a companion writ petition to SCJ-083, heard and decided together by the same Bench.

FLAG Near-verbatim companion order to SCJ-083; recorded compactly to avoid duplicating the identical reasoning.

PRINCIPLE TAGS

clause-heading-not-a-limit-on-substantive-scope Companion application of the same principle as SCJ-083. ¶ para 2

meter-dispute-must-exhaust-clause-5.6-before-writ Companion application of the same principle as SCJ-083. Lead authorities: *Bombay Electric Supply and Transport Undertaking v. Laffans (India) Pvt. Ltd.* [316379]. ¶ paras 2-3

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Bombay Electric Supply and Transport Undertaking v. Laffans (India) Pvt. Ltd. & Anr.</i> 2005 (3) AWC 2133 (SC) [316379] Supreme Court	Under the Indian Electricity Act, 1910, the Electrical Inspector is the appropriate person to adjudicate a dispute regarding meter accuracy underlying a bill, functioning as a form of independent statutory arbitration.	Applied by analogy to hold that s.162 of the Electricity Act, 2003 is the modern successor forum for such meter-accuracy disputes (companion citation to SCJ-083).	Petitioner	Followed

Mohamdabad Cold Storage Private Ltd. (& Anr.) v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Ors.

Allahabad High Court · Division Bench · 18 July 2007 · Writ Petition (unnumbered order) · **Writ petition dismissed as premature; petitioner relegated to Clause 5.6 meter-testing procedure / Electrical Inspector, without prejudice**

HEADNOTE

A supplementary bill raised on account of an allegedly defective transformer is a 'disputed bill' within Clause 6.5(b) of the U.P. Electricity Supply Code, 2005 despite the clause's heading referring only to 'Disputed Bills and Arrears'; a marginal/clause heading does not confine its substantive scope. Since the bill's correctness turns on the accuracy of the meter/instrument, the consumer must first invoke the Clause 5.6 meter-testing procedure (and, if unresolved, the Electrical Inspector under s.162 of the Electricity Act, 2003 — the statutory successor to the Electrical Inspector's adjudicatory role recognised under the Indian Electricity Act, 1910 in *Bombay Electric Supply and Transport Undertaking v. Laffans (India) Pvt. Ltd.*) before invoking writ jurisdiction; a challenge to a supplementary bill grounded in a disputed meter/transformer reading is premature if brought directly to the writ court without first exhausting that statutory testing/adjudication route.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

A supplementary bill grounded in a disputed/defective meter or transformer reading is a 'disputed bill' under Clause 6.5(b); the consumer must first invoke the Clause 5.6 meter-testing procedure (and thereafter the Electrical Inspector) rather than approaching the writ court directly

QUESTION

Is a challenge to a supplementary bill (raised on the basis of an allegedly defective transformer) maintainable directly in writ jurisdiction, or must the consumer first invoke the Clause 5.6 meter-testing procedure and the Electrical Inspector?

HOLDING

A supplementary bill founded on a disputed meter/transformer reading falls within Clause 6.5(b)'s 'disputed bills' notwithstanding its heading; since the bill cannot be assessed without first resolving the accuracy of the underlying meter/instrument reading, the consumer must invoke the Clause 5.6 (and 5.6(c)(iii)) meter-testing procedure, and if unresolved, approach the Electrical Inspector under s.162 of the Electricity Act, 2003 (the modern successor, per *Bombay Electric Supply and Transport Undertaking v. Laffans (India) Pvt. Ltd.*, to the Electrical Inspector's statutory-arbitration role under the 1910 Act). The writ petition, filed without first exhausting this route, is premature and dismissed without costs, without prejudice to the petitioners' right to raise their grievance before the authority concerned or the Electrical Inspector. ¶ paras 2-5

LIMITING FACTS

A supplementary bill of Rs. 2,54,033/- was raised with a disconnection threat; the petitioners paid the amount under protest and disputed it on the ground that the transformer was admittedly defective, without first invoking the Clause 5.6 testing procedure.

PRINCIPLE TAGS

clause-heading-not-a-limit-on-substantive-scope Clause 6.5(b)'s heading ('Disputed Bills and Arrears') does not confine its scope; a supplementary bill grounded in a disputed meter reading is a disputed bill within the clause — resonates with the marginal-heading-not-an-aid-to-construction principle already tracked in this corpus (SCJ-059/060, *Chandler v. DPP* line). ¶ para 2

meter-dispute-must-exhaust-clause-5.6-before-writ Where a billing dispute turns on the accuracy of a meter/transformer reading, the consumer must first invoke the Clause 5.6 testing procedure (and thereafter the Electrical Inspector) rather than approach the writ court directly; the writ challenge is premature until that statutory route is exhausted. Lead authorities: *Bombay Electric Supply and Transport Undertaking v. Laffans (India) Pvt. Ltd.* [316379]. ¶ paras 2-3

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Bombay Electric Supply and Transport Undertaking v. Laffans (India) Pvt. Ltd. & Anr.</i> 2005 (3) AWC 2133 (SC) [316379] Supreme Court	Under the Indian Electricity Act, 1910, the Electrical Inspector is the appropriate person to adjudicate a dispute regarding meter accuracy underlying a bill, functioning as a form of independent statutory arbitration.	Applied by analogy to hold that s.162 of the Electricity Act, 2003 (Chief Electrical Inspector/Electrical Inspector) is the modern successor forum for such meter-accuracy disputes.	Petitioner	Followed